



SAN MIGUEL COUNTY Housing Code Update

Final Code Audit Report and Recommendations
October 2026

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Project Overview

San Miguel County has undertaken a comprehensive land use code audit and update to identify and remove regulatory barriers that constrain housing development in unincorporated areas. The San Miguel County Housing Code Update, funded through Colorado’s Proposition 123 Local Planning Capacity Grant, will assess current zoning regulations, development standards, and permitting processes to identify where unnecessary complexity, costs, or delays prevent housing production and adopt changes that help accelerate affordable housing production.

This project implements key recommendations from the East End Master Plan (adopted June 2024) and other community planning efforts. The goal is to enable more housing choices while preserving community character. If this project is successful, the region will be better equipped to create sufficient

inventory, with flexibility in deed restrictions that allow mobility as people's needs change (relating to size, location, type, design, and accessibility).

The engagement is designed to be transparent about trade-offs: streamlining development processes may mean less lengthy review, while maintaining community character may mean some regulations stay in place.

With a projected countywide need for over 1,100 housing units by 2030 and nearly half of all workers in the county commuting more than 25 miles to work, this effort directly addresses the region's housing supply shortage by making it easier, faster, and more cost-effective to build housing of all types.

The San Miguel County Housing Code Update builds on experience with community housing initiatives to develop community-supported regulatory reforms. The comprehensive code audit will review all housing-related regulations, including the Community Housing zone district, to identify and address barriers to housing development. This project also meets the Proposition 123 "Fast Track Approval" requirement, positioning the County to access state funding for affordable housing.

How to Use This Document

This document has been prepared by the consultant team for San Miguel County staff, officials, and stakeholders to review. Recommendations are based on existing policies in the San Miguel County Land Use Code, the East End Master Plan, and the Wright's Mesa Master Plan, community member and staff feedback recorded during listening sessions in October 2025, and the consultant team's case study research of peer communities and understanding of best practices.

It is intended that planning staff will use the information within the document to make recommendations to the Planning Commission and the Board of County Commissioners for discussion and potential code adoption.

Community Engagement Summary

This section summarizes high-level themes, ideas, and recommendations heard throughout the San Miguel County Housing Code Update project which included the following touchpoints:

- **Community Listening Sessions (October 2025):** Approximately **56** individuals were directly engaged through online surveys, small group sessions, one on one meetings, and open office hours. We heard from full-time San Miguel County residents, developers, residents of affordable housing, legal professionals, real estate finance experts, representatives of local nonprofits, employers, and other community members that want to help make workforce housing easier to build in the County.
- **Stakeholder Strategic Roundtable (SSR) Meetings:** A 12-member SSR was selected by the Board of County Commissioners by way of an application process in August 2025. Eight meetings were held from October 2025 - September 2026. Meetings built on one another with the initial meeting being an opportunity to define priorities for the project and subsequent meetings discussing the proposed recommendations in detail.

Outreach Goals

The purpose of these listening sessions was to better understand the challenges and successes of affordable workforce housing development in San Miguel County. The following questions were presented to attendees to guide these conversations:

- How do current development regulations affect housing costs and availability?
- What are the main regulatory barriers to building more housing?
- How do permitting timelines and processes impact housing development feasibility?
- What infrastructure constraints limit housing development in different areas?
- What regulatory barriers have you encountered in the development process?
- What specific code provisions make development unnecessarily difficult or expensive?
- What concerns do you have about potential code changes in your area?
- How can we streamline processes without compromising appropriate review?
- What lessons should we learn from past housing development efforts in the county?

Key Themes of Community Conversations:

Although participants represented a wide range of perspectives and professional backgrounds, consistent themes emerged across discussions. These themes reflect broad agreement on the County's housing challenges and opportunities:

Overall Housing Needs

Participants uniformly agreed that housing affordability and availability have become critical challenges affecting the local workforce, families, and economic sustainability. Employers across sectors cited the lack of attainable housing as a major barrier to hiring and retention. Developers and builders expressed that even projects intended for local workers often face excessive costs or uncertainty due to permitting complexity and infrastructure limitations.

Community members emphasized the need for a more flexible, efficient code structure that supports a broader range of housing types, particularly those affordable to middle-income earners. Many noted that current regulations inadvertently discourage smaller scale “missing middle” projects that could help fill workforce housing gaps. The SSR group also noted that the LUC could recognize and provide provisions for seasonal employees in San Miguel County that live in campers, RVs, and vans.

Infrastructure and Land Availability

Infrastructure constraints, especially water availability, were repeatedly identified as a major barrier to housing development and key consideration for code changes. Participants expressed concerns that existing water, road, and service capacities in some areas are insufficient to support additional growth. These constraints are compounded by the County's topography and dispersed development pattern.

Community members recommended that future code and infrastructure planning prioritize new housing near existing services, where infrastructure and transit access can better support increased density. Aligning infrastructure investment with housing goals was viewed as critical to improving long-term feasibility.

Development Review Process

Nearly all participants mentioned that the current development review and permitting process is lengthy and unpredictable. Many noted that it is difficult to build small-scale or “missing middle”

housing types such as duplexes and multi-family homes. More dense affordable housing developments are even more difficult to build because of the requirement to go through the PUD process. This additional layer of review increases costs through significant entitlement delays and uncertainty, discouraging private investment in workforce housing.

Community members expressed a strong desire for a more predictable and transparent process with clear submittal requirements and review timelines. They also supported the creation of a streamlined “minor subdivision” or simplified review track for small-scale projects that meet established design and infrastructure standards, as well as streamlining review processes for eligible affordable housing developments.

Community Housing Zone and Density

Many participants expressed concerns about the implementation of the Community Housing (CH) zone. While many supported the intent of providing more opportunities for workforce housing, some felt that the current density allowance of 20 dwelling units per acre is excessive for land in the unincorporated county.

Community members recommended that the County clarify the zone’s intent, criteria, and applicability—potentially offering a range of density options based on location, infrastructure capacity, and compatibility with surrounding land uses. Some participants also suggested that workforce housing goals could be achieved more effectively through incentives, such as density bonuses or fee reductions.

Regional Coordination and Differences

Community members emphasized the importance of regional coordination between the County and its municipalities to ensure that workforce housing efforts are concentrated within existing communities with access to services and infrastructure. There was a strong desire to define roles and responsibilities more clearly between municipalities and the County, particularly regarding where different types of housing should be located and how infrastructure costs should be shared.

Distinct differences in perspective emerged between the eastern and western portions of the County:

- **East End (Telluride / Mountain Village):** Participants expressed frustration about limited workforce housing progress, skepticism toward the CH zone, and concerns about high density, water availability, and growth pressure.
- **West End (Norwood, Placerville, Wright’s Mesa):** Participants in these areas felt that they are being asked to absorb growth generated by the East End, with particular emphasis on infrastructure limitations, the desire to maintain agricultural and rural character, and the need for coordination between the Town of Norwood and the County on unincorporated areas near the town’s perimeter.

Incentives and Fee Structure

Community members expressed interest in shifting away from restrictive requirements toward more developer incentives that make workforce housing financially viable. Several participants described the current employee housing mitigation fee structure as unclear or inconsistent, suggesting that a review of the methodology could help improve transparency and fairness.

Developers and builders indicated that fee reductions, density bonuses, or expedited review could meaningfully improve project feasibility, especially for small or mid-sized workforce housing developments. Clear deed restriction frameworks and well-defined affordability requirements were also seen as critical to maintaining long-term affordability.

Housing Action Planning

(outside the scope of the San Miguel County Housing Code Update)

While this effort lays the essential groundwork that may inform a Housing Action Plan under SB24-174, it does not fulfill SB24-174 requirements. The County must still complete a separate Housing Action Plan by January 1, 2028, to comply with that statute. The following list includes broader suggestions for housing action planning that came up during the listening sessions.

Financial Incentives

Interest was expressed in adjusting affordable housing mitigation fees, offering fee waivers, and exploring property tax reductions for deed-restricted units. Some participants suggested revisiting Transfer of Development Rights (TDR) programs as a potential local funding or land management tool (see 5A-B. *Considerations for a Transfer of Development Rights Program*).

Programs

Community members highlighted interest in programs that incentivize Accessory Dwelling Unit (ADU) construction, similar to Durango’s ADU rebate or Vail’s Lease to Locals program. Other suggestions included creating temporary or seasonal housing options for local workers, rehabilitation programs for substandard housing, and preservation strategies for existing housing stock.

Revenue Generation

Ideas for funding future housing initiatives included a transfer fee tied to sales tax, an “empty homes” tax, and potential airport landing fees dedicated to workforce housing programs.

Public-Private Partnerships

Participants noted that developers and employers are likely willing to partner on workforce housing projects if meaningful financial, density, and process incentives are available to improve the economic feasibility of below market-rate development. Additional opportunities were identified for HOA participation, Low-Income Housing Tax Credit (LIHTC) projects, and employer-assisted housing efforts.

Existing Code Framework

The San Miguel County Land Use Code (LUC) is the regulatory framework governing all development in unincorporated areas. It consolidates decades of land use policy into a comprehensive system and is updated from time to time as needed. Understanding how the current code works—and where it creates barriers—is essential to developing effective reforms.

How the Code is Organized

The LUC is structured as seven articles, each serving a distinct but complementary function within the county's regulatory framework. The code divides its content into two main categories: the Core Framework (Articles 1-4) and Development Standards (Articles 5-7).

Core Framework (Articles 1-4)

- Article 1 (Administration and Enforcement): This section establishes powers and duties of Boards, Commissions and staff. It describes the administrative structure, assigns authority to the Planning Director, provides enforcement mechanisms, outlines code violation procedures, and details of appeals processes for administrative and Planning Commission decisions.
- Article 2 (Land Use Policies): Article 2 forms the basis of the code by codifying county policies on housing, environmental protection, infrastructure, and other foundational land use priorities. These are typically referenced when making findings on land use decisions.
- Article 3 (Procedures): Procedures for development review, permitting, and other land use actions are organized in Article 3, ensuring an orderly and transparent review process for applicants and stakeholders.
- Article 4 (Submission Requirements): Article 4 specifies all necessary application materials, maps, and documentation needed for various land use processes.

Development Standards (Articles 5-7)

- Article 5 (Standards): This article defines dimensional, use, and service standards according to zone districts, including guidance for special uses such as affordable housing. Zone District standards are contained in Section 5-3, while Affordable Housing regulations are in Section 5-13. Other sections cover Roads, Services, Improvements, PUDs and Subdivision standards, and standards for specific activities and uses.
- Article 6 (Natural Resources): Article 6 directs the management of resource extraction activities, renewable energy development, and environmental protection measures.
- Article 7 (Definitions): LUC terms are defined in Article 7 for consistent interpretation and application of code provisions.

Established Zones

Table 1: Current Zone Districts and Acronyms

Zone District Name	District Acronym	LUC Section
High Density	HD	5-302
Medium Density	MD	5-303
Low Density	LD	5-304
Affordable Housing Planned Unit Development	AH (PUD)	5-305
Single-family Residential	R	5-306
Forestry, Agriculture, and Open	F	5-307
Heavy Commercial	HC	5-308
Low Intensity Industrial	I	5-309
Placerville Residential	PR	5-310
Placerville Commercial	PC	5-311

Zone District Name	District Acronym	LUC Section
Mobile Home	MH	5-312
Park	P	5-313
Open Space	OS	5-314
Public	PUB	5-315
Scenic Foreground Overlay	SFO	5-316
Scenic View Plane	SVP	5-316
Planned Unit Development Reserve	PUDR	5-317
Rangeland Grazing	RG	5-318
Wright's Mesa	WM	5-319.1
Wright's Mesa Town Residential	WMTR	5-319.2
Wright's Mesa Light Industrial	WMLI	5-319.2
Wright's Mesa Rural Agriculture	WMRA	5-319.2
Wright's Mesa Rural Residential	WMRR	5-319.2
West End	WE	5-320
High Country Area	HCA	5-321
Low Density Residential	LDR	5-322
Mixed Use Development	MXD	5-323
Community Housing	CH	5-324

What's Working Well

The following summarizes initial findings of what is working well in the current LUC. Many of these provisions can carry over to other areas of the code or be further expanded to continue to expand upon options to encourage attainable housing in San Miguel County.

- Accessory Dwelling Units (ADUs) and caretaker units are currently eligible for administrative approval in the most prevalent residential districts, ADUs in LD and MD, and caretaker units in F.
- The Community Housing zone provides a path for higher density affordable housing development that can be approved more quickly than PUDs.
- Wright's Mesa zones integrate varied residential and hybrid uses.
- HC and I zones allow housing for employees on site.
- While PUDs are overused, this pathway does function as a flexibility mechanism to grant smaller lot sizes, duplexes, and other multifamily units.
- Height, open space, and setback standards are not overly restrictive in most cases.
- The code already has clear definitions for many non-traditional housing types.
- In some cases, the code applies different standards to projects based on sewer/water availability – these should be carried forward into any code updates.
- Cottage housing is a defined use with standards in the Wright's Mesa Town residential zone district. Recommendations within this document represent an opportunity to be consistent with the Town of Norwood's Land Use Code's definitions of cottage housing.

Identified Barriers

The following summarizes initial findings and potential areas for LUC updates. Each item highlights opportunities to improve efficiency, flexibility, and housing diversity within the County's regulatory framework. More detailed discussion of these topics is provided in the following section on preliminary recommendations to address specific barriers.

- **Lengthy Review Times:** Currently, many land use applications are reviewed by the BOCC and CPC. The County could explore allowing more uses by right or with administrative review to reduce the number of applications reviewed by the BOCC and CPC. More efficient review processes would ensure more timely approvals and help reduce costs of housing construction. For affordable housing projects, the County has already addressed this barrier by adopting the Prioritized Housing Review process.
- **PUD Zoning:** The County is currently heavily reliant on Planned Unit Development (PUD) Zoning, which is a 5-step review process that can take close to 18 months to complete. These long timelines often increase the costs of housing projects. The reliance on PUDs should be reduced by revising the LUC with new and updated standards for uses and developments to enable Administrative, One-Step or Two-Step review.
- **Minimum Residential Lot Size:** The minimum lot size by right in most residential districts is 35 acres (without a PUD). Especially in the low density (LD), medium density (MD), and high density (HD), this lot size should be reduced for qualifying workforce housing projects.
- **Affordable Housing Incentives:** Currently, the code does not offer many financial or regulatory incentives for developers to build affordable and/or workforce housing. While more regulatory incentives could be introduced in the Code, other incentive programs (such as grants, fee waivers or reductions, and revolving loans) could also be explored outside the scope of this project.
- **Missing Middle Housing Types:** Many 'missing middle' housing types such as duplexes, triplexes, and small-lot single-household dwellings are currently not allowed to be built in the unincorporated county without going through a PUD process. Accessory Dwelling Units (ADUs) are allowed under administrative approval in most residential districts, while caretaker units are allowed in the F zone and secondary dwelling units are allowed in the WM zone. Other housing provisions could help house the local workforce, including allowing more than two dwelling units on large lots, mixed-use allowances by right, cohousing, and creating spaces for tiny homes, alternative living spaces, and people living in campers/RVs/vans.
- **Organization:** Clear and consistent organization is important for developers to understand and apply the code to potential projects. Currently there are no standardized use tables, dimensional standard tables, and review process tables that can be easily referenced. Terminology for uses and development standards may also be inconsistent between zone districts.

Analysis and Recommendations

Executive Summary

The following pages include the specific analysis and recommendations on the priority considerations as identified by the project team and further supported by community members engaged with during phase 1 of the project. The specific topics addressed include:

- **Zoning and/or Density Adjustments**
- **Standards for Additional Workforce Housing Types**
- **Regulatory Incentives for Affordable Housing Development**
- **Options for Streamlined Application Procedures/Processes**
- **General Code Structure Enhancements**

In practice, many of these recommendations will influence each other to create more favorable conditions for developers to build housing that is affordable for the local workforce. The recommendations within each topic vary in scale, priority, and impact. Although this report segments the topics into their own sections it is important to realize that they are all interconnected in practice, and the recommendations may transcend a single topic when implemented.

The goal of this audit is to provide the County with the foundation to begin Code amendments that will promote the development of affordable workforce housing while preserving community character. The recommendations are not a fix-all solution to housing throughout the County, but rather a step in the right direction to enable more housing opportunities in the near and distant future.

Tabled Topics

Following initial review of the Code, there were a number of topics proposed for consideration that were researched and discussed but ultimately not carried through due to either a lack of support from the SSR group or a need for further study and engagement beyond the scope of this project. These topics could be useful to examine and develop further in future projects, including as a part of San Miguel County's future housing action planning. Following is a list of those topics and a brief description of why they were tabled:

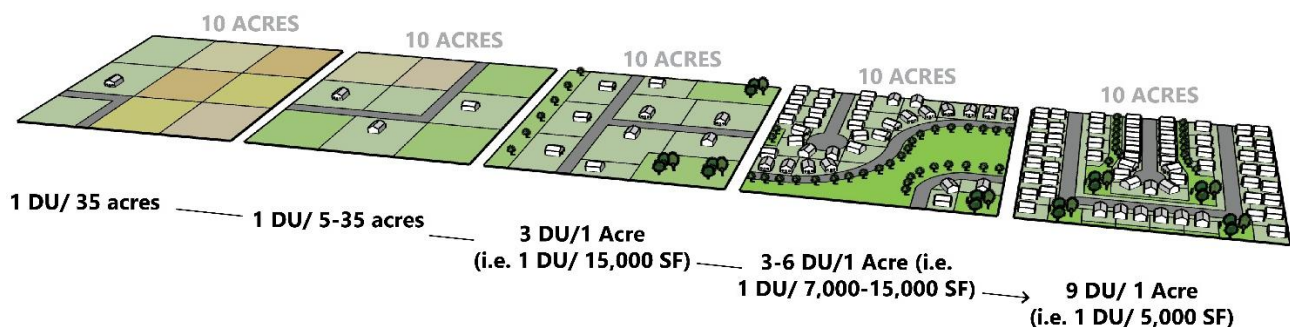
- **Adjust minimum parking requirements for all residential development:** *not proven effective in other communities and would compound current issues further.*
- **Provide application fee reductions or waivers:** *development fees are already low, plan inspection fee cannot be waived, and sales and use tax cannot be waived.*
- **Reductions in open space requirements:** *open space preservation is a community priority.*
- **Consolidate Residential Zones Intended for Lower Density:** *upon further investigation, it was determined that each of the existing low-density districts have a distinct purpose and should not be combined. The Low Density (LD) District is the primary low density residential district in the County that land could be rezoned into. Districts such as Low-Density Residential (LDR) and Single-Family Residential (R) apply to areas so zoned already; it is not intended to provide a mechanism for rezoning areas not currently so zoned.*
- **Incorporate campers, RVs, and vans as a standalone or accessory housing use:** *would require a separate effort to pair the allowance with enforcement programs, but could be developed further in the future.*

- **Adjust/revise the employee housing mitigation program:** *there is strong support for adjustments to the housing mitigation program among the SSR group, including provisions that accommodate seasonal employees as well as a new deed restriction that includes San Miguel County workforce outside of the R-1 Telluride School district. Areas for review include the employee housing mitigation fee; mitigation requirements for development; employee qualifications; and deed restriction and covenant language. These changes would require further discussion with the San Miguel Regional Housing Authority.*
- **Develop a Transfer of Development Rights (TDR) program and integrate affordable housing as an incentive:** *not feasible at this time as this is a lengthy process that would require extensive research and development. This could be a useful item for future work to determine economic feasibility and identify potential sending and receiving areas.*

1. Zoning and/or Density Adjustments

While the Code guides development in patterns that the County deems appropriate, it can also lead to limitations that are inadvertently generating barriers to development of workforce and affordable housing. For example, current density allowances prohibit most workforce housing as a use allowed by right without lengthy PUD processes. Density allowances and minimum lot sizes are often cited as one of the main limiters to provision of affordable housing, especially in unincorporated counties and rural areas. Rural and unincorporated areas generally have larger minimum lot sizes, and allow for fewer residential units per property, largely to preserve the feeling of open space, allow for adequate separation of on-site wells and septic systems, and mitigate urban sprawl.

Community members consistently expressed concerns that increased density would lead to issues with existing infrastructure, especially water quality. All development applications require water rights demonstration (Section 5-605C) and demonstrated water quality standards (Section 5-605B) prior to approval, with local water providers instrumental in determining what can ultimately be built. Increasing the by-right density in residential zone districts can make it possible to create more diverse housing options in the areas that have the infrastructure to support them. These conversations are important to consider when looking at affordable housing and how a land use code may incentivize, or disincentivize, it. The graphic below depicts different residential densities across the same ten-acre parcel.



1A. Reduce Minimum Lot Sizes

Identified Barrier

Currently, most residential zone districts in San Miguel County require a minimum lot of 35 acres, with single-household dwellings as the main use listed as a use by right in the zone district standards sections of LUC Section 5-3. Higher densities require PUD approval. ADUs are allowed per administrative review in the Low Density, Medium Density, and High Density zone districts.

Recommendation

The County should consider eliminating the PUD requirement to develop lots smaller than 35 acres for qualifying workforce housing projects by adjusting minimum lot sizes in the Low Density (LD), Medium Density (MD), High Density (HD), and Wrights Mesa Town Residential (WMTR) zone districts. See *Table 2* below for specific proposed changes.

Table 2: Current and Recommended Lot Size Requirements – Proposed Changes

Zone District	Current Minimum Lot Sizes (by right)	Proposed Minimum Lot Size (by right)*	Tier 1 and 2 Density Bonus**
Low Density (LD)	35 acres	35 acres	2 acres
Medium Density (MD)	35 acres	35 acres	0.5 acre
High Density (HD)	35 acres	35 acres	No minimum
Wright's Mesa Town Residential (WMTR)	5,000 sq. ft.	5,000 sq. ft.	2,500 sq. ft.

*Subdivision approval required to create lots less than 35 acres per Colorado Statute and LUC Section 5-14.

**Development with 50%-79% of the total units deed-restricted will qualify for the Tier 1 Density Bonus. Development with 80%+ of the total units deed-restricted will qualify for the Tier 2 Density Bonus.

Table 3: Current Lot Size Requirements with – No Changes Recommended

Zone District	Current Minimum Lot Sizes (By right)	Proposed Density (By right)
Low Density Residential (LDR)	35 acres	No Change
Single-Family Residential (R)	35 acres	No Change
Community Housing (CH)	Not specified	No Change
Affordable Housing Planned Unit Development (AH) (PUD)	35 acres	No Change
Wright's Mesa Rural Agriculture (WMRA)	35 acres	No Change
Wright's Mesa Rural Residential (WMRR)	As previously platted	No Change
Wright's Mesa Light Industrial (WMLI)	5,000 sq. ft.	No Change
Forestry, Agriculture, and Open Space (F)	35 acres*	No Change

Zone District	Current Minimum Lot Sizes (By right)	Proposed Density (By right)
Placerville Residential (PR)	18,750 sq. ft.	No Change
Placerville Commercial (PC)	7,500 sq. ft. w/o sewer; 3,750 sq. ft. with sewer	No Change
Mobile Home (MH)	2 acres if unsubdivided; 0.5 acre if subdivided on water <i>or</i> sewer; 7,500 sq. ft. if subdivided and on water <i>and</i> sewer	No change
Mixed Use Development (MXD)	Not specified	No Change
High County Area (HCA)	35 acres	No Change
West End (WE)	3 acres*	No Change
Rangeland Grazing (RG)	35 acres	No Change

1B. Adjust Density Allowances

Identified Barrier

The current code specifies the maximum number of dwelling units allowed by lot for each zone district with a minimum lot size. In the LD, MD, and HD zone districts, the density allowances through a PUD process align well with the intentions of the East End Master Plan. However, with minimum lot sizes of 35 acres paired with a density maximum of one dwelling unit per lot, the allowances in these districts *by right* do not align well with the East End Master Plan.

For context, the LD, MD, and HD zone districts make up a small fraction of land in the county, with no parcels currently zoned for High Density. Mountain Village was zoned HD when the PUD was approved, but it was removed from the County's land use maps when it incorporated. The 1989 Master Plan had very few parcels eligible for medium to high density development. The 2024 East End Master Plan allows the MD and HD zone district to be considered in limited areas in the east end of the County where infrastructure makes these densities more achievable.

Recommendation

It is highly recommended that the County increase the density allowances for qualifying workforce housing projects in the LD, MD and HD zone districts while keeping the density allowances for market-rate housing the same. These density bonuses would roughly correlate to the current densities allowed through the PUD process, although subdivision approval may still be required – meaning that qualifying workforce housing projects could build higher densities already allowed through PUD, but under a one-step or two-step process. This will align with the adopted policy guidance in the 2024 East End Master Plan to allow for a moderate density of housing while still being an appropriate level of housing for the County. See section 3A for more information on density bonus criteria, following the R-1 Housing Deed Restriction in Section 5-1304.

In addition to increasing select density allowances, it is highly recommended to adjust the 40 people/acre maximum density allowed through PUD in the HD Zone to be standardized as dwelling units (DU) per acre for consistency. Based on an average household size of 2.2 (San Miguel County Regional

Housing Needs Assessment, 2025), 40 people/acre would roughly translate to about 15 DU / acre. See Table 4 and 5 for current density allowances by right, by PUD, and recommended changes with density bonuses applying to developments with 50% or more deed-restricted units.

Table 4: Current and Recommended Density Allowances – Proposed Recommendations No Changes Recommended

Zone District	Current Density Allowances (By right)	Proposed Maximum Density with PUD	Proposed Density (By right)	Tier 1 Density Bonus*	Tier 2 Density Bonus**
Low Density (LD)	1 DU / 35 acres + 1 ADU	1 DU / 7 acres (no change)	1 DU / 35 acres + 1 ADU	1 DU / 7 acres	1 DU / 5 acres
Medium Density (MD)	1 DU / 35 acres + 1 ADU	1 DU / 3 acres (no change)	1 DU / 35 acres + 1 ADU	1 DU / 3 acres (up to 25 units outside of PUD process)	1 DU / acre (up to 50 units outside of PUD process)
High Density (HD)	1 DU / 35 acres + 1 ADU	10 DU / acre min 20 DU / acre max (changed from population per acre)	1 DU / 35 acres + 1 ADU	10 DU / acre (up to 50 units outside of PUD process; minimum 6 DU / acre)	20 DU / acre (up to 100 units outside of PUD process; minimum of 10 DU / acre)

*Development with 50%-79% of the total units deed-restricted will qualify for the Tier 1 Density Bonus

**Development with 80%+ of the total units deed-restricted will qualify for the Tier 2 Density Bonus

Table 5: Current and Recommended Density Allowances – No Changes Recommended

Zone District	Current Density Allowances (By right)	Current Maximum Density with PUD	Proposed Density (By right)	Proposed Density Bonus
Community Housing (CH)	20 DU / acre	Not Specified	20 DU / acre (up to 175 units outside of PUD process)	N/A
Affordable Housing Planned Unit Development (AH) (PUD)	1 DU / 35 acres	15 DU / acre	No Change	NA
Low Density Residential (LDR)	1 DU / 35 acres	1 DU / 6-8 acres	No Change	NA
Single-Family Residential (R)	1 DU / 35 acres	1 DU / 9,375 sq. ft.	No Change	NA
Wright's Mesa Rural Agriculture (WMRA)	1 DU / 35 acres	Not Specified	No Change	NA
Wright's Mesa Rural Residential (WMRR)	1 DU / 35 acres	Not Specified	No Change	NA
Wright's Mesa Light Industrial (WMLI)	1 DU / 5,000 sq. ft. (8 DU/acre)	Not Specified	No Change	NA
Wright's Mesa Town Residential (WMTR)	1 DU / 2,500 sq. ft. for duplex (17 DU/acre)	Not Specified	No Change	NA

Zone District	Current Density Allowances (By right)	Current Maximum Density with PUD	Proposed Density (By right)	Proposed Density Bonus
Forestry, Agriculture, and Open Space (F)	1 DU / 35 acres	1 DU / 35 acres	No Change	NA
Placerville Residential (PR)	1 DU / 18,750 sq. ft.	Not Specified	No Change	NA
Placerville Commercial (PC)	1 DU / 3,750 sq. ft. (with central sewer service)	Not Specified	No Change	NA
Mobile Home (MH)	Not Specified	Not Specified	No Change	NA
Heavy Commercial (HC)	Not Specified	Not Specified	No Change	NA
Low Intensity Industrial (I)	1 DU / 35 acres	Not Specified	No Change	NA
Mixed Use Development (MXD)	NA - PUD required	Not Specified	No Change	NA
High County Area (HCA)	1 DU / 35 acres + bonus per OLP	Not Specified	No Change	NA
West End (WE)	2 DU / 35 acres	Not Specified	No Change	NA
Rangeland Grazing (RG)	1 DU / 35 acres	Not Specified	No Change	NA

1C. Reduce Setbacks

Identified Barriers

Reducing lot coverage and setback standards for workforce housing projects can improve site efficiency and design flexibility while maintaining appropriate neighborhood scale. In the East End Master Plan, a recommended action is to “establish flexible front setback allowances that will encourage multi-family, mixed-use, and commercial developments that create a strong interaction with the street edge and support walkability”. Many of the dimensional standards in the current code already provide some increased flexibility for front setbacks through the PUD process, however, this project has identified that the County needs to reduce reliance on PUDs to ensure more predictability in development.

Recommendation

It is recommended to adopt setback allowances in the LD, MD, and HD zones that align with setbacks allowed under the PUD process in these zone districts. Once these setback allowances are adopted, the County should remove the current setback limits outlined for the PUD process so that these standards can be determined on a case-by-case basis, if different than the standard established setback.

Table 6: Current and Recommended Setback Requirements – Proposed Recommendations

Zone District	Existing Setback (Front, Rear, Side)	Proposed Change (Front, Rear, Side), not including building envelope	Code Section to Update
Low Density (LD)	50', 50', 50'	25', 25', 25'	5-304G.II Setbacks
Medium Density (MD)	30', 20', 20'	20' (10' for alley loaded lots), 20', 10'	5-303G.III Setbacks
High Density (HD)	30', 30', 30'	15' (10' for alley loaded lots), 15', 10' 15' perimeter for multi-household dwellings	5-302F.II Setbacks
All Other Zones	Varies	No Change	NA

1D. Redefine the Community Housing Zone

Identified Barriers

The Community Housing (CH) zone was created in 2021 with the intent of facilitating affordable housing development. The standards themselves are strong and could serve as a model for reform – including high density allowances, parking maximums, housing diversity requirements, net-zero energy encouragement, no lot size minimums, and allowing missing middle housing types. However, this zone still requires discretionary Planning Commission and BOCC review, which can take upwards of 3-6 months and may not be compatible with *Prioritized Housing Review* as proposed in Section 3A. Many of the density and dimensional standards adjustments proposed in other zone districts throughout this audit report make the CH zone less critical for higher density housing as they will provide the opportunity for development by right at similar densities to the CH zone district. However, those other zone districts do not require deed-restricted affordable housing development at the same level as the CH zone; in that way, the CH zone remains valuable as an alternative to the AH-PUD zone.

Height limitations have been noted as a factor in achieving optimal development in the CH zone district. San Miguel County currently limits building height to 35 feet (approximately three stories). While this is appropriate for the lower-density districts such as R, LD, and LDR, allowing additional height or density for developments that provide affordable units and multi-family housing could encourage projects in suitable areas with existing infrastructure and services. Buildings with larger footprints are penalized because of the way height is measured, especially if the building site is sloped. In the CH zone, additional height is allowed as an incentive for 'net-zero' development, which means producing enough energy through the use of measures such as solar panels, passive design, and other means to offset the energy consumed on an annual basis. This has been identified as a potential barrier to affordability given the extra construction costs to achieve 'net-zero' status. Additionally, not all properties are suited to net zero development. For context, the MXD zone allows additional height for affordable housing in excess of the required number of units. Encouraging net-zero development continues to be a goal of the County and should continue to be incentivized.

Recommendations

It is recommended that the following items be addressed in the CH zone district per the proposed redlined text in Appendix A:

- Revise purpose statement to better reflect community priorities;
- Retain density of 20 dwelling units / acre;
- Allowing ADUs, cohousing units, and cottage housing units;
- Continue to allow some Alternative Living Spaces;
- Retain limits on free-market units; and
- Allow development up to 45 feet for multi-household and mixed-use buildings in addition to development that will be net zero on an annual basis.

2. Standards for Additional Workforce Housing Types

As standards for additional workforce housing types are considered, it's important to evaluate their regional impacts and potential locations. Beyond the CH zone, residents in the west and east ends of the county have expressed frustration about where different housing types should be located and how infrastructure costs should be shared, especially given ongoing growth pressures and infrastructure constraints. However, not all affordable housing development needs to be high density, multi-family development – lower density options in most cases are more appropriate for the unincorporated county, while still allowing more diverse types than one single-household dwelling on a 35-acre lot.

It is strongly recommended to expand the allowance for additional housing types in more residential zone districts (including permitting duplexes, live/work units, cottage housing, and cohousing) to help address the need for affordable and workforce housing in the county. Allowing these housing types through an administrative review process, rather than the lengthy and discretionary PUD approval, can significantly reduce project timelines and costs, responding directly to feedback regarding delays and barriers in the existing system. Under the current framework, the PUD process takes an average of 18 months, requires multiple public hearings, and offers no by-right approval path for multifamily housing in the higher density zones. Streamlining the process for approval of a wider range of housing types in more districts will provide much-needed predictability, incentivize innovative and attainable housing options, and promote housing feasibility for residents and developers.

2A. Update Household Definitions

Identified Barriers

The current code combines townhomes into the definition of multi-family dwelling but they are distinctly different. A townhome is typically permitted as a single-family dwelling attached to other single-family dwellings side by side. A multi-family dwelling is typically permitted as a single building housing individual dwelling units or apartments.

Recommendations

It is recommended to separate the household definitions to establish 4 separate housing types and group them in Article 7 all together as a “dwelling”:

- Duplex dwelling
- Single-household attached dwelling (Townhomes)

- Detached single-household dwelling
- Multi-household dwellings (apartments or condominiums)

It is also recommended to add a definition for *cohousing* that distinguishes it from *rooming houses*. The key distinction is that a rooming house is based on the rental of individual sleeping rooms, often with transient or unrelated occupants and shared facilities, whereas cohousing is an intentionally planned residential community where residents have their own sleeping and sanitation facilities and share common amenities and spaces, including a shared primary kitchen facility.

The definition of Accessory Dwelling Unit includes standards and metrics that should be relocated to specific use standards, therefore an updated definition is being recommended in Appendix A.

All new or updated use terms will need to be updated in Article 5, Section 5-3, Zone District Standards as well as anywhere else that the dwelling types are referred to. See Appendix A for redlines of Article 7.

2B. Expand Housing Type Use Allowances

Identified Barriers

Expanding by-right allowances for a broader range of housing types represents one of the most straightforward and effective ways to reduce regulatory barriers to housing development. In the current code, most housing options beyond single-household detached dwellings require discretionary review processes that add time, cost, and uncertainty for applicants. Community feedback identified these requirements as a significant obstacle to housing choice and affordability. Allowing compatible housing types through streamlined approval processes is a common best practice used by communities across the country to increase housing supply, support attainable housing opportunities, and provide a wider range of housing options while maintaining neighborhood character.

Recommendations

It is recommended to change the use allowances to allow for Duplex and Single-household Attached (townhomes) wherever single-household detached home types are allowed, provided that the project meets requirements for density allowances and review standards for public services, water supply, wastewater treatment, road access, wildlife friendly fences, environmental impacts, scenic views, and maintenance plans. If recommendations in Section 1B of this document are carried out, it will only be possible to create additional housing types beyond single-household dwellings and subordinate units in the LD, MD, and HD zone districts if the Tier 1 or Tier 2 Density Bonus criteria are met.

Single-household, duplex, and townhomes housing types should be allowed to be up to 35 feet in height, with multi-household and mixed use residential buildings up to 45 feet in height.

Text in black represents current allowances with proposed new text in red underline and text to be removed in ~~strikeout text~~. The proposed changes will also need to be made to LUC Section 5-3 - Zone District Standards. All uses identified as approved by right or by the admin, 1-step, and 2-step process will also be allowed by PUD but will not *require* a PUD for approval.

Table 7: Current and Recommended Housing Type Allowances – Proposed Recommendations*

Zone District	By Right	Admin Review	1-Step	2-Step	PUD
LD	Single-household detached dwelling with <12,000 sq. ft. of floor area; <u>Accessory Dwelling Units with up to 1,000 sq. ft. of floor area</u>	Accessory Dwelling Units	<u>Duplex dwelling buildings with <12,000 sq. ft. of total floor area</u>	<u>Single-household dwellings and duplex dwelling buildings with >12,000 sq. ft. of total floor area.</u>	Duplex dwellings
MD	Single-household detached dwellings with <12,000 sq. ft. of floor area; <u>Accessory Dwelling Units with up to 1,000 sq. ft. of floor area</u>	Accessory Dwelling Units <u>Duplex dwellings</u>	<u>≤5-acres: Single-household attached dwellings with 8 units or less</u>	<u>>5 acres: Single-household attached with up to 20 units; cottage housing; cohousing; multi-household with 20 units or less</u>	Duplex residences; Multi-family residences <u>>5 acres: Single-household attached with 21+ units</u>
HD	Single-household detached dwelling with less than 12,000 sq. ft. of floor area; <u>Accessory Dwelling Units with up to 1,000 sq. ft. of floor area</u>	Accessory Dwelling Units <u>Duplex dwellings</u>	<u>≤5 acres: Single-household attached dwellings with 20 units or less; rooming houses; cohousing; cottage housing; RV, tiny home, yurt and other alternative living spaces (no more than 20% of total units)</u>	<u>>5 acres and/or with a total of 100 units or less: Single-household attached; duplex; multi-household; rooming house; RV, tiny home, yurt and other alternative living spaces (21% or more of total units)</u>	Duplex residences; Multi-family residences

Zone District	By Right	Admin Review	1-Step	2-Step	PUD
CH	<u>Single-household detached dwelling with <12,000 sq. ft. of floor area;</u> <u>Accessory Dwelling Units with up to 1,000 sq. ft. of floor area</u>	Temporary Alternative Living Space sites	≤5 acres: Single- <u>household</u> dwellings, attached and/or detached ; duplex dwellings; multi- <u>household</u> dwellings; rooming houses; RV, tiny home, yurt, and other alternative living spaces (no more than 20% of total units); <u>cohousing; cottage housing</u> ; One (1) Free-market (not deed restricted) dwelling unit; <u>Neighborhood Commercial Uses with up to 1,000 sq. ft. of floor area that offer goods and services needed by residents of the development on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry, medical and dental offices and clinics, and postal service substation</u>	>5 acres: Single-household dwellings attached and/or detached ; duplex dwellings; multi- <u>household</u> dwellings; rooming houses; RV, tiny home, yurt and other alternative living Spaces (21% or more of total units); <u>cohousing; cottage housing</u> ; free-market (not deed restricted) dwelling units: a. Comprising 10% or less of the total units for a development that is not net zero on an annual basis; or b. Comprising 20% or less of the total units for a development that is net zero on an annual basis; <u>Neighborhood Commercial Uses with up to 2,000 sq. ft. of floor area that offer goods and services needed by residents of the development on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry, medical and dental offices and clinics, and postal service substation</u>	Free Market dwelling units comprising 11% of non-net zero development or 21% of net zero development; <u>Neighborhood Commercial Uses with greater than 2,000 sq. ft. of floor area that offer goods and services needed by residents of the development on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry, medical and dental offices and clinics, and postal service substation</u>
AH-PUD	Single- <u>household</u> detached dwelling;	NA	NA	NA	Duplex dwellings; single- <u>household</u> dwellings <u>attached and/or detached</u> ; <u>Accessory Dwelling Units</u> ; multi-

Zone District	By Right	Admin Review	1-Step	2-Step	PUD
					<u>household</u> dwellings; rooming houses; Neighborhood Commercial Uses that offer goods and services needed by residents of the PUD on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry and postal service substation; and <u>cohousing</u> ; <u>cottage housing</u> ; <u>live-work and mixed-use residential</u> ; <u>RV, tiny home, yurt and other alternative living spaces</u>
WMRR	Single- <u>household</u> detached dwelling (manufactured and mobile homes on permanent foundations)	NA	NA	NA	NA
WMLI	Single- <u>household</u> residential; Live/work dwelling <u>Mixed-use residential</u>	NA	NA	NA	NA
WMTR	Single- <u>household</u> detached dwelling (manufactured and mobile homes on permanent foundations); duplex;		Rooming House; Cohousing	Cottage Housing; multi- <u>household</u> dwellings	NA
F	Single- <u>household</u> detached dwelling; <12,000 sq. ft. of floor area, mobile home; <u>First Caretaker Unit</u>	Caretaker Unit ; Second Caretaker unit (<u>deed restricted</u>)	NA	<u>Cohousing units</u>	NA

Zone District	By Right	Admin Review	1-Step	2-Step	PUD
HC	NA	NA	Affordable Mixed-use residential housing for persons employed on-site		NA
I	Single-household detached dwelling	NA	NA	NA	Affordable Housing, accessory to a principal use, for persons employed within the PUD, and Live-work Housing; Mixed-use residential
PUB			Accessory Affordable Housing with at least 50% of the units reserved for employees employed on-site or for First Responders or Essential Personnel; RV, tiny home, yurt and other alternative living spaces		

**additional accessory and non-residential uses may be allowed in addition to what is shown in Table 7.
This report does not recommend any changes to those uses.*

Table 6: Current and Recommended Housing Type Allowances* – No Substantive Changes Proposed

Zone District	By Right	Admin Review	1-Step	2-Step	PUD
LDR	Single-household dwelling on lots containing 35 acres or more, with a residence containing less than 12,000 sq. ft. of floor area	NA	NA	NA	NA
R	Single-family dwellings	NA	NA	NA	NA

Zone District	By Right	Admin Review	1-Step	2-Step	PUD
WM	Parcels < 150 acres: Single-family dwellings (including mobile homes) and accessory buildings; Parcels > 150 acres: Single-family dwellings (including mobile homes) and accessory buildings; <u>First Secondary Dwelling Unit</u>	Parcels > 5 acres: <u>Additional</u> Secondary Dwelling Unit no more than 2,000 sq. ft. of floor area	Secondary Dwelling Units more than three hundred (300) feet from the primary residence		
WMRA	Dwelling, Single-family (manufactured and mobile homes on permanent foundations); <u>First Secondary Dwelling Unit</u>	<u>Additional</u> Secondary Dwelling Unit	NA	NA	NA
PR	Single- <u>household</u> detached dwellings	NA	NA	NA	NA
PC	Single- <u>household</u> detached dwellings	Accessory Rental Dwelling Units for Persons Employed in the PC Zone District	NA	NA	NA
MH	Single- <u>household</u> detached dwellings; mobile home		NA	NA	NA
MXD	NA	NA	NA	NA	Employee housing

**additional accessory and non-residential uses may be allowed in addition to what is shown in Table 7.
This report does not recommend any changes to those uses.*

***see LUC Section 5-1302B.IV, 5-307, 5-319.1, and 5-319.2 for criteria for Accessory Dwelling Units, second Caretaker, or Secondary Dwelling Unit*

2C. Expand Allowances for Mixed-Use Workforce Housing

Identified Barriers

Live/work units are currently defined in the code (Section 5-1305B.V) as “a multi-family structure located within the Low Intensity Industrial (I) Zone containing Affordable Housing dwelling units, and industrial space.” This definition could be expanded to include commercial, mixed-use, and higher density residential zones, with the option to house any workers in the R-1 Telluride School District area or larger region, rather than limiting housing to on-site employees only. The East End Master Plan currently recommends incorporating live-work units into Commercial/Industrial zones, as well as expanding opportunities to create live-work dwelling units as an accessory use in commercial development.

Recommendations

As the intention behind live-work housing is to allow workforce housing mixed in the commercial uses, it is recommended to replace the terms *live-work housing* and *live/work dwelling* with the term *mixed-use residential* and define the new term in Article 7 (see redlines for Section 2A in Appendix A). The existing references to live-work housing in the Wright’s Mesa zone districts should then be changed to mixed-use residential and the use expanded to include Commercial, and Industrial zone districts to house off-site workers. See *Table 7 and 8* in Section 2B for changes to use allowances and make the changes suggested below:

- Section 5-309D – PUD Use Allowances, references live-work housing as defined in 5-1305B – this reference should remain and include direction to the new Article 7 definition of mixed-use residential.
- Section 5-319.2D.III Wrights Mesa Light Industrial zone district references live-work units and Table 5-319.2-3 lists live/work dwelling as a permitted use subject to compliance with additional regulations – these references should be change to mixed-use residential

2D. Expand Subordinate Residential Unit Allowances

Identified Barriers

Although Accessory Dwelling Units (ADUs) are currently permitted in the higher-density residential districts through administrative approval, the County could strengthen this allowance by making them a by-right use and introducing incentives to encourage their development. The difference is that *by-right* allows the use outright with the application of a development permit and administrative approval requires submission of an application for review and decision by the Planning Director based on a standard set of criteria.

The F zone allows a caretaker unit of up to 2,000 sq. ft. on parcels that are larger than 35 acres, and on parcels that are 5-35 acres in the Telluride R-1 School District as Use Allowed Subject to Administrative Review. Caretaker units are prohibited in the San Miguel Canyon because most properties are small and on residential wells, which are restricted to one dwelling unit only. Domestic well permits, which are issued to larger parcels by the Colorado Department of Water Resources, typically allow up to three dwelling units. The code currently limits properties to two dwellings – the primary dwelling and the caretaker unit. Caretaker or Secondary Dwelling Unit allowance in the F and WMRA zone districts could be increased subject to demonstrating that the property has a domestic well permit issued by the State Division of Water Resources for three units.

Similarly, the Wright's Mesa (1991) and WMRA (2010) zone districts allow a Secondary Dwelling Unit as a Use Allowed Subject to Administrative Review and subject to certain qualifications. The WMRA district allows 2500 sq. ft., and WM allows 2000 sq. ft., which is inconsistent.

There is the capacity to allow two Caretaker or Secondary Dwelling Units on properties with domestic well permits, or that are served by a water provider, in exchange for deed-restricting one or both of the units. Relief could also be given to deed-restricted units by allowing them to be located more than 300 feet from the primary residence.

Additionally, the County could provide pre-approved architectural templates to reduce design costs as well as consider increasing the maximum size allowance for ADUs that are deed-restricted. ADUs would continue to be restricted from short-term rental use (less than 30 days), with the current provisions allowing them to be voluntarily deed-restricted in exchange for an Employee Housing Impact Fee credit.

Recommendations

It is recommended to expand the ADUs allowance in LD, MD, and HD zone districts and Caretake and Secondary Dwelling Unit allowance in the F and WMRA zone districts per the following:

- Increase the maximum floor area of ADUs from 800 square feet to 1,000 square feet.
- Allow ADUs by-right in the LD, MD, HD, CH, and WMTR zones. See *Table 7* in Section 2B.
- Allow one (1) additional ADU by administrative review with deed restriction in the LD, MD, and HD zone districts.
- Allow one (1) Caretaker Unit or Secondary Dwelling Unit as a use by right in the F, WM, and WMRA zone districts.
- Allow one (1) additional Caretaker Unit or Secondary Dwelling Unit by administrative review with deed restriction in F, WM, and WMRA zone districts on properties with domestic well permits or public water.
- Increase separation requirements for Caretaker and Secondary Dwelling Units from 300 feet to 500 feet from the primary dwelling for deed restricted units.

Recommendations

2E. Incorporate Cottage Housing, Cohousing, and Tiny Homes

Identified Barriers

The current WMTR zone district includes cottage housing but other districts are silent on this housing type. Additionally, LUC Table 5-319.2-3 lists cottage housing as an SUP through a 2-step process; however, in LUC Table 5-319.2-4 and in the special use standards it is listed as "allowed by PUD", which is conflicting. One effective way to achieve middle density while maintaining existing community character is to allow for clustering of small units on a single parcel of land. Cottage housing typically includes smaller footprint homes for rent or condominium ownership, organized around common open space. Many communities have utilized this housing type to accommodate tiny home communities.

Rooming houses are allowed in CH, PR, R, AH-PUD, and WMTR but as discussed in Section 2A, there is a distinct difference between rooming houses and cohousing. Cohousing can help provide housing options

for local workers, seniors, and year-round residents by reducing individual housing costs through shared amenities and common spaces. It also fosters social connections, resource sharing, and a strong sense of community, helping maintain a stable resident population and preserving community character in areas often challenged by seasonal occupancy and housing affordability pressures.

Recommendations

It is recommended to expand the allowance of cohousing in the F, WMRA, AH-PUD, CH, MD, and HD zones, when the applicant has demonstrated sufficient water capacity to serve the additional units (see *Table 7* for specific redlines).

Tiny homes, RVs, yurts, and other alternative living spaces are currently allowed in the CH zone as long as they are subject to the County's R-1 Housing Deed Restriction, which restricts their use as short-term vacation rentals. Consider allowing these uses through a 1-step or 2-step process in the CH and HD zones when they will house members of the seasonal workforce. These alternative living spaces should be considered dwelling units for the purpose of complying with density allowances. For example, ten tiny homes on a two-acre lot would be considered five dwelling units per acre.

It is recommended to allow the use of cottage housing to other zone districts by a 1-step or 2-step process in the MD, HD, CH, and WMTR zones per *Table 7* of this report. Move the definition from LUC Section 5-319.2K to Article 7. Add cohousing standards to LUC Section 5-10 as well. See Appendix A for redlines to the specific cottage housing and cohousing standards that need to be created or moved to LUC Section 5-10 - Special Uses.

Short-term rentals should be prohibited in cottage housing, cohousing, and alternative living spaces.

3. Options for Streamlined Application Procedures

3A. Implement a Streamlined Review Process for Affordable Housing

Identified Barriers

Developers expressed that the time-intensive application process is a significant disincentive to creating affordable units. Even the perception of lengthy processes can deter developers from creating affordable workforce housing development in San Miguel County. Many noted that it is difficult or impossible to build missing-middle housing, a strong community desire, without going through the PUD process, an unpredictable and non-transparent process. This additional layer of review increases costs through significant entitlement delays and uncertainty, discouraging private investment in workforce and affordable housing. In addition, the building season is short in San Miguel County since it depends on climate and weather conditions; therefore, prolonged or time-intensive application processes can eat into the building season and drive the price of construction above what would be feasible for developers to price units at affordable rates.

Current Process

The majority of residential development applications that would likely be used for workforce housing require going through the PUD process, which typically takes about 18 months to complete. The County's current zoning framework establishes a clear, but often lengthy, review process for most higher-density residential zones that could accommodate affordable or workforce housing. The HD zone and workforce-oriented zones like CH and AH-PUD allow a broader range of housing types at 15–20 units per acre but

still require multi-step review processes lasting 6 to 12 months or more. By comparison, residential development in single-household zones like F and WM is reviewed administratively and can move from application to approval in just 4-6 weeks. This imbalance underscores the need for an expedited review process for affordable and workforce housing to reduce permitting timelines in zones that may be able to support higher density and mixed-income development.

To alleviate these barriers and stay compliant with Proposition 123 requirements, the County adopted the Prioritized Housing Review program on June 3, 2026 with the following customizations to the minimum requirements:

- Increase rental housing AMI requirement from 60% AMI to 120% AMI, and for-sale housing from 100% AMI to 200% AMI
- Customize list of applications to those that are in the San Miguel County LUC
- Include a list of ineligible applications as well as those that are eligible
- Clarify that all other standards and procedures still apply to all applications

Recommendation

The County should track trends related to the number of successful Prioritized Housing Review applications annually, including number of applications, number of extensions needed, review times for each application, and level of affordability. The Prioritized Housing Review process should be posted clearly on the housing page of the County's website with affordable housing developers encouraged to submit eligible applications.

3B. Reduce Reliance on Planned Unit Developments (PUDs)

Identified Barriers

Nationwide, many communities are shifting away from the use of PUDs due to complexity in administering PUD standards, unpredictable standards, and lack of flexibility within the PUD approval. Traditionally, PUDs were used to "negotiate zoning" in exchange for community benefits, often resulting in mixed use developments, residential subdivisions with smaller lots or reduced setbacks, or unique developments that were not otherwise allowed by the land use code but met community goals. However, the initial approval process for PUDs is lengthy, and long-term enforcement of standards is tricky. Additionally, as communities evolve and new priorities emerge, amending PUDs has been difficult and lengthy. As a result, many communities are reducing their dependence on PUDs to meet community goals by revising zone district standards like minimum lot size and density and use allowances. The County's use of PUDs is a remainder from the 1980s and early 1990s, when the County first began seeing major developments.

San Miguel County's current PUD process is very lengthy, requiring multiple Planning Commission and Board of County Commissioner approvals, taking 18 months or more. The LUC contains standards for Insubstantial PUD amendments (LUC Section 5-1502), which can be approved administratively with sign-off by the BOCC, and Substantial PUD amendments, which are considered as a two-step process (LUC Section 5-1503). The threshold between Insubstantial and Substantial could be evaluated to determine if more changes could be considered administratively. That is outside the scope of this project.

The PUD-based zoning established in the late 80s and as envisioned by the 1989 Telluride Regional Area Master Plan has been fully utilized. All land zoned PUD-R has been rezoned. It would be appropriate to amend certain zone districts, especially the LD, MD and HD zones, to eliminate the requirement for PUDs

for development that provides significant affordable housing. The AH-PUD, LDR and MXD zones have specific purposes and as such, PUDs should remain the mechanism for approving development.

Recommendations

Implementing the recommendations contained in Sections 1 and 2 related to lot sizes and density increases, setback reductions, and adjusted use allocations would facilitate the removal of a PUD requirement for larger developments in the county

4. Regulatory Incentives for Affordable Housing Development

In addition to allowing greater residential densities where appropriate, incorporating various development incentives into zoning regulations is a tool for the County to encourage the development of affordable and workforce housing rather than requiring it. Development incentives can range from reduced site requirements, waived permitting fees, shared parking allowances, density and height bonuses, and expedited permitting procedures. Community members and developers alike have expressed interest in shifting away from restrictive requirements toward incentives, such as fee reductions, density bonuses, and expedited reviews, which make workforce housing more financially viable. The following recommendations apply only to qualifying affordable or workforce housing development applications.

4A. Establish Qualifying Criteria for Affordable Housing Incentives

Identified Barriers

If the County moves forward with enabling incentives for affordable housing such as density bonuses, clear affordability definitions and qualifying criteria must be established. These provisions should identify the level of affordability required for both rental and ownership housing, the period of affordability required, and whether to limit eligibility to housing serving the local workforce.

“Affordable housing” is already defined in Section 5-1305B of the existing code as “Residential dwelling units in the Telluride Region that are permanently deed restricted by the County’s R-1 Housing Deed Restriction to limit use and occupancy to persons (and their families) who live and earn their livings primarily in the R-1 School District of San Miguel County, or such other deed restriction as approved by the BOCC.”

Community members indicated that the current deed restrictions and overall process may not be working well, with many seasonal employees, new arrivals, and residents and workers outside the R-1 School District exempt from qualifying for deed-restricted housing. To qualify to purchase a deed-restricted home by SMRHA standards, an ownership applicant must be either a current local employee, a retired or disabled local employee, or meet an alternative standard with income not exceeding 100% AMI. For rental projects, units cannot be rented to qualified tenants for less than 12 months. Qualified tenants must work a minimum of 1200 hours per year with a minimum of 40 hours in each of the last 8 months, and the majority of household income must come from employment from within the boundaries of the Telluride R-1 School District.

Recommendations

It is recommended to continue researching options for refining the definition of affordable housing to include seasonal workers for rental units, as well as residents and workers in San Miguel County outside of the R-1 Telluride School District. This will require coordination with the San Miguel Regional Housing

Authority. Amendments to deed restrictions and covenants, and to Section 5-13, are outside the scope of this project but should be developed as a part of future action items.

5. General Code Structure Enhancements

Community members expressed a need for a clearer code and a more transparent process. Some want more clarity around the Community Housing zone, including its purpose, criteria, and where it applies. Others are looking for more predictable and transparent steps for applying to build affordable housing units. These improvements could extend across the entire code, using visual aids like graphics to explain concepts and standardized tables and definitions to support consistency.

Modernizing code structure by unifying tables and definitions, and expanding visual communication tools, makes the code more user-friendly for public and professional audiences. A clear, navigable land use code reduces errors, speeds up project approvals, and could potentially lower compliance costs. Improved code organization and presentation are proven best practices in housing affordability reforms nationally, helping local governments provide greater regulatory predictability while increasing opportunities for new and diverse housing supply.

To unify the code structure, the following measures are recommended to be implemented in the future as part of a more comprehensive LUC update:

- **Standardize definitions and terms.** Every term used within the code should be clearly defined and uniformly applied, supporting accessible and predictable enforcement.
- **Create consolidated use tables for all zone districts.** Land uses should be consistently listed and categorized, eliminating disparities and reducing confusion between different areas, such as Wright's Mesa compared to other parts of the county.

Example Use Table

Table 3.4: Schedule of Use Regulations										Use Standards
Use Type	RE Zoning District	R-1 Zoning District	R-2 Zoning District	R-3 Zoning District	O Zoning District	CBD Zoning District	C Zoning District	NB Zoning District	I Zoning District	
Residential Uses										3.06.3
Dwelling, accessory unit - ADU	P	P	P	P		P	P	P		3.06.3B
Dwelling, cottage cluster			P	P			C			3.06.3C
Dwelling, duplex			P	P			C	P		3.06.3D
Dwelling, single-family attached (up to 6 units)			P	P			C	P		3.06.3E
Dwelling, single family attached (7 or more units)			C	P			C	C		3.06.3E
Dwelling, single-family detached	P	P	P	P			C	P		3.06.3F
Dwelling, manufactured home			P	P			C			3.06.3G
Dwelling, micro-home			P	P			C	P		3.06.3H

- **Integrate a development standards matrix.** Presents key standards (including maximum zoned density, height limits, site area, coverage, and wall/fence standards) within a single, easy-to-read table for every zone, allowing direct comparison and clear expectations for future development.

Example Development Standards Table

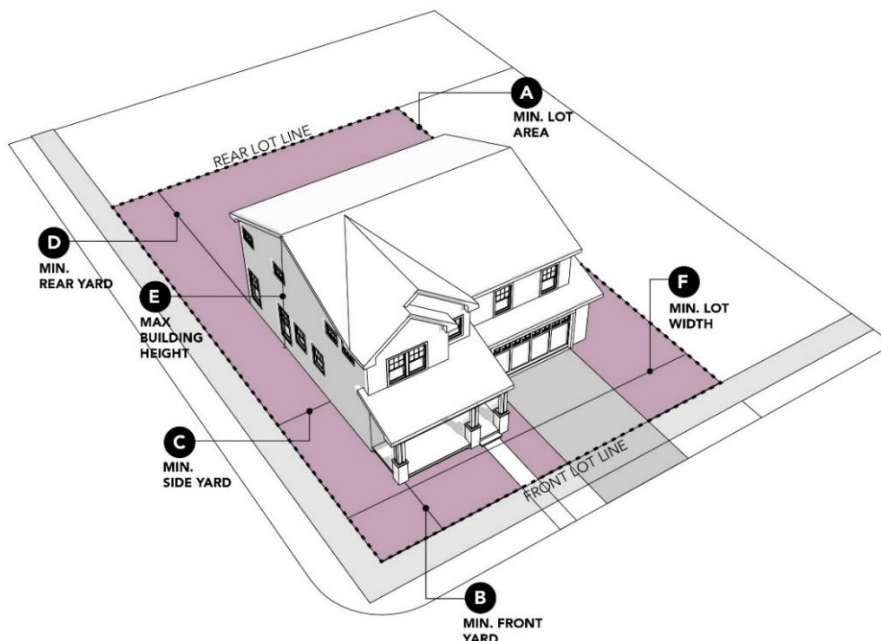
	Zoning District RE	Zoning District R-1	Zoning District R-2	Zoning District R-3
Minimum lot area (sq. ft.)	43,560 sf	6,000 sf	4,000 sf for single-family detached dwelling unit	4,000 sf for single-family detached dwelling unit
Residential density (units/acre)	-	-	16 units/acre ⁽²⁾ for all dwellings, except for single-family detached	20 units/acre ⁽²⁾ for all dwellings, except for single-family detached
Min. front yard setback (ft.) ⁽³⁾	50'	15' 20' to garage	15' 20' to garage	15' 20' to garage
Min. side yard setback – interior lot (ft.)	50'	5'	5' 10' for multi-family dwellings	5' 10' for multi-family dwellings
Min. side yard setback – corner lot (ft.)	15'	15'	15'	15'

- **Improve code clarity with visual aids.** Enhance understanding of complex regulations by incorporating graphics, tables, charts, and illustrations to visualize setbacks, height limits, and permitted uses as applied within each zone district.

Example Development Graphic Illustrating Measurement of Dimensional Standards

RESIDENTIAL DIMENSIONAL STANDARDS

A: Min Lot area/unit **E:** Max. Building Height
B: Min. Front Yard **F:** Min Lot Width
C: Min. Side Yard
D: Min. Rear Yard



Appendix A: Code Redlines

The sections below include the proposed redlines to existing Code language per recommendations in the Analysis and Recommendations section of this report. Text in black represents current Code language with proposed new text in red underline and text to be removed in ~~red strikeout~~. *** indicates text preceding and/or following the amended text that is not shown and is unchanged. Text in *italics with yellow highlight* is notes to the reader, not meant for inclusion in the Code.

I. Redlines for Recommendation 1D – Redefine the Community Housing Zone.

5-324 Community Housing (CH)

5-324A Purpose

The purpose of the Community Housing zone district is to provide areas suitable for the development of ~~high-density, clustered~~ housing for people who live and work within San Miguel County. ~~Housing may be in attached or detached single-family homes, duplexes, multi-family buildings, or rooming houses. Development may also include alternative living units such as spaces for RVs, tiny homes or yurts.~~ Dwelling units shall be subject to the County's R-1 Housing Deed Restriction (see Section 5-1304 and 5-1305), ~~except for unless~~ free-market units that may be are allowed within the development.

Properties that may be considered for rezoning to the Community Housing (CH) zone district shall be located within the Telluride R-1 School District boundaries. ~~Zone districts~~ Properties that are most appropriate for rezoning to CH are those that can be served by municipal water and wastewater systems or where community water and wastewater service can be developed.; including Low Density (LD), Low Density Residential (LDR), Medium Density (MD), and High Density (HD). ~~The Forestry, Agriculture, and Open (F) zone district may be considered where water can be developed. Properties that are zoned High Country Area (HCA) or Rangeland Grazing (RG) shall not be considered for rezoning to CH.~~ The maximum density of ~~twenty (20) units per acre~~ may be higher than that found in surrounding areas. ~~It is the position of the County that housing for people who live and work in the local communities is a high priority.~~ It is the position of the County that housing for people who live and work in the local communities is a high priority. ~~When rezoning land to the CH zone district, the higher density that may be achieved in that zone shall not be considered incompatible with surrounding land uses, neighborhood characteristics or community character.~~

Clustered development is encouraged to maintain open space, to be efficient in design and construction of infrastructure, and to mitigate impacts on adjacent properties. Recreational, civic and public uses may be part of the development where appropriate. All development shall include appropriate guarantees for the protection of public health, safety and welfare, which shall include,

but are not limited to, provision of water and wastewater treatment; mitigation of geohazards; site access; and any other applicable site-specific considerations.

All development in the Community Housing zone district is encouraged to include energy efficient design and alternative energy generation such as solar power. Net zero development — producing enough energy through the use of measures such as solar panels, passive design, and other means to offset the energy consumed on an annual basis — is strongly encouraged. Sites that are not suited to net-zero development should strive to be as energy efficient as possible, through design, construction, and building systems.

5-324B Uses Allowed by Right

I. Single-household detached dwelling with three thousand (3,000) sq. ft. of floor area or less;

II. Accessory Dwelling Unit per Section 5-1302;

~~III.~~ Customary residential accessory buildings and uses;

~~IV.~~ Day care homes; and

~~V.~~ Home occupations.

5-324C Uses Allowed Subject to Administrative Review

I. Temporary Alternative Living Space sites;

II. Day care centers;

III. Public transportation facilities primarily serving the development; and

IV. Public utilities and infrastructure to primarily serve the development.

5-324D Uses Allowed Subject to One-Step Planning Commission Review

I. Dwelling units - on parcels five (5) acres or less:

a. Single-~~familyhousehold~~ dwellings, attached and/or detached;

b. Single-household attached dwellings with three thousand (3,000) sq. ft. of floor area or less per dwelling;

~~cb.~~ Duplexes;

~~de.~~ Multi-~~familyhousehold~~ dwellings;

~~ef.~~ Rooming houses;

~~fg.~~ RV, tiny home, yurt and other Alternative Living Spaces (no more than twenty percent (20%) of total units);

g. Cohousing; and

h. Cottage housing

- II. Churches, community meeting halls, libraries, and other civic and community-serving facilities;
- III. Parks, playgrounds, playing fields, and other recreational facilities to serve residents of the development; and
- IV. One (1) Free-market (not deed restricted) dwelling unit, similar in size to the deed-restricted dwelling unit(s).
- V. Neighborhood Commercial Uses that offer goods and services needed by residents on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry, medical and dental offices and clinics, and postal service substation, not to exceed a total of one thousand (1,000) gross square feet.

5-234E Uses Subject to Two-Step Special Use Permit Review

- I. Dwelling units - on parcels greater than five (5) acres and up to one hundred seventy-five (175) dwelling units:
 - a. Single-~~family household~~ dwellings, attached and/or detached;
 - b. Duplexes;
 - c. Multi-~~family household~~ dwellings;
 - d. Rooming houses;
 - e. RV, tiny home, yurt and other Alternative Living Spaces (twenty-one percent (21%) or more of total units);
 - f. Cohousing
 - g. Cottage housing
- II. Parks, playgrounds, playing fields, and other recreational facilities to serve residents of the development and regional residents;
- III. Fire stations, schools, and other public facilities and uses; and
- IV. Free-market (not deed restricted) dwelling units:
 - a. Comprising ten percent (10%) or less of the total units, and ten (10) percent or less of the gross square footage, for a development that is not net zero on an annual basis; or
 - b. Comprising twenty percent (20%) or less of the total units, and twenty (20) percent or less of the gross square footage, for a development that is net zero on an annual basis.
- V. Neighborhood Commercial Uses that offer goods and services needed by residents on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry, medical and dental offices and clinics, and postal service substation, not to exceed a total of two thousand (2,000) gross square feet.

5-324F Uses Allowed Subject to Board of County Commissioner Approval Pursuant to Planned Unit Development (PUD) Procedure

I. Development with one hundred seventy-six (176) or more dwelling units:

III. Free-market (not deed restricted) dwelling units:

- a. Comprising eleven percent (11%) or more of the total units for a development that is not net zero on an annual basis; or
- b. Comprising twenty-one percent (21%) or more of the total units for development that is net zero on an annual basis;

IIII. Neighborhood Commercial Uses that offer goods and services needed by residents of the PUD on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry, medical and dental offices and clinics, and postal service substation greater than two thousand (2,000) gross square feet; and

IVIII. Flex Space.

5-324G Area and Bulk Requirements Permitted by Right

- I. Maximum Density — twenty (20) units per acre
- II. Minimum Lot Area — None
- III. Setbacks
 - a. Setbacks from any development to property lines of any abutting parcel zoned other than Community Housing and to any right-of-way—twenty (20) feet;
 - b. Front yard — ten (10) feet to adjacent buildings; otherwise, to allow flexibility in the design process, there is no minimum internal front yard setback;
 - c. Rear yard — ten (10) feet to adjacent buildings; otherwise, to allow flexibility in the design process, there is no minimum internal rear yard setback;
 - d. Side yard:
 - i. Detached Principal buildings and Accessory Dwelling Units — ten (10) feet to adjacent buildings;
 - ii. Attached Principal buildings and Accessory Dwelling Units — zero (0) feet on the attached side(s) and ten (10) feet to adjacent buildings on the detached side.
 - e. Accessory buildings — five (5) feet to the nearest building(s), all sides.
- IV. Maximum Floor Area:
 - a. Principal Dwellings: three thousand (3,000) square feet
 - b. Accessory Dwellings: one thousand (1,000) square feet
- V. Maximum Building Height:

- a. Single-household, detached and attached, and Duplex dwellings: ~~Thirty~~ thirty-five (35) feet;
 - b. Multi-household dwellings and mixed-use buildings: forty-five (45) feet;
 - c. Detached accessory and non-residential buildings: thirty-five (35) feet;
 - d. For any residential development that is net zero on an annual basis, forty-five (45) feet.
- VI. Minimum Common Open Space — thirty (30) percent (30%), to be developed as either Active or Passive Open Space.
- VII. Minimum Off-street Parking
- Clustered parking areas are encouraged. Off-street parking shall be provided for each principal use as required in Section 5-702, with the following exceptions:
- a. Studio and one (1) bedroom dwelling units: one (1) parking space per unit;
 - b. All other dwelling units: two (2) spaces per unit;
 - c. Rooming house: one (1) parking space per sleeping room, except where the property is served by public transit, in which case the parking requirement shall be two (2) spaces for every three (3) sleeping rooms;
 - d. Alternative Living Spaces: one (1) parking space per unit.

5-234H Review Standards

II. Redlines for Recommendation 2A – Update Household Definitions, and 2E – Incorporate Cottage Housing, Cohousing, and Tiny Homes.

Article 7 Definitions (conforming changes throughout Article 7 and zone districts)

Accessory Dwelling Unit (move metrics and standards to Section 5-1302)

An additional dwelling unit, limited to a maximum of eight hundred (800) square feet, accessory to a single-family residence in the High Density, Medium Density or Low-Density Zone District. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303G.XIX:

A secondary dwelling that is either attached to or detached from the primary single-household residence on a parcel of land zoned for residential use. It shall include permanent provisions for living, sleeping, eating, cooking, and sanitation. This type of use is intended to provide a

mechanism to help meet the need of affordable housing by allowing accessory residential dwelling units under certain circumstances in areas normally restricted to a single unit, while preserving existing single-household character.

Cohousing (Moved from Section 5-319.2K)

A residential development composed of independent living spaces organized around shared indoor and outdoor common spaces and amenities and functioning as a single dwelling, intended to support community interaction among residents. Each living space shall contain its own living, and sleeping facilities. Cooking facilities are located in a communal space. Sanitation facilities may be in a communal space or in each living space. Cohousing is distinct from a rooming house, boarding house, or other form of group living where residents occupy individual rooms within a single building rather than dispersed living spaces functioning as a single dwelling. Cohousing may also include lounges, meeting rooms, recreation areas, library, workshops, childcare, laundry, greenhouses, or other facilities for use by the organized group of residents living in the co-housing community who participate in the planning, design, ongoing management and maintenance of the residential arrangement and in the routine activities of household living.

Common Open Space

A parcel of land, area of water, or a combination of land and water within the site ~~designated for a planned unit development~~ designated and intended primarily for the use or enjoyment of residents, occupants and owners ~~of the planned unit development~~ associated with a development or subdivision. The common open space presumes Passive Open Space. Recreation Areas or Active Open Space shall be permitted within Common Open Space as allowed by Planning Commission or Board of Commissioner review. Common Open Space is presumed to be private unless otherwise agreed to by the landowner and the Board of Commissioners.

Cottage Housing

A comprehensive development consisting of small, independent dwelling units (cottages) on a single lot. Individual dwelling units are clustered around a shared courtyard (common open space) with off-street parking and access. The development may include shared community facilities.

Note: definitions for all dwelling types are moved under “Dwelling Unit” as follows:

Dwelling Unit

A separately enterable, self-sufficient room or combination of rooms containing kitchen and bath facilities and designed for or used as a residence by an individual, single family, household, or guests, independent of other families, households, or guests.

Dwelling, Duplex Residence

A single structure on a single lot containing two attached dwelling units under common ownership or within a condominium or duplex ownership structure with the units either side-by-side or in an over-under configuration. In the side-by-side configuration, the units share a common wall, while in the over-under configuration, they are stacked. A minimum of twenty percent (20%) of the length of the two (2) walls in common shall be shared between the units, regardless of whether the wall is shared by all floors of the units. The shared walls in common shall not be the walls of a breezeway, or similar accessory structure, but may include the walls of a garage.

Dwelling, Multi-household family Unit

A dwelling unit in a structure containing three (3) or more such dwelling units, not including hotels and lodges, but including town houses; A building containing three (3) or more dwelling units designed for occupancy by multiple households, where units may be arranged side-by-side, stacked vertically, or both, and where dwelling units share common walls, floor/ceiling assemblies, or other common building elements. This use includes apartments and similar residential building types. Multi-household buildings may be held under a single ownership or units may be owned as condominiums. Multi-household dwellings may include with accessory use facilities limited to an office, laundry, community room, recreation facilities and off-street parking used by the occupants. One (1) or more dwelling units located within an office, retail, or service commercial building, including (a) Live-work Housing unit(s) (See Section 5-1305B.V), shall also be considered (a) multi-family dwelling unit(s).

Single-family Dwelling (same as Single-family Residence)

Dwelling, Single-household Attached

Three (3) or more residential dwelling units arranged side-by-side, where each unit extends from foundation to roof, shares at least one (1) or more common walls with adjacent units, has independent exterior access, and is located on an individually platted lot or is capable of being individually owned.

Dwelling, Single-household Detached family Residence

An individual residential dwelling that is developed with open yards on all sides of the dwelling unit. Single-household detached dwelling family Residence includes all manufactured housing (pursuant to C.R.S. 30-28-115(3)), including all mobile homes on permanent foundations, but does not include recreational or other wheeled vehicles.

Mixed Use Residential

A development that combines housing units with one (1) or more nonresidential uses within the same building or on the same development site. (See also Section 5-1305B, "Live-Work Housing.")

Rooming House

Any structure where persons are housed for compensation but not open to public or overnights guests as transient lodging, by the ~~day or~~ week or month, including ~~hotels, motels, lodges~~, boarding

houses ~~and dwellings into which the general public is received~~. Each room intended for sleeping shall be maintained in a clean and sanitary condition and has:

- (1) At least seventy (70) square feet of habitable floor area;
- (2) At least thirty (30) additional square feet of floor space for each additional intended occupant;
~~and~~
- (3) Access to a flush toilet, lavatory, basin, and tub or shower in working order and properly connected to water and sewer systems, with a minimum of one (1) toilet for each four (4) occupants; ~~and~~

~~(4) Access to cooking facilities or provision of meals to all occupants.~~

Sleeping shall not be permitted in the halls of rooming houses without the express permission of the Board of County Commissioners in response to a public emergency.

Secondary Dwelling Unit

~~A Secondary Dwelling Unit is a second residence on an existing parcel located within the Wright's Mesa (WM) or Wright's Mesa Rural Agriculture (WMRA) zone district. Secondary Dwelling Units may be attached to or detached from the primary residence.~~

Subordinate Residential Unit

~~A dwelling unit that is accessory to the principal single-household unit on the property. See also Accessory Dwelling Unit, Caretaker Unit, and Secondary Dwelling Unit.~~

III. Redlines for Recommendation 2D – Expand Subordinate Residential Unit Allowances.

5-1302 Subordinate Residential Accessory Dwelling Units

5-1302A. Applicability

~~Subordinate Residential Units include Accessory Dwelling Units, Caretaker Units, and Secondary Dwelling Units and One (1) accessory dwelling unit per lot or parcel~~ may be approved in ~~certain the~~ ~~HD, MD and LD~~ Zone Districts subject to compliance with the standards in this section and the applicable Zone District. Refer to sections 3-4 and 4-7 for procedures and submission contents.

5-1302B. Accessory Dwelling Unit Standards

- I. An accessory dwelling unit shall not be:
 - a. Rented for a term less than six (6) months;~~:-~~
 - ~~b. Conveyed or sold separately from the remainder of the parcel and shall remain under the same ownership as the primary residence;~~
 - ~~c. Rented as a Short-Term Rental.~~

- II. An accessory dwelling unit shall:
 - a. Provide off-street parking in compliance with Section 5-702;
 - b. Be limited to a maximum floor area of ~~eight hundred (800)~~ one thousand (1,000) square feet;
 - c. Be built in accordance with the County's adopted Building Code;
 - d. Be attached to the main residence, unless either no higher than sixteen (16) feet or located within a customary residential accessory building, such as a garage;
 - e. In combination with the principal residence not exceed the maximum allowable floor area of the applicable zone district; and
 - f. Comply with the San Miguel County Sanitation Regulations.
- III. The floor area of the accessory dwelling unit shall be included in the calculation for employee housing impact fee mitigation as defined in, and is subject to, Section 5-1303G of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303G.XIX.
 - a. Accessory dwelling units (ADU) that are voluntarily deed-restricted in exchange for an Employee Housing Impact Fee credit shall be subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305) and ADU Deed Restriction Covenant.
- IV. A second Accessory Dwelling Unit may be allowed provided:
 - a. The property is served by a community water system;
 - b. The property is served by a community wastewater system, or has an On-site Wastewater Treatment System (OWTS) sized to accommodate all units on the site; and
 - c. The second Accessory Dwelling Unit shall be voluntarily deed-restricted subject to the County R-1 Housing Deed Restriction or other Deed Restriction and Covenant as approved by the Board of County Commissioners (see Sections 5-1304 and 5-1305).

5-1302C. Caretaker Unit Standards *(strike from Section 5-307C.I)*

- I. A Caretaker Unit shall be allowed in the Forestry, Agriculture and Open (F) zone district:
 - a. On all parcels thirty-five (35) acres or larger; and
 - b. On parcels five (5) to thirty-five (35) acres in the Telluride R-1 School District;
 - c. Except no caretaker units shall be allowed in the San Miguel Canyon Area.
- II. A Caretaker Unit shall:
 - a. Be attached to or located within three hundred (300) feet of the primary residence (as measured between the closest exterior walls);

- i. The distance to the Caretaker Unit(s) may be increased to five hundred (500) feet if at least one Caretaker Unit is built and deed-restricted pursuant to Section 5-1302C.IV;
 - b. Contain no more than two thousand (2,000) sq. ft. of floor area; and
 - c. Contain full kitchen and bathroom facilities.
- III. A Caretaker Unit shall not be:
 - a. Rented for a term less than six (6) months;
 - b. Conveyed or sold separately from the remainder of the parcel and shall remain under the same ownership as the primary residence;
 - c. Rented as a Short-Term Rental.
- IV. A second Caretaker Unit may be allowed on parcels greater than thirty-five (35) acres provided:
 - a. The property has a domestic well permit issued by the Colorado Division of Water Resources for three (3) dwelling units;
 - b. The property has an On-site Wastewater Treatment System (OWTS) sized to accommodate all units on the site; and
 - c. The second Caretaker Unit shall be voluntarily deed-restricted subject to a Deed Restriction and Covenant as approved by the Board of County Commissioners.
- V. The Floor Area of the Caretaker Unit shall be included in the calculation for employee housing Impact Fee mitigation as defined in Section 5-1303G of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX or Section 5-1302C.IV, above.
 - a. Caretaker Units that are voluntarily deed-restricted in exchange for an Employee Housing Impact Fee credit shall be subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305) and ADU Deed Restriction Covenant, or other Deed Restriction and Covenant as approved by the Board of County Commissioners.

5-1302D. Secondary Dwelling Unit Standards *(strike from Section 5-319.1D.I and Section 5-319.2H.II.d)*

- I. A Secondary Dwelling Unit shall be allowed in the Wright's Mesa (WM) and Wright's Mesa Rural Agriculture (WMRA) zone districts on all parcels five (5) acres or larger and subject to the requirements of 5-319.1D if located in the WM zone district and 5-319.2H.II.d if located in the WMRA zone district.
 - a. Secondary Use: No uses other than a single-family dwelling, home occupation(s), and/or agriculture and ranching activities exist on the property.

and no Subdivision Exemption for Wright's Mesa has been granted for the parcel, and the parcel was not created through a Subdivision Exemption for Wright's Mesa.

II. A secondary dwelling unit shall:

- a. Be attached to or located within three hundred (300) feet of the primary residence (as measured between the closest exterior walls);
 - i. The distance to the Secondary Unit(s) may be increased to five hundred (500) feet if at least one Secondary Unit is built and deed-restricted pursuant to Section 5-1302D.IV;
- b. Contain no more than two thousand square feet of floor area in the Wright's Mesa (WM) zone district, and no more than two thousand five hundred (2,500) square feet of floor area in the Wright's Mesa Rural Agriculture (WMRA) zone district; and
- c. Contain full kitchen and bathroom facilities.

III. A Secondary Dwelling Unit shall not be:

- a. Rented for a term less than six (6) months;
- b. Conveyed or sold separately from the remainder of the parcel and shall remain under the same ownership as the primary residence;
- c. Rented as a Short-Term Rental.

IV. A second Secondary Dwelling Unit may be allowed on parcels greater than thirty-five (35) acres provided:

- a. The property has a domestic well permit issued by the Colorado Division of Water Resources for three (3) dwelling units or is served by a public water system;
- b. The property has an On-site Wastewater Treatment System (OWTS) sized to accommodate all units on the site; and
- c. The second Secondary Unit shall be voluntarily deed-restricted subject to a Deed Restriction and Covenant as approved by the Board of County Commissioners.

IV. Redlines for Recommendation 2E – Incorporate Cottage Housing, Cohousing, and Tiny Homes.

5-1010 – Standards for Cohousing (new section)

- A. Cohousing shall comply with the following standards:

- I. Each development shall adhere to the density and dimensional standards per the zone district with a maximum of four (4) people per dwelling unit, as follows:
 - a. For each property, the total lot area shall be divided by the density allowed by the underlying zone district to determine the number of primary Single-Household dwellings allowed. That number shall be multiplied by four (4) to determine the number of residents associated with the primary dwellings.
 - b. Calculate the number of Subordinate Residential Units that can be built. For Caretaker Units and Secondary Dwelling Units, multiply that number by three (3). For Accessory Dwelling Units, multiply that number by two (2).
 - c. Add the number of residents allowed for the Single Household Dwellings and for the Subordinate Residential Units. Divide the number of residents by one and a half (1.5) people per bedroom to determine the total number of bedrooms.
 - d. If second Subordinate Residential Units are included in the calculations, at least one-third (1/3) of the living spaces shall be voluntarily deed-restricted subject to a Deed Restriction and Covenant as approved by the Board of County Commissioners.
- B. Each living space:
 - I. Shall contain private living and sleeping space for the exclusive use of the residents;
 - II. May include a kitchenette consisting of a sink, refrigerator, microwave, electric cooktop, or similar limited food preparation facilities, although not required; and
 - III. May include private sanitation facilities, or may utilize shared sanitation facilities.
 - IV. All living spaces must be in structures that meet the requirements of the building code and have certificates of occupancy.
- C. Each cohousing development shall provide one common house or shared facility that contains:
 - I. At least one hundred (100) square feet per living space, with a minimum of five hundred (500) square feet of gross floor area; and
 - II. A common kitchen and dining area capable of serving the residents of the cohousing development.
 - III. The shared facility may also include meeting rooms, recreation space, guest accommodations, coworking space, workshop areas, laundry facilities, or other similar communal amenities.

- D. The total floor area of all living spaces and common house shall not exceed twelve thousand (12,000) square feet.
- E. The Cohousing development shall demonstrate sufficient water capacity, either through a community water system or through well permits. The property shall be served by a community wastewater system or by an On-site Wastewater Treatment System (OWTS) adequately sized to serve the entire development.
- F. There shall be no Short-term Rental of any portion of a Cohousing development.

5-1011 – Standards for Cottage Housing *(moved from Section 5-319.2H.II.a to Section 5-10 Special Uses; in the resolution, this will be underlined as new text with a full strike-through in 5-316.2H.II.a.)*

H.—Residential

a.—Cottage Housing

A. Cottage housing shall comply with the following standards:

- I. Lot Area ~~(Minimum and Maximum):~~ Minimum lot area shall be ~~thirty thousand (30,000)~~ fifteen thousand (15,000) square feet. Maximum lot area shall be forty-five thousand (45,000) square feet.
- II. Number of Units (Minimum and Maximum): Shall include a minimum of four (4) cottage dwelling units and a maximum of ~~nine (9)~~ twelve (12) cottage dwelling units, all included in one (1) development application.
- III. Size of Units: ~~A detached~~ Each cottage dwelling unit shall ~~not be greater than eight hundred fifty (850) square feet in lot coverage or have~~ a maximum floor area of one thousand five hundred (1,500) square feet ~~or 1.5 times the lot coverage, whichever is less.~~
- IV. Common Open Space: Each cottage ~~dwelling unit development~~ shall include a minimum of two hundred fifty (250) square feet of common open space per dwelling unit. At least fifty percent (50%) of ~~each the~~ cottage dwelling units shall abut common open space. ~~All cottage dwelling units shall be within sixty (60) feet of common open space, and the common open space shall have cottage dwelling units abutting at least fifty percent (50%) of its boundaries.~~
- V. All common open space shall be held in common ownership by a legal instrument such as an easement or deed restriction that guarantees access and use by all properties in the cottage housing development.
- VI. Cottage housing development must prove adequate provision of water, wastewater, and utility services necessary to support the development without straining existing infrastructure.
- VII. There shall be no Short-term Rental of any portion of a Cottage Housing development.

V. Redlines for Recommendations 1A, 1B, 1C, 1D, 2B, 2C, and 4B – Zone District Allowances.

5-302 High Density (HD)

5-302A. Purpose

- I. The purpose of the High Density (HD) Zone District is to provide areas suitable for high density, clustered, mixed-use development in accordance with the East End Master Plan. The Master Plan includes an analysis of the East End's physical characteristics and the capability of the community to provide essential public services. ~~The HD Zone District also provides a high density and mixed use development alternative to low density development as an incentive for the preservation of substantially more open space than could reasonably be required as part of a lower density development.~~ Clustering of ~~development~~ residential uses will be required to preserve environmentally sensitive lands and the scenic foreground as open space.
- II. Minimum requirements for approval of the residential densities and the nonresidential land uses allowed in the HD Zone District shall include appropriate guarantees for the protection of public health, safety and welfare, which shall include, but are not limited to, the provision of alternate transportation, recreational amenities and affordable housing, as described in the East End Master Plan and in this Code (see Sections 5-13 and 5-20). ~~In the absence of such guarantees and in the absence of the fulfillment of the other requirements set forth in the PUD process, non-environmentally sensitive lands will remain zoned either LD or PUDR and therefore will be subject to the standards of the applicable district; and environmentally sensitive lands will remain zoned either OS or PUDR and therefore will be subject to the standards of the applicable district.~~

5-302B. ~~Planned Unit Development (PUD) Procedure~~

~~All development proposed within the HD Zone District, except for proposed development of uses allowed by right, shall be reviewed pursuant to the Planned Unit Development (PUD) procedure to establish permitted uses and to allow variation from area and bulk requirements. Refer to Section 3-7 for PUD procedure and Section 5-14 for PUD standards.~~

5-302BE. Uses Allowed by Right

- I. Single-~~family household Detached~~ dwellings with less than twelve thousand (12,000) sq. ft. of Floor Area.
 - a. For Single-~~family household Detached~~ dwellings with greater than five thousand (5,000) sq. ft. of Floor Area but less than twelve thousand (12,000) sq. ft. of Floor Area: if the proposed residence is located within a subdivision or PUD with an established Home Owner's Association (HOA) that is responsible for administering an applicable design review board general declaration covenant requirement, the applicant shall provide a written approval of the

proposed building plan from the HOA as part of their Development Permit application;

- II. Customary residential accessory buildings and uses;
- III. Day care homes; ~~and~~
- IV. Home occupations; ~~and~~

V. Accessory dwelling units per Section 5-1302B.

- a. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX

5-302C~~D~~. Uses Allowed Subject to Administrative Review

- I. Second Accessory Dwelling Units pursuant to Section 5-1302B and. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX; and
- II. Day care centers - allowed only on lots of at least one-half (1/2) acre;:-
- III. Duplex residences;
- IV. Public transportation facilities primarily serving the development; and
- V. Public utilities and infrastructure to primarily serve the development.

5-302D. Uses Allowed Subject to One-step Planning Commission Review

- I. On parcels five (5) acres or less in size and for development that meets the Tier 1 or Tier 2 requirements as set forth in Section 5-302G, the following shall be allowed by One-step Planning Commission review:
 - a. Single-household Attached Dwellings with twenty (20) units or less;
 - b. Duplex residences;
 - c. Rooming houses;
 - d. Cohousing;
 - e. Cottage housing;
 - e. RV, tiny home, yurt and other alternative living spaces (no more than twenty percent (20%) of total units)

5-302E. Uses Allowed Subject to Two-step Special Use Permit Review

- I. On parcels greater than five (5) acres in size, and/or with a total of one hundred (100) units or less and for development that meets the Tier 1 or Tier 2 requirements as set forth in Section 5-302G, the following shall be allowed by Two-step review:

- a. Single-household Attached Dwellings with 21-100 units;
 - b. Duplex residences;
 - c. Multi-household residences;
 - d. Rooming House;
 - e. RV, tiny home, yurt and other alternative living spaces (no more than twenty percent (20%) of total units) on parcels greater than five (5) acres.
 - II. Single-family Dwellings greater than twelve thousand (12,000) sq. ft. require Two-step Special Use Permit review pursuant to Section 5-307 L.
 - a. Such dwellings must include at least one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than one thousand (1,000) sq. ft.
 - III. Churches, community meeting halls, libraries and other civic and community serving facilities;
 - IV. Parks, playgrounds, playing fields, and other recreational facilities to service residents of the development; and
 - V. Fire stations, schools, hospitals and other public uses.
- 5-302FE. Uses Allowed Subject to Board of County Commissioner Approval Pursuant to Planned Unit Development (PUD) Procedure
- I. Duplex residences that do not meet the Tier 1 or Tier 2 requirements as set forth in Section 5-302G;
 - II. Multi- family residences that do not meet the Tier 1 or Tier 2 requirements as set forth in Section 5-302G;
 - III. Tourist accommodations;
 - IV. Commercial uses and personal services including the following and similar types of uses: retail sales such as clothing, hardware, drug, liquor, ~~record~~, sporting goods, electronic and computer stores; personal services such as barber or beauty shops, day spas; restaurant, coffee shop, cocktail lounge, movie theater, health club; grocery store of less than twelve thousand (12,000) square feet, dry cleaning and laundry pick-up station, laundromat, delicatessen, post office branch, ~~television sales and service shop~~, shoe repair shop, ~~camera and video rental and sale shop~~ and gasoline service station without repair facilities; nothing to the contrary withstanding, no use shall be allowed that is incompatible with the nature of the applicable development;
 - V. Conference facilities;
 - VI. Offices and financial institutions;

VII. Transportation terminals; and

VIII. Parks, playgrounds, playing fields, and other recreational facilities to service residents of the development and regional residents.

~~VI. —Churches; and~~

~~VII. —Fire stations, Schools and hospitals.~~

Table 5-302-1 High Density (HD) Zone District Uses

Use	By Right – Development Permit	Administrative Review	One-Step Planning Commission	Two-Step	PUD 5-Step
Single Household, Detached	<u>Y - <12,000 s.f.</u>			<u>Y - >12,000 s.f.</u>	
Single Household Attached			<u>Y – Tier 1 or Tier 2, <5 acres, 20 units or less</u>	<u>Y – Tier 1 or Tier 2, >5 acres, up to 100 units</u>	
Duplex		<u>Y</u>		<u>Y – Tier 1 or Tier 2, >5 acres, up to 100 units</u>	<u>Y – not Tier 1 or Tier 2; Tier 1 or Tier 2 >100 units</u>
Multi-Household				<u>Y – Tier 1 or Tier 2, >5 acres, up to 100 units</u>	<u>Y – not Tier 1 or Tier 2 Tier 1 or Tier 2 >100 units</u>
Accessory Dwelling Unit	<u>Y – 1st</u>	<u>Y – 2nd, Deed-restricted</u>			
Rooming Houses			<u>Y – Tier 1 or Tier 2, <5 acres</u>	<u>Y – Tier 1 or Tier 2, >5 acres, up to 100 units</u>	
Alternative Living Spaces			<u>Y - <5 acres, <20% total units</u>	<u>Y - >5 acres, ≥ 20% total units</u>	
Day Care Homes	<u>Y</u>				
Home Occupations	<u>Y</u>				
Day Care Centers		<u>Y</u>			
Public Transportation Facilities		<u>Y – serving development</u>			<u>Y - terminals</u>
Public Utilities and Infrastructure		<u>Y</u>			
Churches, community meeting halls, libraries, other civic and				<u>Y</u>	

<u>community serving facilities</u>					
<u>Parks, playgrounds, rec facilities</u>				<u>Y – serving development</u>	<u>Y – serving development and regional</u>
<u>Fire stations, schools, hospitals and other public uses</u>				<u>Y</u>	
<u>Tourist Accommodations</u>					<u>Y</u>
<u>Commercial Uses and Personal Services</u>					<u>Y</u>
<u>Conference Facilities</u>					<u>Y</u>
<u>Offices and Financial Institutions</u>					<u>Y</u>

5-302 GF. Area and Bulk Requirements Permitted by Right

- I. Density - one (1) dwelling unit per lot:
 - a. One dwelling unit per 35 acres.
 - b. Tier 1 Density Bonus: minimum of six (6) dwelling units per acre and maximum of ten (10) dwelling units per acre, up to fifty (50) total units outside of the PUD Procedure, if fifty percent (50%) to seventy-nine percent (79%) of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).
 - c. Tier 2 Density Bonus: minimum of ten (10) dwelling units per acre and maximum of twenty (20) dwelling units per acre, up to one hundred (100) total units outside of the PUD Procedure, if eighty percent (80%) or more of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).
 - d. PUD:
 - i. minimum of ten (10) dwelling units per acre and maximum of twenty (20) dwelling units per acre that do not meet the requirements of the Tier 1 or Tier 2 Density Bonus.
 - ii. Tier 1 or Tier 2 bonuses, in excess of acreage or unit totals
- II. Minimum Lot Area:~
 - a. thirty-five (35) acres unless development is subject to the following:

- i. Tier 1 and Tier 2 Density Bonus: no minimum lot size if fifty percent (50%) or more of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).

IIIH. Setbacks

- a. Front yard - ~~thirty (30) feet ten (10) feet~~
- b. Rear yard - ~~thirty (30) feet ten (10) feet~~
- c. Side yard - ~~thirty (30) feet ten (10) feet, zero (0) feet between attached units~~
- d. The perimeter of multi-household dwelling and cottage housing developments shall maintain a fifteen (15) foot setback from adjacent properties.

IVH. Maximum Building Height - thirty-five (35) feet unless development is subject to the following:

- a. Tier 2 Density Bonus: forty-five (45) feet maximum building height for multi-household and mixed-use buildings if eighty percent (80%) or more of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).

5-302HG. Density, Area and Bulk Requirements Permitted Subject to Board of County Commissioner Approval Pursuant to the Planned Unit Development (PUD) Procedure

I. ~~Density for Residential and Tourist Accommodation Units~~ - Maximum Density: ~~—~~

~~Minimum Density - forty (40) persons per acre~~

~~The density of residential and tourist accommodation development may not be greater than forty (40) people per acre.~~

~~a. Twenty residential units per acre; eighty (80) persons per acre~~

~~b. Commercial, Tourist Accommodations and Mixed Use Development determined pursuant to Section 5-14.~~

~~c. Total Density is based upon the cumulative number of people to be housed as determined by the "population level" standards (see definition in Article 7).~~

H. ~~Density for Commercial Development~~

II. ~~Minimum lot area - Determined pursuant to Section 5-14~~

III. ~~Setbacks - Determined pursuant to Section 5-14~~

IV. ~~Maximum Building Height - Determined pursuant to Section 5-14~~

V. ~~Maximum Floor Area Ratio (FAR) - Determined pursuant to Section 5-14~~

5-302IH. Minimum Common Open Space - thirty percent (30%)

5-302J. Minimum Off-street Parking

Off-street parking shall be provided for each use as required in Section 5-702.

5-302~~KJ~~. Review Standards for Land Uses and Area and Bulk Requirements Requiring Board of County Commissioner Approval pursuant to the Planned Unit Development (PUD) Procedure

An applicant seeking approval for any of the uses listed in Section 5-302~~FE~~ or approval to utilize the area and bulk requirements in Sections 5-302~~G and H-G~~ must demonstrate to the satisfaction of the Board of County Commissioners substantial compliance with the standards in this section:

- I. The use is consistent with the Land Use Policies (Article 2);
- II. Adequate public services such as roads, water, wastewater, public safety and fire protection are available to serve the proposed use and to insure the protection of the public health, safety and welfare in the region;
- III. Adequate mitigation by the applicant of the incremental impacts on the community's existing public services;
- IV. The use minimizes or mitigates any materially adverse environmental impacts and generally utilizes the most environmentally suitable site;
- V. Any proposed structures are located outside the Scenic Foreground Overlay Zone District or are designed consistently with the Scenic Foreground Overlay standards;
- VI. The use is consistent with the relevant goals and objectives of the San Miguel County Comprehensive Development Plan;
- VII. Acceptable guarantees that fulfill the criteria set forth in the East End Master Plan have been made for the provision of:
 - a. Adequate alternate transportation to serve the development (see Section 5-2001);
 - b. A sufficient quantity and quality of affordable housing to house the employees attributable to the proposed land use (see Section 5-1304);
 - c. A sufficient quantity and quality of recreational amenities to serve the residents of the development without overburdening existing off-site recreational facilities (see Section 5-803); and
- VIII. Any neighborhood commercial services are designed and planned to be compatible with the surrounding neighborhood (see Section 5-1403 B) to reduce traffic generation, mitigate traffic circulation and parking problems and serve the daily or frequent trade or service needs of the neighborhood.

~~5-302K. Uses Allowed Subject to Two-step Special Use Permit Review~~

~~Single-family Dwellings greater than twelve thousand (12,000) sq. ft. require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307L.~~

- ~~I. Such dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU~~

~~Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than eight hundred (800) sq. ft.~~

5-303 Medium Density (MD)

5-303A. Purpose

- I. The purpose of the Medium Density (MD) Zone District is to provide areas suitable for clustered medium density residential development in accordance with the San Miguel County Comprehensive Development Plan. The East End Master Plan includes an analysis of the East End's physical characteristics and the capability of the community to provide essential public services. Due to consideration of such factors as neighborhood compatibility, availability of community services and road capacities, lands zoned MD are capable of accommodating higher density development than can lands zoned LD. Clustering of residential uses will be required to preserve environmentally sensitive lands and the scenic foreground as open space.
- II. Minimum requirements for approval of the residential densities proposed for the MD Zone District shall include appropriate guarantees for the protection of public health, safety and welfare, which shall include, but are not limited to, provision of alternate transportation, recreational amenities and affordable housing, as described in the East End Master Plan and in this Code (see Sections 5-13 and 5-20). ~~In the absence of such guarantees and in the absence of the fulfillment of the other requirements set forth in the PUD process, non-environmentally sensitive lands will remain zoned either LD or PUDR and therefore will be subject to the standards of the applicable district, and environmentally sensitive lands will remain zoned either OS or PUDR and therefore will be subject to the standards of the applicable district.~~

~~5-303B. Planned Unit Development (PUD) Procedure~~

~~All development proposed within the MD Zone District, except for proposed development of uses allowed by right, shall be reviewed pursuant to the Planned Unit Development (PUD) procedure to establish permitted uses and to allow variation from the area and bulk requirements established in this Section. Refer to Section 3-7 for PUD procedure and Section 5-14 for PUD Standards.~~

5-303~~B~~C. Uses Allowed by Right

- I. Single-~~family household Detached~~ dwellings with less than twelve thousand (12,000) sq. ft. of Floor Area.
 - a. For Single-~~family household Detached~~ dwellings with greater than five thousand (5,000) sq. ft. of Floor Area but less than twelve thousand (12,000) sq. ft. of Floor Area: if the proposed residence is located within a subdivision or PUD with an established Home Owner's Association (HOA) that is responsible for administering an applicable design review board general declaration covenant requirement, the applicant shall provide a written approval of the proposed building plan from the HOA as part of their Development Permit application;

- II. Customary residential accessory buildings and uses;
- III. Day care homes; ~~and~~
- IV. Home occupations; ~~and~~
- V. Accessory dwelling units per Section 5-1302B.

- a. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX

5-303C~~D~~. Uses Allowed Subject to Administrative Review

- I. ~~Second~~ Accessory Dwelling Units pursuant to Section 5-1302B and: The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX; ~~and~~
- II. Duplex dwellings; and
- III. Day care centers - allowed only on lots of at least one-half (1/2) acre.

5-303D. Uses Allowed Subject to One-step Planning Commission Review

- I. On parcels five (5) acres or less in size and for development that meets the Tier 1 or Tier 2 requirements as set for in Section 5-303G, the following shall be allowed by one-step Planning Commission review:
 - a. Single-household Attached dwellings with eight (8) or fewer units.

5-303E. Uses Allowed Subject to Two-step Special Use Permit Review

- I. Single-family Dwellings greater than twelve thousand (12,000) sq. ft. require Two-step Special Use Permit review pursuant to Section 5-307 L.
 - a. Such dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than one thousand (1,000) sq. ft.
- II. On parcels greater than five (5) acres in size and for development that meets the Tier 1 or Tier 2 requirements as set for in Section 5-303G, the following shall be allowed by Two-step review:
 - a. Single-household attached dwellings with up to twenty (20) units;
 - b. Cottage housing;
 - c. Cohousing; and
 - d. Multi-household dwellings with twenty (20) units or less.

5-303 ~~FE~~. Uses Allowed Subject to Board of County Commissioner Approval Pursuant to the Planned Unit Development (PUD) Procedure

- I. Duplex residences ~~that do not meet the Tier 1 or Tier 2 requirements as set forth in Section 5-302G;~~
- II. Multi-~~household dwellings family residences that do not meet the Tier 1 or Tier 2 requirements as set forth in Section 5-302G;~~
- ~~III. Single-household, detached or attached, with twenty-one (21) or more total units;~~
- ~~IV. Tier 1 or Tier 2 development in excess of acreages and/or unit totals;~~
- ~~VIII.~~ Tourist accommodations;
- ~~VIIV.~~ Commercial uses including the following and similar: ~~retail sales such as~~ drug, liquor and sporting goods stores, barber and beauty shops, restaurants, cocktail lounges, clothing, electronic, ~~camera and video rental stores,~~ dry cleaning and laundry pick-up stations, gasoline service stations, and grocery store less than three thousand (3,000) square feet; nothing to the contrary withstanding, no use shall be allowed that is incompatible with the nature of the applicable development;
- ~~VIIIV.~~ Transportation terminals;
- ~~VIII.~~ Fire stations;
- ~~IXVI.~~ Elementary, junior and senior high schools;
- ~~XVII.~~ Hospitals; and
- ~~XIVIII.~~ Churches.

Table 5-303-1 Medium Density (MD) Zone District Uses

Use	By Right – Development Permit	Administrative Review	One-Step Planning Commission	Two-Step	PUD 5-Step
Single Household, Detached	Y - <12,000 s.f.			Y - >12,000 s.f.	Y >20 units
Single Household Attached			Y – Tier 1 or Tier 2, <5 acres, <8 units	Y – Tier 1 or Tier 2, >5 acres, up to 20 units	Y >20 units
Duplex		Y			Y – not Tier 1 or Tier 2; Tier 1 or Tier 2 in excess of acreage and unit totals

Multi-Household				Y – Tier 1 or Tier 2, >5 acres, up to 20 units	Y – not Tier 1 or Tier 2; Tier 1 or Tier 2 in excess of acreage and unit totals
Accessory Dwelling Unit	Y – 1 st	Y – 2 nd , Deed-restricted			
Cottage Housing				Y	
Cohousing				Y	
Day Care Homes	Y				
Home Occupations	Y				
Day Care Centers		Y			
Public Transportation Terminals					Y
Churches					Y
Commercial Uses					Y
Fire stations, schools, hospitals					Y
Tourist Accommodations					Y

5-303 **GF**. Area and Bulk Requirements ~~Permitted by Right~~

I. Density ~~one (1) dwelling unit per lot.~~

a. One dwelling unit per 35 acres.

b. Tier 1 Density Bonus: maximum of one (1) dwelling unit per three (3) acres, up to twenty-five (25) total units outside of the PUD Procedure, if fifty percent (50%) to seventy-nine percent (79%) of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).

c. Tier 2 Density Bonus: maximum of one (1) dwelling unit per acre, up to fifty (50) total units outside of the PUD Procedure, if eighty percent (80%) or more of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).

II. Minimum Lot Area:–

a. Thirty-five (35) acres unless development is subject to the following:

- i. Tier 1 and Tier 2 Density Bonus: minimum lot size of one-half (0.5) acres if fifty percent (50%) or more of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).

III.H. Setbacks

- a. Front yard - ~~thirty (30) feet~~ twenty (20) feet; may be reduced to ten (10) feet for alley-loaded lots
- b. Rear yard - twenty (20) feet
- c. Side yard - ~~twenty (20) feet~~ ten (10) feet; zero (0) feet between attached units

IV.H. _____ Maximum Building Height - thirty-five (35) feet, unless development is subject to the following:

- a. Tier 2 Density Bonus: forty-five (45) feet maximum building height for multi-household and mixed-use buildings if eighty percent (80%) or more of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).

5-303 HG. Density, Area and Bulk Requirements Permitted Subject to Board of County Commissioners Approval Pursuant to the Planned Unit Development (PUD) Procedure.

~~Maximum density will be determined pursuant to the standards established in Section 5-1403 F.~~

- I. Maximum Density for Uses Permitted by PUD:
 - a. Maximum overall residential density - one (1) unit per three (3) acres;
 - b. Tier 1 or Tier 2 development in excess of acreage or unit totals;
 - c. Commercial, Tourist Accommodations and Mixed Use Development determined pursuant to Section 5-14;
 - d. Total Density is based on the cumulative number of people to be housed as determined by the "population level" standards (see definition in Article 7).
- II. Minimum Lot Area permitted by PUD for lots final platted or replatted following the adoption of this Land Use Code:
 - a. Single-~~family household~~ dwellings - fifteen thousand (15,000) sq. ft.
 - b. Duplex dwellings - twenty thousand (20,000) sq. ft.
 - c. Multi-~~family household~~ dwellings - twenty thousand (20,000) sq. ft.
 - d. Tourist Accommodations - twenty thousand (20,000) sq. ft.
 - e. Commercial buildings - ten thousand (10,000) sq. ft.
 - f. Public buildings - twenty thousand (20,000) sq. ft.
- III. Setbacks determined pursuant to Section 5-14 for all buildings located on lots final platted or replatted prior to the adoption of this Land Use Code:

~~g. Front yard - twenty-five (25) feet~~

~~h. Rear yard - twenty (20) feet~~

~~i. Side yard - twelve point five (12.5) feet~~

IV. Maximum Building Height - thirty-five (35) feet

V. Maximum Floor Area Ratio (FAR) - Determined pursuant to Section 5-14

5-303 ~~I~~^H. Minimum Common Open Space - sixty percent (60%)

5-303 ~~J~~^I. Minimum Off-street Parking

Off-street parking shall be provided for each principal use as required in Section 5-702.

5-303 ~~K~~^J. Review Standards for Land Uses and Area and Bulk Requirements Requiring Board of County Commissioner Approval pursuant to the Planned Unit Development (PUD) Procedure

An applicant seeking approval for any of the uses listed in Section 5-303 E or approval to utilize the area and bulk requirements in Section 5-303 G must demonstrate to the satisfaction of the Board of County Commissioners substantial compliance with the standards in this section:

- I. The use is consistent with the Land Use Policies (Article 2);
- II. Adequate public services such as roads, water, wastewater, public safety and fire protection are available to serve the proposed use and an applicant adequately mitigates the incremental impacts on the community's existing public services;
- III. The use minimizes or mitigates any materially adverse environmental impacts and generally utilizes the most environmentally suitable site;
- IV. Any proposed structures are located outside the Scenic Foreground Overlay Zone District or are designed consistently with the Scenic Foreground Overlay standards;
- V. The use is consistent with the relevant goals and objectives of the San Miguel County Comprehensive Development Plan;
- VI. Acceptable guarantees (as described in the East End Master Plan) have been made for the provision of:
 - a. Adequate alternate transportation to serve the development (see Section 5-2001);
 - b. A sufficient quantity and quality of affordable housing to house the employees attributable to the proposed land use (see Section 5-1304); and
 - c. A sufficient quantity and quality of recreational amenities to serve the residents of the development without overburdening existing off-site recreational facilities (see Section 5-803); and
- VII. Any neighborhood commercial services are designed and planned to be compatible with the surrounding neighborhood (see Section 5-1403 B) to reduce traffic

generation, mitigate traffic circulation and parking problems and serve the daily or frequent trade or service needs of the neighborhood.

~~5-303K. Uses Allowed Subject to Two-step Special Use Permit Review~~

~~Single-family Dwellings greater than twelve thousand (12,000) sq. ft. require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307L.~~

- ~~I. —Such dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than eight hundred (800) sq. ft.~~

5-304 Low Density (LD)

5-304A. Purpose

- I. The purpose of the Low Density (LD) Zone District is to provide areas suitable for clustered, low-density residential development in accordance with the San Miguel County Comprehensive Development Plan. ~~The LD Zone District applies to areas so zoned already; it shall not provide a mechanism for rezoning areas not currently so zoned.~~ The East End Master Plan includes an analysis of the region's physical characteristics and the capability of the community to provide essential public services. If land is developed under the LD Zone District, the rural characteristics of the land shall be preserved to the maximum extent possible by careful site planning and, if necessary, the clustering of development. Clustering of residential uses will be required to preserve environmentally sensitive lands and the scenic foreground as open space.
- II. Minimum requirements for approval of the residential densities proposed for the LD Zone District shall include appropriate guarantees for the protection of public health, safety and welfare, which shall include, but are not limited to, provision of transportation (capital, facilities and equipment) necessary to serve the development, long-term operation and maintenance of the regional transportation system, recreational amenities and affordable housing, as described in the East End Master Plan and in this Code (see Sections 5-13 and 5-20). ~~In the absence of such guarantees and in the absence of the fulfillment of the other requirements set forth in the PUD process, all lands will be subject to the standards for uses and area and bulk requirements allowed by right.~~

~~5-304B. Planned Unit Development (PUD) Procedure~~

~~All development proposed within the LD Zone District, except for proposed development of uses allowed by right, shall be reviewed pursuant to the Planned Unit Development (PUD) procedure to establish permitted uses and to allow variation from the area and bulk requirements established in this Section. Refer to Section 3-7 for PUD procedure and Section 5-14 for PUD Standards.~~

5-304BE. Uses Allowed by Right

- I. Single-~~family household~~ dwellings with less than twelve thousand (12,000) sq. ft. of Floor Area.
 - a. For Single-~~family household~~ dwellings with greater than five thousand (5,000) sq. ft. of Floor Area but less than twelve thousand (12,000) sq. ft. of Floor Area: if the proposed residence is located within a subdivision or PUD with an established Home Owner's Association (HOA) that is responsible for administering an applicable design review board general declaration covenant requirement, the applicant shall provide a written approval of the proposed building plan from the HOA as part of their Development Permit application;
 - II. Customary residential accessory buildings and uses;
 - III. Day care homes; ~~and~~
 - IV. Home occupations-; ~~and~~
 - V. Accessory dwelling units.
 - a. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX.
- 5-304~~CD~~. Uses Allowed Subject to Administrative Review
- I. ~~Second~~ Accessory Dwelling Units pursuant to Section 5-1302B and-~~The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily~~ deed restricted pursuant to LUC Section 5-1303 G.XIX; and
 - II. Day care centers - allowed only on lots of at least one (1) acre.
- 5-304~~DE~~. Uses Allowed Subject to One-step Planning Commission Review
- I. Equestrian Centers (see Section 5-24)-;
 - II. Duplex dwellings with less than twelve thousand (12,000) square feet of total floor area;
 - III. For development on parcels up to 35 acres that meets the Tier 1 or Tier 2 requirements as set forth in Section 5-304G, the following shall be allowed by one-step Planning Commission review
 - a. Single-household dwellings;
 - b. Duplex dwellings.
- 5-304E. Uses Allowed Subject to Two-step Special Use Permit Review
- I. On parcels greater than 35 acres and up to 25 single-household or duplex dwellings that meets the requirements as set forth in Section 5-304G for Tier 1 Tier 2.

I. Single-household dwellings greater than twelve thousand (12,000) sq. ft. of total floor area require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307 L.

a. Such single-household dwellings must include at least one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than one thousand (1,000) sq. ft.

II. Duplex dwellings with greater than twelve thousand (12,000) square feet of total floor area require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307 L.

a. Such duplex dwellings must include at least one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than one thousand (1,000) sq. ft.

III. Fire stations; and

IV. Churches.

5-304F. Uses Allowed Subject to Board of County Commissioners Approval Pursuant to the Planned Unit Development (PUD) Procedure

I. ~~Fire stations;~~ Single-household dwellings that do not meet the Tier 1 or Tier 2 requirements as set forth in Section 5-304G;

II. Duplex dwellings ~~that do not meet the Tier 1 or Tier 2 requirements as set forth in Section 5-304G;~~

III. Tier 1 or Tier 2 development in excess of acreages and unit totals; and

~~III. Churches; and~~

~~IIIIV.~~ Neighborhood Commercial Uses that offer goods and services needed by residents of the PUD on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry and postal service substation ~~not to exceed a total of one thousand (1,000) gross square feet.~~

Table 5-304-1 Low Density (LD) Zone District Uses

Use	By Right – Development Permit	Administrative Review	One-Step Planning Commission	Two-Step	PUD 5-Step
Single Household, Detached	Y - <12,000 s.f.		Y – Tier 1 or Tier 2 up to 35 acres	Y - >12,000 s.f.; Tier 1 or Tier 2 >35 acres and up to 25 units	Y – not Tier 1 or Tier 2; Tier 1 or Tier 2 in excess of acreage or

					unit limits
Duplex			Y	Y - >12,000 s.f.; Tier 1 or Tier 2 >35 acres and up to 25 units	Y – not Tier 1 or Tier 2; Tier 1 or Tier 2 in excess of acreage or unit limits
Accessory Dwelling Unit	Y – 1 st	Y – 2 nd , Deed-restricted			
Day Care Homes	Y				
Home Occupations	Y				
Day Care Centers		Y			
Churches				Y	
Fire stations				Y	
Neighborhood Commercial Uses					Y

5-304G. Area and Bulk Requirements ~~Permitted by Right~~

- I. Density - one (1) dwelling unit per lot ~~with the following possible density bonuses:~~
 - i. ~~Tier 1 Density Bonus: maximum of one (1) dwelling unit per seven (7) acres if fifty percent (50%) to seventy-nine percent (79%) of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).~~
 - ii. ~~Tier 2 Density Bonus: maximum of one (1) dwelling unit per five (5) acres if eighty percent (80%) or more of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).~~
- II. Minimum Lot Area - thirty-five (35) acres ~~with the following possible density bonuses:~~
 - i. ~~Tier 1 and Tier 2 Density Bonus: minimum lot size of two (2) acres if fifty percent (50%) or more of the total units are deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).~~
- I. Setbacks
 - a. Front yard - ~~fifty (50) feet~~ twenty-five (25) feet
 - b. Rear yard - ~~fifty (50) feet~~ twenty-five (25) feet
 - c. Side yard - ~~fifty (50) feet~~ twenty-five (25) feet
- II. Maximum Building Height - thirty-five (35) feet

5-304H. Area and Bulk Requirements Permitted Subject to Board of County Commissioners Approval Pursuant to the Planned Unit Development (PUD) Procedure

I. Maximum Density - one (1) unit per seven (7) acres

II. Minimum Lot Size – one (1) acre

III. Setbacks

a. Front yard - Determined pursuant to PUD procedure

b. Rear yard - Determined pursuant to PUD procedure

c. Side yard - Determined pursuant to PUD procedure

IV~~III~~. Maximum Building Height - thirty-five (35) feet

5-304I. Review Standards for Land Uses and Area and Bulk Requirements Requiring Board of County Commissioner Approval pursuant to the Planned Unit Development (PUD) Procedure

An applicant seeking approval for any of the uses listed in Sections 5-304 F or approval to utilize the area and bulk requirements in Section 5-304 ~~HG~~ must demonstrate to the satisfaction of the Board of County Commissioners substantial compliance with the standards in this Section.

- I. The use is consistent with the Land Use Policies (Article 2);
- II. Adequate public services such as roads, water, wastewater, public safety and fire protection are available to serve the proposed use and an applicant adequately mitigates the incremental impacts on the community's existing public services;
- III. The use minimizes or mitigates any materially adverse environmental impacts and generally utilizes the most environmentally suitable site;
- IV. Any proposed structures are located outside the Scenic Foreground Overlay Zone District or are designed consistently with the Scenic Foreground Overlay standards;
- V. The use is consistent with the relevant goals and objectives of the San Miguel County Comprehensive Development Plan;
- VI. Acceptable guarantees (as described in the East End Master Plan) have been made for the provision of:
 - a. Adequate transportation to serve the development (see Section 5-2001);
 - b. A sufficient quantity and quality of affordable housing to house the employees attributable to the proposed land use (see Section 5-1304); and
 - c. A sufficient quantity and quality of recreational amenities to serve the residents of the development without overburdening existing off-site recreational facilities (see Section 5-803); and
- VII. Any neighborhood commercial services are designed and planned to be compatible with the surrounding neighborhood (see Section 5-1403 B) to reduce traffic

generation, mitigate traffic circulation and parking problems and serve the daily or frequent trade or service needs of the neighborhood.

5-304J. Minimum Common Open Space - sixty percent (60%)

5-304K. Minimum Off-street Parking

Off-street parking shall be provided for each use as required in Section 5-702.

~~5-304L. Uses Allowed Subject to Two-step Special Use Permit Review~~

~~Single-family greater than twelve thousand (12,000) sq. ft. require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307 L.~~

~~I. Such dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than eight hundred (800) sq. ft.~~

5-319.1 Wright's Mesa (WM) (1991)

5-319.1B. Uses Allowed by Right on Parcels Less than 150 Acres

- I. Normal and customary agriculture and ranching activities;
- II. Single ~~household family~~ dwellings (including mobile homes) and accessory buildings;
- III. Day care homes;
- IV. Logging operations resulting in hauling of up to fifteen thousand (15,000) board feet in any 12-month period beginning with commencement of hauling;
- V. Home occupations;
- VI. Equestrian activities and private riding stables with structures up to three thousand (3,000) sq. feet; ~~and~~
- VII. Bed and Breakfasts with five (5) or fewer rooms for rent; ~~and~~;
- ~~VIII. Secondary dwelling unit per standards in Section 5-1302D.~~

5-319.1D. Uses Allowed Subject to Administrative Review

- I. ~~A second~~ Secondary Dwelling Unit ~~=a second dwelling unit shall~~ may be allowed on parcels ~~thirty-five (35) five (5) acres or larger~~ subject to the standards of Section 5-1302D., provided that:
 - ~~a. No uses other than a single-family dwelling, home occupation and/or normal and customary agriculture and ranching activities exist on the property, and~~
 - ~~b. No Subdivision Exemption for Wright's Mesa has been granted for the parcel, and~~

~~c. The parcel was not created through a Subdivision Exemption for Wright's Mesa. Such unit may be attached to or located within three hundred (300) feet of the primary residence (as measured between the closest exterior walls). Such unit shall contain no more than two thousand (2,000) sq. ft. of floor area, and shall contain full kitchen and bathroom facilities. Second Dwelling Units shall not be conveyed or sold separately from the remainder of the parcel and shall remain under the same ownership as the primary residence;~~

- II. Logging operations resulting in hauling of up to three hundred thousand (300,000) board feet in any 12-month period beginning with commencement of hauling in accordance with all provisions of Sections 5-319.1 K and 5-17;
- III. Open Land Protection Subdivision Exemption for four (4) or fewer lots (see Section 5-1207); and
- IV. Minor Oil and Gas exploration, drilling and pipelines, including wells, and geophysical operations (refer to Section 5-26).

5-319.2 Wright's Mesa Zone Districts (2010)

5-319.2D Purposes

- I. Wright's Mesa Rural Agricultural (WMRA) – **No changes to this section**
- II. Wright's Mesa Rural Residential (WMRR) - **No changes to this section**
- III. Wright's Mesa Light Industrial (WMLI)

The Wright's Mesa Light Industrial (WMLI) district is established to implement the "Town Light Industrial" land use classification in the Wright's Mesa Master Plan. The district is intended to apply to county parcels that have been identified as appropriate for light industrial development currently outside town limits but within the Town of Norwood Master Plan Boundary. The district is intended to allow for the development of small-scale and relatively low-impact manufacturing and processing uses, offices, business services, ~~live-work units~~ **mixed-use residential**, civic uses, and other uses compatible with the small-town character of Norwood, in locations where uses and activities can be efficiently served by the Town of Norwood, Norwood Sanitation District, and Norwood Water Commission. This district is near the downtown commercial area and at the edge of town residential areas, where town-level residential and commercial should occur. Therefore, commercial and residential uses in this district require greater review process than light industrial uses. Developers seeking higher density or variation in permitted uses or area and bulk requirements shall use the Planned Unit Development (PUD) process and must demonstrate legal and physically adequate water and sewer services. The district's location allows for the expansion of Norwood in a compact and orderly fashion. It is also intended to ensure general consistency with the Town

of Norwood's Major Streets and Future Land Use Plan. Prior to rezoning parcels to the WMLI district, the county will encourage landowners to seek annexation into the Town or enter into a pre-annexation agreement with the Town of Norwood.

IV. Wright's Mesa Town Residential (WMTR)

The Wright's Mesa Town Residential (WMTR) district is established to implement the "Town Residential" land use classification in the Wright's Mesa Master Plan. The district is intended to apply to county parcels that have been identified as appropriate for town-level residential development within the Town of Norwood Master Plan Boundary. "Town-level residential development" is consistent with Town of Norwood residential development densities and all other standards, including paving standards for streets and sidewalks. Developers seeking higher density or variation in permitted uses or area and bulk requirements shall use the Planned Unit Development (PUD) process and must demonstrate legal and physically adequate water and sewer services. The WMTR zone district is determined to be necessary and suitable for future town uses and can be efficiently served by the Town of Norwood, Norwood Sanitation District, and Norwood Water Commission. It is also consistent with the Town of Norwood's Major Streets and Future Land Use Plan. Prior to rezoning parcels to the WMTR district, the eCounty will encourage landowners to seek annexation into the Town or enter into a pre-annexation agreement with the Town of Norwood.

5-319.2E. Allowed Uses

Table 5-319.2-3 lists the uses allowed within the four (4) zone districts. Development or use of property for any other use not specifically allowed in Table 5-319.2-3 and authorized under the applicable procedure is prohibited. All the use categories and use types listed in the Table of Allowed Uses are defined in Section [5-319.2 K](#).

I. Explanation of Table Abbreviations

Table 5-319.2-2 lists the review procedures and abbreviations used in the Table of Allowed Uses (Table 5-319.2-3).

TABLE 5-319.2-2: PROCEDURES AND ABBREVIATIONS	
ABBREVIATION	EXPLANATION
P	"P" indicates that the use is permitted by right, subject to compliance with any additional regulations set forth in the final column of the table. Notwithstanding the designations in Table 5-319.2-3, any use proposing access onto a county road or state highway is subject to issuance of a development permit.

P-D	"P-D" indicates that the use is permitted by right, subject to compliance with any additional regulations set forth in the final column of the table, and subject to issuance of a development permit.
S-1	"S-1" indicates that the use is allowed subject to approval of a Special Use Permit, following the one-step Board of County Commissioner review and decision procedure set forth in Section 5-319.2 F.II.a.
S-2	"S-2" indicates that the use is allowed subject to approval of a Special Use Permit, following the two-step Planning Commission/Board of County Commissioner review and decision procedure set forth in Section 3-6.
A	"A" indicates that the use is allowed as accessory to a principal use of the property, subject to compliance with any additional regulations set forth in the final column of the table.
A-D	"A-D" indicates that the use is allowed as accessory to a principal use of the property, subject to issuance of a development permit and subject to compliance with any additional regulations set forth in the final column of the table.
T-D	"T-D" indicates that the use is allowed as a temporary use, subject to issuance of a development permit and subject to compliance with any additional regulations set forth in the final column of the table.

TABLE 5-319.2-3: TABLE OF ALLOWED USES						

RESIDENTIAL USES						
USE CATEGORY	USE TYPE	WMRA	WMRR	WMLI	WMTR	USE SPECIFIC STANDARDS
Household Living	Dwelling, Single-family household (manufactured and mobile homes on permanent foundations)	P-D	P-D	P-D	P-D	
	Dwelling, Cottage Housing				S-2	Section 5-319.2 H.II.a., 5-1011
	Dwelling, Duplex				P-D	
	Dwelling, Live/work			P-D		Section 5-319.2 H.II.b.
	Dwelling, Multi-family household				S-2	Section 5-319.2 H.II.c.
	Secondary Dwelling tr Unit(s)	P-D				Section 5-319.2 H.II.d., Section 5-1302
	Accessory shed or outbuilding (200 sf or less in residential district)	P	P	P	P	
Group Living	Boarding or Rooming House				S-1	Section 5-319.2 H.II.e.
	Cohousing				S-1	Section 5-319.2 H.II.f., 5-1011

TABLE 5-319.2-3: TABLE OF ALLOWED USES						

RESIDENTIAL USES						
USE CATEGORY	USE TYPE	WMRA	WMRR	WMLI	WMTR	USE SPECIFIC STANDARDS
						Section 5-1010
	Convent or Monastery	S-1				
	Nursing Home				S-1	

ACCESSORY USES						
	Accessory Use/Structure	A-D	A-D	A-D	A-D	
	Dwelling, Alley House				A-D	Section 5-319.2 H.VI.a
	Caretaker or Guard Residence				A-D	
	Home occupation (accessory to Single-family household Dwelling)					Section 5-319.2 F.I. *Building Permit may be required

TABLE 5-319.2-4: AREA AND BULK REQUIREMENTS				
	WMRA	WMRR	WMLI	WMTR
MINIMUM LOT AREA				
Non-residential uses or group living	35 acres except for OLP and subdivision exemption	As previously platted	6,000 sf.	
Single- family household or duplex—no duplex in WMRA	35 acres except for OLP and subdivision exemption	As previously platted	5,000 sf.	5,000 sf
Multi- family household or cottage housing				2,500 sf (allowed by PUD)
Alley House, accessory use				7,500 sf (for Single- family household Dwelling and Alley House)
MAXIMUM LOT AREA				
Principal Use	n/a	n/a	n/a	10,000 sf
MINIMUM LOT WIDTH				
Non-residential uses of group living	50 ft	50 ft	50 ft	
Single- family household	50 ft	50 ft	48 ft	48 ft
Multi- family household				60 ft
Cottage housing				25-35 ft (allowed by PUD)
MINIMUM SETBACKS				

TABLE 5-319.2-4: AREA AND BULK REQUIREMENTS				
	WMRA	WMRR	WMLI	WMTR
Front	30 ft	10 ft	15 ft	15 ft
Side	20 ft	10 ft	10 ft	10 ft. (no less than 5 ft for Cottage Housing allowed by PUD)
Rear	20 ft	10 ft	10 ft	Zero for Single- family household ; 10 ft for Multi- family household and Alley Houses; 5 ft for all other types (no less than 5 ft for Cottage Housing allowed by PUD) when rear yard is adjacent to an alley
MAXIMUM HEIGHT OF BUILDINGS				
Primary Use	35 ft	35 ft	30 ft	25 ft
Accessory Use	35 ft	35 ft	30 ft	18 ft
MAXIMUM LOT COVERAGE				
All Uses	n/a	n/a	50%	25%
Cottage Housing				40% for Single- family household and Cottage Housing (allowed through PUD)
Single- family household with Alley House accessory				50% or 5,000 ft, whichever is less

TABLE 5-319.2-4: AREA AND BULK REQUIREMENTS				
	WMRA	WMRR	WMLI	WMTR
Planned Unit Development			80%	80%
MINIMUM FLOOR AREA PER UNIT				
Non-residential uses	No Minimum	No Minimum	No Minimum	
Single- family household	No Minimum	No Minimum	800 sf GFA	800 sf GFA
Duplex			500 sf GFA	500 sf GFA
Cottage				500 sf GFA (allowed by PUD)
Multi- family household or Alley Houses				350 sf GFA (allowed by PUD)
OFF-STREET PARKING				
Shall be provided for each use as required in Section 5-702				

5.319.2.H. Use-Specific Standards

All Uses are subject to the applicable use-specific standards set forth in the section.

II. Residential

a. Cottage Housing

A cottage housing development in the WMTR district shall ~~develop as part of a PUD meet the standards of Section 5-1011. and shall comply with the following standards:~~

- ~~i. Lot Area (Minimum and Maximum): Minimum lot area shall be thirty thousand (30,000) square feet. Maximum lot area shall be forty-five thousand (45,000) square feet.~~
- ~~ii. Number of Units (Minimum and Maximum): Shall include a minimum of four (4) units and a maximum of nine (9) cottage dwelling units, all included in one (1) development application.~~
- ~~iii. Size of Units: A detached dwelling unit shall not be greater than eight hundred fifty (850) square feet in lot coverage or a maximum floor area of one thousand five hundred (1,500) square feet or 1.5 times the lot coverage, whichever is less.~~
- ~~iv. Common Open Space: Each cottage dwelling unit shall include a minimum of two hundred fifty (250) square feet of common open space. At least fifty percent (50%) of each cottage dwelling unit shall abut common open space. All cottage dwelling units shall be within sixty (60) feet of common open space, and the common open space shall have cottage dwelling units abutting at least fifty percent (50%) of its boundaries.~~

b. Dwelling, Live/Work

The live/work use may have a maximum of one (1) additional employee who is not a resident.

c. Dwelling, Multi-household Family

Multi-household family units in the WMTR district ~~shall be developed only as part of PUD and~~ shall comply with the following standards:

- i. Location: Units shall be located within the WMTR or WMLI master plan area. The density and appearance must be compatible with the surrounding neighborhood.
- ii. Streets: Streets shall be adequate for traffic generated by the use.
- iii. Variety: The development provides a variety of model or building types.
- iv. Massing: Design techniques shall be used to break up the scale of buildings that are greater than twenty thousand (20,000) square feet GFA to provide visual diversity.
- v. Utilities: Utilities shall be adequate to serve the development.

d. Secondary Dwelling Unit

~~A secondary~~ Secondary dwelling(s) shall be allowed provided that it complies with the standards of Section 5-1302D, following:

- ~~i. Minimum Lot Size: The minimum lot size shall be five (5) acres.~~

- ~~ii. Secondary Use: No uses other than a single-family dwelling, home occupation(s), and/or agriculture and ranching activities exist on the property, and no Subdivision Exemption for Wright's Mesa has been granted for the parcel, and the parcel was not created through a Subdivision Exemption for Wright's Mesa.~~
- ~~iii. Location: The secondary dwelling unit may be attached to or located within three hundred (300) feet of the primary residence (as measured between the closest exterior walls). A secondary dwelling unit more than three hundred (300) feet from the primary residence shall only be permitted by special use review.~~
- ~~iv. Size: The unit shall not exceed two thousand five hundred (2,500) square feet floor area, and shall contain full kitchen and bathroom facilities.~~
- ~~v. Ownership: Secondary Dwelling Units shall not be conveyed or sold separately from the remainder of the parcel and shall remain under the same ownership as the primary residence.~~

e. Boarding or Rooming House

A boarding or rooming house use shall provide at least seventy (70) square feet of habitable floor area for each room intended for sleeping and at least thirty (30) additional square feet of floor space for each additional intended occupant.

f. ~~Co-Housing~~ Cohousing

~~Co-housing~~ Cohousing units may be permitted in the WMTR and WMLI zone districts only as part of a PUD if they are located within the WMTR or WMLI Master Plan area. Cohousing units must meet the requirements of Section 5-1010. The density and appearance must be compatible with the surrounding neighborhood.

VI. Accessory Uses and Structures

An accessory use shall be incidental and customarily subordinate to a principal use of the property. All accessory uses shall comply with the standards for the principal use and the standards set forth in this section.

a. Alley House (Accessory)

An Alley House, as an accessory use to a conforming single-household family dwelling in the WMTR district, is subject to the following conditions:

- i. Size of Building: The Alley House may contain up to five hundred (500) square feet or fifty percent (50%) of the finished and heated square footage of an otherwise conforming single-household family dwelling or double-wide manufacture/mobile home, a garage or

other accessory building, subject to compliance with applicable setbacks and maximum lot coverage requirements.

- ii. Configuration: The Alley House may be attached or detached to an otherwise conforming single-~~household family~~ dwelling unit or a double wide manufactured/mobile home, a garage or other accessory building, subject to compliance with applicable setbacks and maximum lot coverage requirements.
- iii. Parking: One (1) additional off-street parking space with access to and from an alley shall be provided for the Alley House, in addition to off-street parking otherwise required for single-~~household family~~ residences in Section 5-702.
- iv. Utilities: All applicable water and sewer fees shall be paid for the accessory Alley House as required for any residence or dwelling unit.
- v. Other: The Alley House shall not be sold separately.

5-319.2K. Wrights Mesa Definitions

The following definitions apply specifically to Wright's Mesa. They are organized by general use categories and specific use types. These definitions supplement the list of defined terms in Article 7 of the Land Use Code.

RESIDENTIAL USES

HOUSEHOLD LIVING

This use category is characterized by residential occupancy of a dwelling unit by a household. Tenancy is arranged on a month-to-month or longer basis (lodging where tenancy may be arranged for a period of less than thirty (30) days is classified under the "Lodging Facilities" category). Common accessory uses include recreational activities, raising of pets, gardens, personal storage buildings, hobbies, and parking of the occupants' vehicles. Specific use types include, but are not limited to:

Dwelling, Single-~~household family~~ (~~?Single-family Residence?~~ and ~~?Single-family Dwelling?~~ defined in Article 7)

Cottage Housing defined in Article 7

~~A comprehensive development consisting of cottages on a single lot. Individual dwelling units are clustered around a shared courtyard (common open space) with off-street parking and access.~~

Dwelling, Duplex (~~"Duplex Residence"~~ defined in Article 7)

Dwelling, Live/Work

A structure or portion of a structure: (1) that combines a commercial or manufacturing activity that is allowed in the zone district with a residential living space for the owner of the commercial or manufacturing business, or the owner's employee, and that person's household; (2) where the resident owner or employee of the business is responsible for the commercial or manufacturing activity performed; and (3) where the commercial or manufacturing activity conducted takes place subject to a valid business license associated with the premises.

Dwelling, Multi-~~household family~~ ("~~Multi-family unit~~" defined in Article 7: (includes townhouses)

Dwelling, Single-~~household family~~ ("Single-family Residence" and "Single-family Dwelling" defined in Article 7)

Mobile Home ("Mobile Home" defined in Article 7)

Mobile Home Park ("Mobile Home Park" defined in Article 7)

Secondary Dwelling Unit

A Secondary Dwelling Unit is a second residence on an existing parcel. Secondary Dwelling Units may be attached to or detached from the Primary Residence.

GROUP LIVING

This use category is characterized by residential occupancy of a structure by a group of people who do not meet the definition of "Household Living". Tenancy is arranged on a monthly or longer basis, and the size of the group may be larger than a family. Generally, Group Living structures have a common eating area for residents. The residents may receive care, training, or treatment, and caregivers may or may not also reside at the site. Accessory uses commonly include recreational facilities and vehicle parking for occupants and staff. Specific use types include, but are not limited to:

Boarding or Rooming House (defined in Article 7)

Co-Housing (~~defined in Article 7~~)

~~A residential arrangement consisting of more than one (1) individually owned dwelling unit and extensive common facilities, such as a large dining room, kitchen, lounges, meeting rooms, recreation areas, library, workshops, childcare, laundry, greenhouses, or other facilities for use by the organized group of residents living in the co-housing community who participate in the planning, design, ongoing management and maintenance of the residential arrangement and in the routine activities of household living.~~

Convent or Monastery

A residence or facility used by nuns or priests, religious sisters or brothers for religious purposes with community facilities such as a dining room, lounges or rooms for worship and meeting.

Nursing Home

A residential facility maintained for the purpose of providing skilled nursing care and medical supervision at a lower level than that available in a hospital to no more than nine (9) residents.

5-309 - Low Intensity Industrial (I)

5-309A. Purpose

The Low Intensity Industrial (I) Zone District is intended to provide for the establishment of non-polluting manufacturing, warehouse, research and repair facilities. The I Zone District also is intended to accommodate retail uses accessory to primary non-retail uses.

5-309B. Uses Allowed by Right

- I. Single-family household dwellings; and
- II. Day care homes.

5-309C. Area and Bulk Requirements Permitted by Right

- I. Minimum Lot Area - thirty-five (35) acres
- II. Setbacks
 - a. Front yard - fifty (50) feet
 - b. Rear yard - thirty (30) feet
 - c. Side yard - twenty (20) feet
- III. Maximum Building Height - thirty-five (35) feet

5-309D. Uses Allowed Subject to Board of County Commissioners Approval Pursuant to the Planned Unit Development (PUD) Procedure

Uses allowed include, but are not limited to the following and similar types of uses:

- I. All uses allowed in the HC Zone District;
- II. Appliance and equipment rental, storage and repair;
- III. Automobile washing facilities;
- IV. Electrical and plumbing service shops;
- V. Commercial bakeries;
- VI. Computer product sales and service;
- VII. Printing and publishing plants;
- VIII. Telecommunications supply;

- IX. Utility service facilities;
- X. Day care centers - allowed only lots of at least one (1) acre;
- XI. Affordable Housing, accessory to a principal use, for persons employed within the PUD, and ~~Mixed-Use Residential Live-work Housing (as defined in Section 5-1305-B.X)~~; and
- XII. Business and Professional Offices.

5-307 Forestry, Agriculture and Open (F)

5-307A. Purpose

The Forestry, Agriculture and Open (F) Zone District is intended to preserve large, relatively remote areas of the County for resource, agricultural, open space and recreational purposes. These areas currently have minimum public facilities and services and are considered inappropriate for substantial development. Development activities in these areas should be limited to the minimal list of activities that are allowed under State and Federal laws. All permitted development should fully mitigate the effects of such development upon the environment and on the County's budget. Development and/or special uses are encouraged to be located outside environmentally sensitive land.

5-307B. Uses Allowed by Right

- I. Single-family household dwellings with less than twelve thousand (12,000) sq. ft. of floor area, mobile homes and accessory uses and accessory buildings with footprints less than three thousand (3,000) sq. ft. (if such buildings and uses are not part of normal and customary agriculture and ranching activities);
- II. Day care homes;
- III. Logging operations resulting in hauling of up to five thousand (5,000) board feet in any 12-month period beginning with commencement of hauling;
- IV. Normal and customary agriculture and ranching activities; and
- V. Home Occupations.
- VI. Caretaker Units per standards in Section 5-1302C.

5-307C. Uses Allowed Subject to Administrative Review

- I. A second Caretaker unit ~~-A second residential unit~~ may be allowed on all parcels, thirty-five (35) acres or larger; and on parcels five (5) to thirty-five (35) acres in the Telluride R-1 School District meeting the following standards: except no
 - a. Caretaker units shall not be allowed in the San Miguel Canyon Area;

- b. ~~Caretaker units shall meet all standards of Section 5-1302C; and Such unit shall be attached to or located within three hundred (300) feet of the primary residence (as measured between the closest exterior walls). Such unit shall contain no more than two thousand (2,000) sq. ft. of floor area, and shall contain full kitchen and bathroom facilities. The Floor Area of the caretaker unit shall be included in the calculation for employee housing Impact Fee mitigation as defined in Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX. No lease or rental of a caretaker unit shall be for a term less than six (6) months. Caretaker units shall not be conveyed or sold separately from the remainder of the parcel and shall remain under the same ownership as the primary residence;—~~
- c. The second Caretaker unit shall be deed restricted pursuant to Section 5-1303 G.XIX.

- II. Day care centers - allowed only on parcels of at least two (2) acres;
- III. Ski area trails and slopes. The Planning Director shall require the developer to demonstrate that off-site impacts are mitigated in accordance with the standards in Section 5-10. If the impact mitigation plan does not meet these standards, the development shall be subject to One-step Planning Commission Review pursuant to Section 5-10;
- IV. Logging operations resulting in hauling of between five thousand (5,000) and three hundred thousand (300,000) board feet in any 12-month period beginning with commencement of hauling; and
- V. Minor Oil and Gas exploration, drilling and pipelines, including wells, and geophysical operations (refer to Section 5-26).

5-307F. Uses Allowed Subject to Two-step Special Use Permit Review

- I. Water treatment plants;
- II. Airports, sanitary landfill operations and sewage disposal areas, subject to Section 5-307 K;
- III. Kennels and veterinary hospitals;
- IV. New ski area base facilities (also subject to the provisions of Section 5-1303 D.I), ski lifts and related buildings, parking and incidental facilities (also subject to the provisions of Section 5-1303 D.II);
- V. Public utility structures, including dams and reservoirs (refer to Section 5-709);
- VI. Music or other festivals with anticipated attendance of more than two hundred (200) people;
- VII. Hotels, subject to Section 5-307 I;
- VIII. Aircraft Landing Areas;

- IX. Wind Turbines for commercial uses;
- X. Golf Courses subject to a conceptual joint work session with the Planning Commission and Board of Commissioners prior to the applicant submitting engineering documents and survey drawings (subject to compliance with Standards in Section 5-1004);
- XI. Single-~~family household~~ Dwellings greater than twelve thousand (12,000) sq. ft. of Floor Area on a minimum of thirty-five (35) acres shall comply with the standards in Section 5-307 L. (LUC Section 5-10 does not apply).
- XII. Major Oil and Gas Facilities, including compressor stations, gas treatment facilities and pipelines (refer to Section 5-26).
- XIII. Conditional Uses on Federal Lands subject to Section 5-11, Article 6, and applicable State and Federal statutes and regulations.
- XIV. Social and Scenic Uses, such as a location for weddings, meetings, retreats, reunions, video and film photo shoots and commercials, on parcels containing thirty-five (35) acres or more, and with attendance of more than two hundred (200) guests.
- XV. Cohousing Units per Section 5-1010.

5-307G. Area and Bulk Requirements

I. Minimum Lot Area

- a. The minimum lot size for each principal use is thirty-five (35) acres except for single-~~family household~~ residential dwellings approved pursuant to the subdivision exemption standards for Open Land Protection (see Section 5-1207).
- b. Any legally created parcel less than thirty-five (35) acres in the F Zone District is eligible for any Use Allowed by Right, Permitted, Use Allowed by Administrative Review, Use Allowed subject to One-step Review or Use Allowed subject to Two-step Special Use Permit Review, provided for in the F Zone District, except that uses subject to One-step review under the Code shall be subject to the Two-step review process, if all other land use code standards are met, and provided the parcel meets the criteria set forth in Section 5-1908.

II. Minimum Setbacks

- a. Front Yard - thirty (30) feet
- b. Side Yard - twenty (20) feet
- c. Rear Yard - twenty (20) feet

III. Maximum Height of Buildings - thirty-five (35) feet

5-307H. Minimum Off-street Parking

Off-street parking shall be provided for each principal use as required in Section 5-702.

5-307I. Hotel, Guest Ranch, and Bed and Breakfast Standards for the F Zone District. In addition to complying with the standards for special uses in Section 5-10, hotels shall comply with the standards in this section:

- I. Neither activity nor traffic associated with a hotel may materially and/or substantially adversely affect ranching or farming operations, residences or scenic quality of land surrounding State or County roads;
- II. All hotel buildings must comply with the setbacks and height restrictions;
- III. Minimum Lot Size - forty (40) acres;
- IV. Maximum occupancy may be limited depending upon impacts on surrounding property;
- V. Accessory facilities within the hotel complex may include restrooms and showers;
- VI. Full meals must be provided for overnight guests and may be provided for others;
- VII. All exterior lighting shall comply with the standards of Section 5-710;
- VIII. Affordable housing for hotel employees may be allowed as an accessory use;
- IX. Any other conditions necessary to preserve the character of the F Zone District and protect wildlife habitat may be applied to hotels in the F Zone District;
- X. Population density allowed, including for all Affordable Housing required and/or requested, shall not exceed the density allowed for the acreage of the subject parcel at one (1) single-~~family household~~ residential unit per thirty-five (35) acres (except south of Wright's Mesa and Beaver Canyon);
- XI. Sole access to the hotel parcel may not be achieved by aircraft, and all access roads must meet all applicable County road standards (except south of Wright's Mesa and Beaver Canyon); and
- XII. The hotel parcel shall be deed restricted against any future subdivision (except south of Wright's Mesa and Beaver Canyon).
- XIII. An existing hotel or guest ranch that is nonconforming solely because it includes density beyond that allowed pursuant to this Section 5-307 I is eligible to become a permitted use under this section, provided that the population density, including Affordable Housing for employees, is not increased.

5-307K. Single-~~family household~~ Dwellings over twelve thousand (12,000) square feet of Floor Area on a minimum of thirty-five (35) acres

- I. Such dwellings must include at least one (1) Caretaker Unit or Accessory Dwelling Unit (depending upon Zone District), as provided in Section 5-1302-B-H-g and subject to ~~County R-1 Housing Deed Restriction and ADU~~ Deed Restriction and Covenant as approved by the Board of County Commissioners and as set forth in

~~Section 5-1303 G.XIX~~, of at least eight hundred (800) square feet but no greater than two thousand (2,000) square feet for a Caretaker Unit and of at least seven hundred (700) square feet but no greater than ~~eight hundred (800)~~ one thousand (1,000) square feet for an Accessory Dwelling Unit.

II. Submission Requirements

- a. A Site plan shall be provided including:
 - i. Building plan, including location and dimensions of structures;
 - ii. Typical elevations/heights of buildings;
 - iii. Topography;
 - iv. Existing landscaping and proposed landscaping plan;
 - v. Lighting plan; all exterior lighting shall comply with the standards of Section 5-710; and
 - vi. Existing structure and uses on adjacent parcels.
- b. Applicant shall address Land Use Code Section 5-21 Scenic Quality Standards. Each developer shall describe in detail how the visual impact of the proposed development on neighboring developments and public use areas shall be mitigated.

III. Review Standards

- a. Demonstration of compliance with the ~~most-current building and energy codes Prescriptive Energy Code and Green Building Standards~~ as adopted by Board of County Commissioners ~~s and as may be amended-Resolution 2005-44;~~
- b. Provisions to provide renewable energy sources such as, but not limited to, passive solar design, wind, geothermal, photovoltaic, hydrogen fuel cells, etc.;
- c. Parcel size and preservation of Open Space;
- d. The use shall be consistent with and compatible with the Character of the neighborhood of the parcel proposed for development and surrounding land uses;
- e. Compatibility with the Character of Parcels adjacent to the Parcel shall be expressed in terms of appearance, scale and features, Site design, landscaping, weed seed dispersal, as well as, the control and Minimization of adverse Impacts including Noise, vibration, dust, dirt, smoke, fumes, gas, odor, explosion, glare, Impacts on pedestrian and traffic congestion, parking, trash, service delivery, or other undesirable or hazardous conditions; and
- f. Demonstration of Compliance with Scenic Quality standards in Section 5-2101.

5-315 Public (PUB) Zone District

5-315B.

Uses Allowed Subject to One-step Planning Commission Approval

- I. Hospitals;
- II. Libraries;
- III. Schools;
- IV. Cemeteries;
- V. Fire Stations;
- VI. Police Stations;
- VII. Public Museums;
- VIII. Water and Sewage Treatment Plants;
- IX. Public Airports;
- X. ~~Accessory~~ Affordable Housing wherein at least fifty (50) percent of the units are reserved for employees employed on-site or for First Responders or Essential Personnel and all of which are deed restricted pursuant to LUC Section 5-1303 G.XIX;
- XI. RV, tiny home, yurt and other Alternative Living Spaces for the housing of seasonal workers;
- XII. Road Maintenance Facilities; and
- XIII. Animal Shelter.

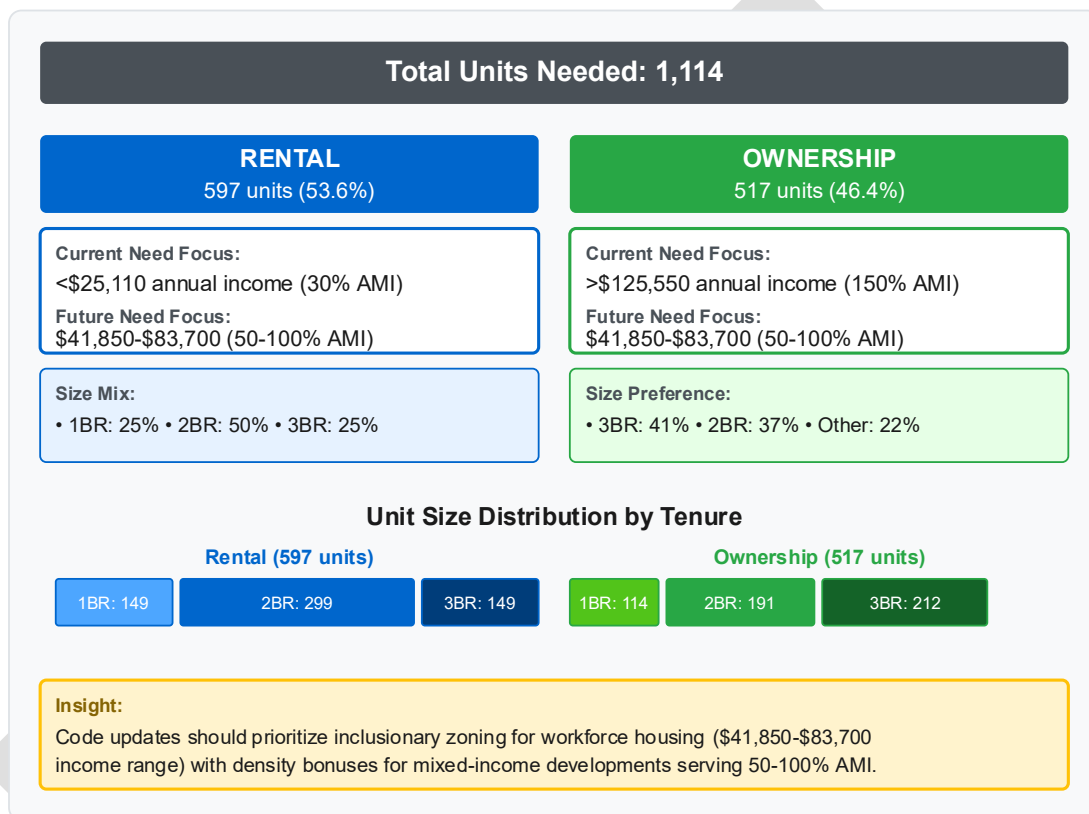
Related amendments to Article 3 and amendments changing “family” to household” as needed throughout the Code will be prepared prior to public hearings for adoption.

END

Appendix B: Housing Needs Context

2025 San Miguel County Regional Housing Needs Assessment

The 2025 San Miguel County Regional Housing Needs Assessment reveals a severe housing crisis that affects every aspect of community life in San Miguel County. The analysis identifies both immediate shortages and future growth needs, providing the quantified foundation for this code update effort. In total, 1,114 units are needed by 2034 for both unincorporated and incorporated areas.

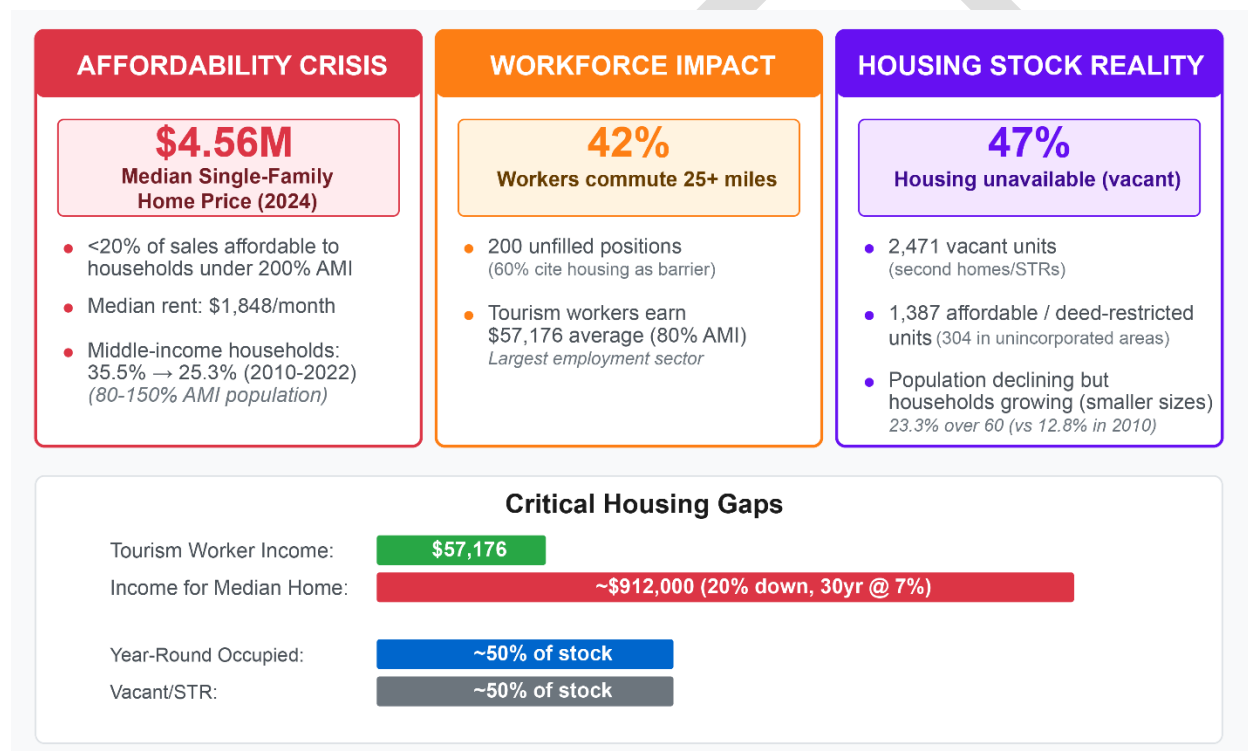


Source: 2025 San Miguel County Regional Housing Needs Assessment

These numbers reflect need under current economic conditions and commuting patterns, and do not include development applications in the approval pipeline. While these efforts focus on code updates to the LUC, housing needs transcend jurisdictional boundaries within the County. Each incorporated town operates under its own building and land use codes, so effective solutions will require coordinated planning to ensure a consistent and aligned regional housing strategy – especially between the County, Telluride, Mountain Village, Norwood, and Ophir. The analysis assumes that a significant number of workers would choose to live locally if appropriate housing were available.

Market Context

This snapshot highlights the depth of the local housing crisis and its ripple effects on the workforce and community stability. Single-household dwelling prices soared to \$4.56 million in 2024, up from \$1.2 million in 2018, and representing an over \$0.5 million increase each year. Fewer than 20% of home sales are affordable even for households earning twice the area median income. Nearly half of workers now commute more than 25 miles due to limited local options, while about half of all housing units are vacant. Most of these vacant units are concentrated in the East End area, likely as second homes or short-term rentals. The result is a severe mismatch between what local workers earn and what homes cost, leaving critical gaps in year-round housing and threatening the community's long-term sustainability.



Source: San Miguel County Regional Housing Needs Assessment, 2025

Missing Housing Types

Housing options beyond single-household dwelling types include accessory dwelling units (ADUs), caretaker units, secondary dwelling units, duplexes, single-household attached dwellings, cottage housing, cohousing, and multi-household dwellings. These small single- or multi-family housing types are often more affordable to middle-income households due to smaller footprints, shared land and construction costs, and economies of scale reached through increased density.

Middle Income Households in San Miguel County (120-200% AMI, HUD FY 2025 Income Limits):

- In San Miguel County, middle income households earn within the income range of \$100,440-\$167,000 (1-person) to \$143,400-\$239,000 (4-person household).
- Middle-income households declined from 35.5% to 25.3% of the population (from 2010-2022 ACS).
- Many current for sale affordable / deed-restricted units are still unaffordable (\$800K-\$1M sales).
- Market-rate rental housing has a median rent of over \$1,800+. While these price points are unaffordable for households earning less than 80% AMI, the median rent is affordable to middle income households earning 120-200% AMI.
- The greatest shortages identified in the 2025 Regional Housing Needs Assessment are for housing affordable to households earning 51%-80% AMI, followed by households earning 80%-200%+ AMI.

Examples of “Missing Middle” Housing Types:

- **Small-Lot Single-Household:** Single-household dwellings on small lots of less than 1 acre (where infrastructure capacity exists).
- **ADUs:** Community priority; currently allowed by administrative review in the HD, MD and LD Zone Districts.
- **Caretaker Units:** Allowed by administrative review in the F zone district.
- **Secondary Dwelling Units:** Allowed by administrative review in the WM zone district.
- **Small Multifamily:** Duplexes, triplexes allowed in the LD and MD zone districts.
- **Senior Housing:** Aging population needs (23.3% over 60); aging-in-place solutions.
- **Larger Family Units:** Needed to retain families; 41% prefer 3BR, 37% prefer 2BR.
- **Employment-Independent Housing:** Workers in employer-owned housing report low satisfaction/security.
- **Cottage Homes:** Multiple small units, or ‘cottages’, on a single lot. Usually, units are clustered around a shared courtyard or other common open space, but the property is owned and managed by community members.
- **Cohousing:** Similar to cottage homes, cohousing is also defined by private units that surround a common area

Appendix C: Existing Code Context

While the LUC presents permitted uses by listing each district separately within the code text, this document compiles the districts that permit residential uses into the following consolidated tables. This organizational style allows easier comparison across zone districts and makes it simpler for users to check which residential uses are allowed in specific zones at a glance. The table below also identifies approval processes.

Some zone districts reflect past versions of the code and are not meant to be applied to any new areas. These are known as ‘legacy zones.’ The following zone districts are legacy zones: Single-family Residential (R), Mobile Home (MH). The LDR zone was created for specific development projects.

Residential Use Review Processes Table

Zone District	Code Section	By Right Uses (BR) / Administrative Review	1-step / 2-step Processes	PUD
Low Density Residential (LDR)	5-322	BR: SF (<12k sq. ft.) on lot >35 ac.	--	SF (5.5k-7k sq. ft.) on lot < 35 ac; 1 unit/6-8 ac.
Single-family Residential (R)	5-306	BR: SF on lot >35 ac.	--	SF: 9,375 sq. ft. to 2 ac. depending on water and wastewater
Low Density (LD)	5-304	BR: SF (<12k sq. ft.) Admin: ADU	2-step: SF (>12k sq. ft.)	Duplex; 1 unit/7 ac.
Medium Density (MD)	5-303	BR: SF (<12k sq. ft.) Admin: ADU	2-step: SF (>12k sq. ft.)	Duplex; MF 1 unit/3 ac.
High Density (HD)	5-302	BR: SF (<12k sq. ft.) Admin: ADU	2-step: SF (>12k sq. ft.)	Duplex; MF; 40-80 persons/ac. (eq. 10-20 single-family units)

Zone District	Code Section	By Right Uses (BR) / Administrative Review	1-step / 2-step Processes	PUD
Community Housing (CH)	5-324	Admin: Temporary Alternative Living Space Sites	1-step: <5 acres - SF (attached/ detached); Duplex; MF; Rooming; Alt. housing (≤20% units) 2-step: >5 acres - SF (attached/ detached); Duplex; MF; Rooming; Alt. housing (>20% units)	Free-market units*
Affordable Housing Planned Unit Development (AH) (PUD)	5-305	BR: SF on lot >35 ac.	--	SF; Duplex; MF; Rooming Houses 15 units/ac.
Wright's Mesa	5-319.1	BR: SF (MH/mobile); Admin: Secondary Dwelling Unit	--	--
Wright's Mesa Agriculture (WMRA)	5-319.2	BR: SF (MH/mobile); Secondary Dwelling Unit	--	--
Wright's Mesa Rural Residential (MRR)	5-319.2	BR: SF (MH/mobile)	--	--
Wright's Mesa Light Industrial (WMLI)	5-319.2	BR: SF (MH/mobile); Live/work	--	--
Wright's Mesa Town Residential (WMTR)	5-319	BR: SF (MH/mobile); Duplex; Alley House (see notes below table)	1-step: Boarding or Rooming House; Cohousing; Nursing Home 2-step: Cottage; MF	--

Zone District	Code Section	By Right Uses (BR) / Administrative Review	1-step / 2-step Processes	PUD
Forestry, Agriculture, and Open Space (F)	5-307	BR: SF (<12k sq. ft.); Mobile; Admin: Caretaker unit (<2k sq. ft.)	2-step: SF (>12k sq. ft.);	--
Placerville Residential (PR)	5-310	BR: SF	2-step: Boarding and Rooming Houses	--
Placerville Commercial (PC)	5-311	BR: SF	1-step: Accessory Rental Dwelling Units	--
Mobile Home (MH)	5-312	BR: SF; Mobile home Park (subject to provisions)	--	--
Heavy Commercial (HC)	5-308	--	1-step: Affordable housing for persons employed on-site	--
Low Intensity Industrial (I)	5-309	BR: SF	--	Affordable housing for persons employed on-site; Live-work
Mixed Use Development (MXD)	5-323	--	-	Employee housing
Park (P)	5-313	--	1-step: Accessory Affordable Housing for person employed on-site, first responders, essential personnel	--
Public (PUB)	5-315	--	1-step: Accessory Affordable Housing for person employed	--

Zone District	Code Section	By Right Uses (BR) / Administrative Review	1-step / 2-step Processes	PUD
			on-site, first responders, essential personnel	
West End (WE)	5-320	BR: SF (MH/mobile); Group Homes; Farm workers	2-Step: Mobile home parks; Group homes	--
High Density (HD)	5-302	BR: SF (<12k sq. ft.) Admin: ADU	2-step: SF (>12k sq. ft.)	Duplex; MF; 40-80 persons/ac. (eq. 10-20 single-family units)

*Free-market unit % thresholds vary by net zero status, see LUC for details.

Current Review Processes Table

Review Type	Timeline	Decision Body	Public Hearing?	Examples
Administrative (Development Permit)	2-6 weeks	Planning Director	No	Single Family Homes, ADUs, Caretaker Units, minor amendments
One-Step	6-8 weeks	Planning Commission OR BOCC	Yes	Special Use Permits, smaller projects in the CH zone
Two-Step	10-12 weeks	CPC recommendation, BOCC approval	Yes (both)	Rezoning, substantial amendments, major developments, Special Use Permits, larger projects in the CH zone
Five-Step	18+ months	Multiple CPC and BOCC stages	Yes (multiple)	Subdivisions, PUDs

Similar to the residential uses, the existing code's dimensional requirements have been organized into the following table to allow users to easily compare core development metrics (such as lot area, open space, setbacks, and building height) across different zone districts at a glance. Uses and dimensional standards across zone districts have increased allowances and higher thresholds through the County's PUD process. Currently, the Wright's Mesa Town Residential zone district (WMTR) – Table 5-319.2-3 Table of Allowed

Uses conflicts with Section 5-319.2H.II.a & c. There are dimensional standards for Alley Houses, but it's not in the Allowed Uses table.

Dimensional Standards Table

Abbreviations: F: Front Yard; R: Rear Yard; SY: Side Yard; SF: Single-family; MF: Multi-family;

PUD: Planned Unit Development

Zone District	Minimum Lot Area (By Right)	Minimum Lot Area (PUD)	Density	Open Space	Minimum Setbacks (By Right)	Setbacks (PUD)	Maximum Height
Low Density Residential (LDR) 5-322	35 ac	9.75k - 2 ac*		75%	F/R/SY: 50'/50'/50'	25' (envelope)	35'; PUD: 28-35'
Single-family Residential (R) 5-306	35 ac	--		--	F: 30'; R: 20'; SY: 10'	--	35'
Low Density (LD) 5-304	35 ac	--	1 unit/ 7acres	60%	F/R/SY: 50'/50'/50'	Per PUD	35'
Medium Density (MD) 5-303	35 ac	SF: 15k; Duplex/MF: 20k sq. ft.	1 unit/ 3 acres	60%	F: 30'; R: 20'; SY: 20'	F: 25'; R: 20'; SY: 12.5'	35'
High Density (HD) 5-302	35 ac	--	40-80 people/ac. (10-20 eq. units/ac.)	30%	F/R/SY: 30'/30'/30'	By Sec 5-14	35'
Community Housing (CH) 5-324	--	--	20 units/ ac.	30%	To non- CH/ROW: 20'; F/R: 10'; SY Detached:	--	35'; Net Zero: 45'

Zone District	Minimum Lot Area (By Right)	Minimum Lot Area (PUD)	Density	Open Space	Minimum Setbacks (By Right)	Setbacks (PUD)	Maximum Height
					10'; SY Attached: 0'/10'; Accessory: 5'		
Affordable Housing Planned Unit Development (AH) (PUD) 5-305	35 ac.; PUD: SF 6,000 sq.ft.; Duplex 3,000 sq.ft.; MF 2,900 sq.ft.	SF: 6k; Duplex: 3k; MF: 2.9k sq. ft.	15 units/ac.	50%	F/R/SY: 50'/50'/50' PUD, F/R/SY: 10'/5'/10'	F: 10'; SY: 5'; R: 10'	35'
Wright's Mesa (WM) 5-319.1	35 ac.	--	--	--	F: 30'; SY: 20'; R: 20'	--	35'
Wright's Mesa Agriculture (WMRA) 5-319.2	35 ac.	--	--	--	F: 30'; SY: 20'; R: 20'	--	35'
Wright's Mesa Rural Residential (WMRR) 5-319.2	As platted	--	--	--	F: 10'; R: 10'; SY: 10'	--	35'
Wright's Mesa Light	5k sq. ft.	--	--	--	F: 15'; SY/R: 10'/10'	--	30'

Zone District	Minimum Lot Area (By Right)	Minimum Lot Area (PUD)	Density	Open Space	Minimum Setbacks (By Right)	Setbacks (PUD)	Maximum Height
Industrial (WMLI) 5-319.2							
Wright's Mesa Town Residential (WMTR) 5-319.2	5k sq. ft.	2.5k sq. ft.	--	--	F: 15'; R: 0' (SF); 10' (MF/Alley); SY: 10'	F: 15'; R: 5' (Cottage/PUD); SY: 5' (Cottage/PUD)	25'
Forestry, Agriculture, and Open Space (F) 5-307	35 ac.	--	--	--	F: 30'; SY: 20'; R: 20'	--	35'
Placerville Residential (PR) 5-310	18,750 sq. ft. (no sewer)	--	--	--	F: 30'; SY: 10'; R: 20'	--	35'
Placerville Commercial (PC) 5-311	7,500 sq. ft. (w/o sewer); 3,750 sq. ft. (w/sewer)	--	--	--	F: 5'; SY: 3' or 0'; R: 20'	--	28'
Mobile Home (MH) 5-312	Unsubdivided/subdivided: 2 ac; w/water: 1/2 ac; w/water + sewer: 7,500 sq. ft.	--	--	--	F: 20'; SY: 7'; R: 10'	--	35'

Zone District	Minimum Lot Area (By Right)	Minimum Lot Area (PUD)	Density	Open Space	Minimum Setbacks (By Right)	Setbacks (PUD)	Maximum Height
Heavy Commercial (HC) 5-308	Single Use: 0.5 ac; Multi Use: 2 ac.	--	--	--	SU: 25'; MU: 50'	--	35'
Low Intensity Industrial (I) 5-309	35 ac.	SU: 6k sq. ft.; MU: 21.5k sq. ft.	--	--	F: 50'; R: 30'; SY: 20'	F: 30'; R: 10'; SY: 10'	35'
Mixed Use Dev. (MXD) 5-323	--	None	Per PUD	20%	--	Established building envelope	Established max. elevation
Park (P) 5-313	Per 1-step SUP	--	--	Per 1-step SUP	Per 1-step SUP	--	Per 1-step SUP
Public (PUB) 5-315	Per 1-step SUP	--	--	--	F: 30'; SY/R 10'	--	35'
West End (WE) 5-320	3 ac. (with West End Subdivision Exemption)	--	2 DU/3 ac.	--	F: 10'; SY/R 10'	--	35'

**See LUC for special conditions.*

Appendix D: Background Information from Preliminary Code Audit

The following information is provided as background context for the final code recommendations report. These case studies and initial recommendations informed that report, but not all initiatives are moving forward at this time. For the most up to date recommendations, refer to the final report.

Local Examples to Inform Zoning Decisions

17 units/acre (plus possible ADUs)

Town of Telluride

- Residential Zones (north of Colorado Avenue: up to 17 units/acre, plus possible ADUs)



- Accommodations zones (Pacific Avenue and southwest area) - no maximum density; dependent on ability to meet other development standards, e.g. parking, setbacks, site coverage, and height requirements.

12.5 units/acre

Eider Creek condominiums



10.7 units/acre

Illum, Two Rivers, and Q lots – approved for 91 units.



(source: San Miguel County)

7.5 units/acre

Sunnyside – project sizes are limited due to steep slopes.



(source: San Miguel County)

5.7 units/acre

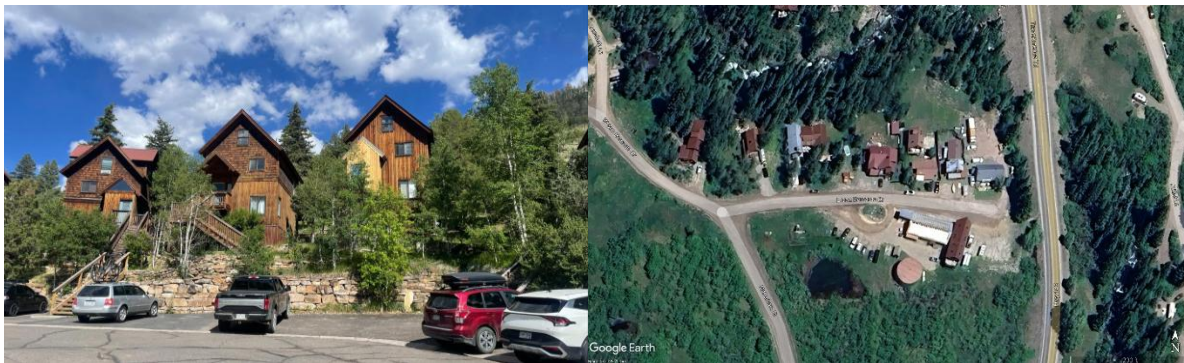
Lawson Hill – approved for 208 units.



(source: San Miguel County)

1-3 units per acre

San Bernardo



(source: San Miguel County)

Upcoming Projects

Additional potential projects in the region might also serve as examples of density ranges of 1-5 units per acre. These include the 70-acre Pathfinder site, with preliminary plans envisioning 60-90 units (up to about 1.25 units per acre), as well as the 56-acre Mountain Village Ilium property, of which eleven acres are buildable. The Town has stated there is a potential range of 100-300 units at this site (up to 5.35 units per gross acre).

Case Studies and Considerations for Recommendations:

Recommendation 1A – Reduce Minimum Lot Sizes

Case Studies

San Miguel County is unusual in requiring a minimum lot size of 35 acres for most residential districts. While going through a PUD application process does allow for smaller lot sizes, the best practice is to allow desired land uses by right or administrative review as much as possible to reduce costly time delays and increase certainty in the application

process. The table below illustrates a few peer counties in Colorado and their minimum lot sizes for roughly equivalent districts to San Miguel County's Low, Medium, and High Density districts.

Table 3: Colorado County Lot Comparison

San Miguel County		Summit County		Pitkin County		Grand County	
Zone District	Minimum Lot Size	Zone District	Minimum Lot Size	Zone District	Minimum Lot Size	Zone District	Minimum Lot Size
Low Density	35 acres 1 unit per 7 acres with PUD, water service	Rural Residential	5 acres	Suburban Density Residential	30,000 sq. ft.	Estate (mostly single-family)	2 acres unsubdivided; 10,000 sq. ft. for subdivided land served by public water and sewer
Medium Density	35 acres 1 unit per 3 acres with PUD, water service	R-3 (Single-Family Residential)	13,250 sq. ft.	R-6 Medium Density	6,000 sq. ft.	Residential (mostly single-family, some multi-family)	2 acres unsubdivided; 7,000 sq. ft. for subdivided land served by public water and sewer
High Density	35 acres 40-80 people per acre (10-20 units based on 4-person household), with PUD, water and wastewater	High Density Residential	6,000 sq. ft.	Village Residential	6,000 sq. ft.	--	--

A total of ten Colorado counties were evaluated: Eagle County (CO), Mesa County (CO), Jackson County (CO), La Plata County (CO), Park County (CO), and Routt County (CO). Below is a summary of the average minimum lot size for low, medium, and high density residential districts in other counties.

- **Low Density:** Equivalent zones have minimum lot sizes ranging from 2 acres to 35 acres. The average minimum lot size was approximately 4.5 acres, excluding an outlier of 35 acres in Park County.

- **Medium Density:** Minimum lot sizes vary from 6,000 sq. ft. to 4 acres, with an average of approximately 1.5 acres.
- **High Density:** Minimum lot sizes range from 3,000 sq. ft. to 6,000 sq. ft., averaging around 5,300 sq. ft. In two counties, minimum lot sizes were not applicable.

Considerations

- Should minimum lot sizes be reduced for all residential developments or only for those providing affordable housing? (See 3A. Density Bonus)
- Consider establishing varying minimum lot size standards based on the availability of public water and sewer services.
- Explore the option of working with service providers to require developments to connect to public water and sewer systems when located within a defined distance (e.g., 400 feet) from existing lines, upon agreement with the service provider. (Summit, Chaffee, Garfield, and Gunnison Counties all have similar provisions, and State law gives water and sanitation districts the authority to compel connection when lines are within 400 feet.)
- Table 5: Residentially Zoned Land Acreage

Recommendation 1B – Adjust Density Allowances

Zone	Number of Acres
Forestry / Agriculture	333,612
Wright's Mesa	36,832
Low Density	2,804
PUD	681
Medium Density	510
Low Density Residential	213
AH PUD	199
Mobile Home	191
Single-Family Residential	187
Heavy Commercial	57
Industrial	51
Placerville Residential	25
Mixed Use	20
High Density	-

- (Source: San Miguel County, 2025)

Case Studies

- Grand County, CO
 - Does not define maximum density allowances in their code (e.g. 3 DU / acre); rather, allowed uses and dimensional standards dictate the density based on unique site conditions and infrastructure capacity.
- Summit County, CO
 - Allows up to 25 DU / acre in their High Density Residential zone.

- Allows up to 3 DU / acre in the R-3 Single-Family Residential zone, with no more than 1 dwelling unit per lot.
- Allow a range of densities from one primary dwelling unit / five acres to one primary dwelling unit / less than 20 acres.

Considerations

- Density increases should be accompanied by assessing local infrastructure capacity to ensure that water, sewer, roads and schools can accommodate additional residents without overburdening existing systems.
- The County should consider allowing high densities only under certain conditions (such as access to public water / sewer, within a certain distance from roads, within a certain distance from municipal boundaries, etc.).
- Density bonus would need to be tied to a particular affordability definition.

Recommendation 1C – Reduce Setbacks

Case Studies

- Grand Junction, CO:
 - The city has adopted an administrative adjustment process that enables flexible setback regulations for property owners to request modest reductions in setbacks. Instead of requiring a PUD amendment, the city's zoning code allows departures from standard front setback requirements through a streamlined administrative procedure designed specifically to accommodate unique site conditions, promote walkable urban design, and encourage infill or redevelopment.

Considerations

- Administrative adjustments or minor variances processes require clear criteria so that property owners, neighbors, and review bodies understand under what circumstances exceptions may be granted.

Case Studies

- Teton County, WY
 - One zone district within unincorporated Teton County exempts all Floor Area Ratios (FAR) for affordable or workforce housing units but requires the occupants of a single-family unit in zone to be members of the Teton County workforce and occupy the unit as their primary residence. One other zone in Teton County provides a FAR increase for each accessory residential unit (ARU) up to 2 units. Lastly, FAR exemptions are provided for ARUs accessory to nonresidential use in most zone districts throughout Teton County.

Considerations

- Align setback and coverage reductions with specific affordability levels or project types.
- Ensure compatibility with existing character and environmental constraints.
- Which districts might be eligible for reductions for qualifying projects?

Recommendation 1D – Allow Multiple Dwelling Units on Large Lots

Case Studies

- Grand County, CO

- The County allows for more than one dwelling unit through its Rural Land Use Process (RLUP). This alternative subdivision approach encourages clustering of residential dwellings on large tracts that are otherwise subject to 35-acre minimum lot sizes, a common barrier to more compact housing in rural Colorado. Through the RLUP, Grand County allows developers to propose multiple smaller lots and clustered homes on a large parcel, reducing required lot sizes, setbacks, and density restrictions, provided there is adequate infrastructure and compatibility is maintained with the surrounding area.

Considerations

- Adequate provision of water, wastewater, and utility services is necessary to support additional units without straining existing infrastructure.
- Opportunities for additional units on properties served by wells may exist.

Recommendation 1E – Refine the Community Housing Zone

Considerations

- Allowing code provisions for cohousing units with shared kitchen and bathroom facilities in separate buildings could advance community goals for housing diversity, particularly where projects are adequately served by water and septic systems. To ensure both health standards and equitable access, such provisions should confirm that all occupants have reasonable, safe, and convenient access to these shared facilities, and that the buildings meet minimum property and utility requirements established by local and state codes.
- Potential Recommendation A: Refine and Expand CH Zone

- Remove discretionary review;



- Establish clear geographic criteria for CH zone eligibility (R-1 School District + municipal water + other objective factors).
- Reaffirm CH zone as a tool for affordable housing.
- Honors original intent of zone; provides clear geographic boundaries; sends strong affordable housing signal to the market; but may worsen existing community concerns on the efficacy of this zone.
- Potential Recommendation B: Retire CH Zone (existing parcel zoned CH can remain legacy), Apply Standards Broadly
 - Adopt the effective CH zone standards in appropriate zone districts (density, parking maximums, missing middle housing, etc.).
 - Expand the allowable uses as a one or two-step process in HD/MD zones as an alternative to PUD for affordable housing.
 - Retire the CH zone designation to a legacy zone allowing the existing parcel to remain zoned CH but no future rezoning to this district.
- Potential Recommendation C: Dual Path Approach
 - Keep CH zone available with refined standards.
 - Could also create parallel by-right paths in HD/MD zones for affordable housing.
 - Provides multiple tools for affordable housing development.

- Would provide maximum flexibility for developers and County, with multiple pathways to meet Prop 123 requirements; however, would be complex to implement with coordination required across multiple zone districts.

Recommendations 2A. Update Household Definitions and 2B. Expand Housing Type Use Allowances

Mixed Use Housing

Case Studies

- Ridgway, CO
 - Includes a definition of Live/Work housing that describes a structure intended to function primarily as a business workspace with residential use area occupied by the business owner or operator.

Considerations

- Should the definition of live/work units be expanded to house off-site workers, and should live-work units be allowed in commercial, mixed-use, and higher density residential zones?

ADUs

Case Studies

- Summit County, CO
 - Provides pre-approved ADU plans to reduce design costs.
 - Approved via building permit only, no approval from Planning Department required.
- Fremont County, CO
 - Allows ADUs by right to be a maximum of 1,000 sq. ft. on lots at least 1 acre.

Considerations

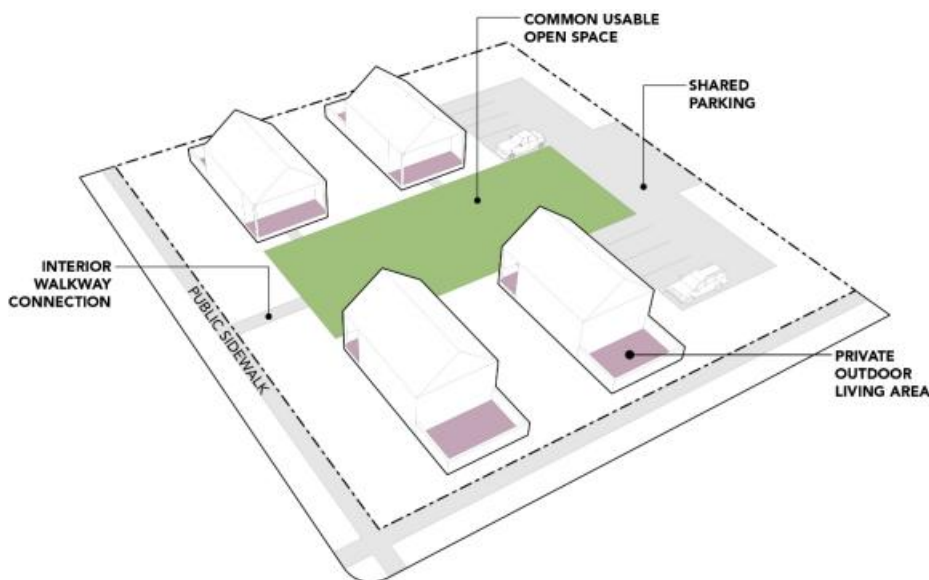
- ‘Caretaker units’ are currently allowed in the F district under certain conditions. These are defined as “a second residential unit... that provides caretaking for a non-resident homeowner and/or a long-term rental opportunity for local workers.” Consider simplifying terminology by combining caretaker units and “Secondary Dwelling Units”, as highlighted in the WM zones, all to fall under the umbrella of ADUs with a tiered system of maximum sizes based on lot size or zone district.
- Should the County allow ADUs that are larger than 800 sq. ft.? This is currently the maximum square footage allowed.

Cottage Housing, Cohousing, and Tiny Homes

Case Studies

- Cortez, Colorado
 - Recently added cottage housing use and design standards that allow for a grouping of three or more single-family or micro home dwelling units in moderate to higher density residential zone districts and conditional approval in the general commercial zone district.

- Includes standards to require buildings on a permanent foundation to meet the max density per the zone district, a minimum required open space of 200 sq. ft. per dwelling unit, and shared parking and access to public sidewalks.



- Madras, OR
 - Permits up to 12 cottages in a cluster with a unit size range of 900 sq. ft. to 1,400 sq. ft.
 - Requires at least 50% of cottages to face a common courtyard with pedestrian connectivity.
- Raleigh, NC
 - Includes provisions for a “group of small detached houses, attached houses, townhouses, or tiny houses sharing a common courtyard.”
 - Permitted in medium to high density residential zone districts and mixed-use districts.
 - Allow up to 30 dwelling units per site with a required courtyard/open space area calculated per dwelling unit of 550 sq. ft. to 1000 sq. ft.
 - Includes detailed requirements for courtyard design.

Considerations

- Consider if there is a maximum number of units that should be allowed per cottage housing.
- Consider what level of detail is desired for courtyard/open space standards.

Recommendation 3A. Establish Qualifying Criteria for Affordable Housing Incentives

Case Studies

- Summit County, CO
 - An exact bonus granted is typically considered on a case-by-case basis, and Summit County unincorporated areas have not set up a specific maximum density bonus in the code.
- Eagle County, CO
 - Offers density bonuses for projects including deed-restricted units affordable to the local workforce. Eagle County does not have a fixed maximum density bonus; the

amount of density bonus is proportional to the benefits provided (number of affordable units, acres of preserved land).

- Grand County, UT
 - Provides density bonuses depending on type of development (ownership vs rentals) and which qualifying zone district the application is in. For small-lot residential, units can be increased by up to 90% for deed-restricted workforce housing units, or up to 75% in the large lot residential district.
- Teton County, WY
 - Allows incentives for projects with rental terms that are a minimum of 6 months, with no income ranges for workforce housing and ranges of up to 160% MFI for affordable housing.
- Summit County, CO
 - Defines affordable housing as affordable to households earning up to 110% AMI for ownership housing, and 100% AMI for rental housing (with some options for more expensive units if balanced with more deeply affordable units).
- Pitkin County, CO
 - Affordable housing is not defined within the code. The code refers to separately adopted 'employee housing guidelines' that can be updated without text amendments.
- Eagle County, CO
 - Includes remote workers who primarily live in Eagle County but work for employers based outside of the County as part of their 'local workforce' definitions.
 - Defines affordable housing as "All deed restricted housing units regardless of price. Units may include Price Capped for Sale Housing, Price Capped Rental Housing, Resident Occupied for Sale Housing, and Resident Occupied Rental."
 - Provides additional incentives for developments that exceed the minimum recommendations for Inclusionary Housing, including public-private partnerships, public funding assistance, priority permitting, density bonuses, site design flexibility, road impact fee waivers, and other fee waivers that can be issued by the BOCC on a case-by-case basis.

Considerations

- Identify eligible zone districts (e.g., Medium Density, Mixed-Use, High Density, etc.). where increased density and height align with infrastructure and character.
- Tie bonus eligibility to clear affordability definitions and deed restriction requirements (*see 3G. Affordability Definitions, Qualifying Criteria, and Deed Restrictions*).
- Evaluate infrastructure impacts (e.g., water and traffic capacity) when granting height or density increases.
- How long should a development stay affordable and/or house the local workforce to qualify for development incentives? Periods of affordability can range from 10 years – 99+ years. Given limited land availability in the County, longer periods of affordability may be desirable to safeguard this housing for the local workforce in the future. However, shorter periods can provide an incentive for owners to rent ADUs.
- Should eligible projects be expanded to include deed restrictions dictating that units will be set aside and/or affordable to other San Miguel County residents outside the workforce? Such as

disabled people, seniors, low-income households working outside the R-1 School District but inside the County, etc.

- Could other factors qualify developments for these incentives, such as other community benefits?
- Consider allowing rental projects that are suitable for seasonal employees to qualify for occupancy.
- Consider whether remote workers, whose presence is not required in San Miguel County, should be considered qualified employees.

Recommendation 4B. Reduce Reliance on PUDs

Case Studies

- Woodland Park, CO
 - Developed a PUD amendment process that clearly delineates when a PUD amendment is required and what process the amendment is approved through based on specific criteria.

The following PUD amendments can be processed administratively:

- Change in building floor space up to five (5) percent.
- Change in required landscape or parking area of up to five (5) percent, provided the minimum amount required per this UDC is maintained; or
- Minor adjustment to location and layout of streets, utilities, and structures that do not change the overall intent of the project or effect the impacts on adjacent properties, with regards to traffic patterns, noise, smell, and views.

Other amendments are required to go through a more extensive process.

- Weld County, CO
 - The County has a PUD amendment application to apply for a change in either the allowed uses within a particular PUD or to change the required setbacks for all lots in the PUD. The amendment cannot be used to change property lines within the PUD or change the property from a PUD. These amendments are approved by the Board of County Commissioners but can typically be processed within 90 days.

Considerations

- BOCC approval would be needed to create a new zone district and rezone properties, as well as significant time to review existing PUD agreements and their approved densities.
- Existing zone districts should be amended to remove the requirement for PUDs in order to reasonably develop properties.

Case Studies and Considerations for Other Concepts Researched:

Adjust Minimum Parking Requirements for All Residential Development (not limited to deed-restricted housing)

Parking standards can significantly affect housing feasibility, especially for smaller or workforce-oriented units. Reducing parking minimums for projects that provide affordable

units or are ¼ of a mile from a transit stop can lower costs and land requirements. The current requirement is 2 off-street parking spaces per dwelling unit for all dwelling units with more than 1 bedroom. For ADUs, studios, and 1-bedroom dwelling units 1 space per unit is required. Developers of mixed-use projects can submit alternate parking calculations for consideration by the Planning Commission, based on the assumption that residential and commercial uses have different needs throughout the day.

By considering a reduction in these parking requirements and/or allowing on-street parking in applicable areas to count toward the minimum, the County can enable developers to use land more efficiently and potentially increase the total number of units that can fit on a site. The flexibility allows for more creative site design and supports smaller, more affordable housing types that might otherwise be impractical due to the amount of land and expense required for off-street parking. Lowering parking thresholds could make it easier to provide a wider range of housing choices while still ensuring adequate parking supply through market-responsive mechanisms.

According to ACS 5-year estimates for West Central Colorado (including San Miguel, Ouray, Montrose, Delta, and Mesa Counties, including all areas *except* Grand Junction), 2-person households earning less than \$47,800 are more likely to share a car compared to higher income households. 21% of 2-person households in this region earning less than \$47,800 share 1 vehicle, compared to 11% of households earning more than \$47,800 (ACS 5-Year Estimates Public Use Microdata Sample). Reduced parking requirements for affordable housing developments, especially those that are well-served by transit or have good bike/pedestrian connections, may be appropriate since lower-income residents may be less likely to own multiple cars per household than those living in market-rate housing.

Case Studies

- Teller County, CO
 - The county aligned its code with state law by eliminating mandatory parking for ADUs in transit-served areas. Local officials have noted no increase in parking-related complaints or operational issues since making these changes, with ADU development proceeding at a pace and scale appropriate to existing neighborhood context and infrastructure.
- Denver, CO
 - The City recently eliminated its parking minimums for new residential development citywide. Prior to this reform, Denver required one parking space per ADU, which often limited the ability of homeowners to add these units, especially on smaller lots or properties with limited space for off-street parking. Early empirical data and market observations have shown that eliminating the requirement did not produce a shortage of parking or neighborhood disruption. Developers and homeowners still include parking spaces when demand exists, and most residents displayed flexibility in parking choices, often using on-street parking or relying on alternative transportation options in areas with good transit service.

- Teton County, WY
 - Shared Parking Allowance. A percentage of the parking spaces required for non-residential uses may be considered shared with on-site residential uses if the residential use provides on-site affordable workforce housing. The percentage of parking spaces which can be shared varies from 20% - 75% of the total based on the proposed non-residential uses.
- Summit County, CO
 - Permits reduced parking for ADUs and smaller affordable housing units located within proximity to transit or services.

Considerations

- Permitting on-street parking may create challenges for snow removal, as it can make it harder for plows to clear streets efficiently and safely. Many communities address this by introducing temporary parking restrictions or designated snow routes during winter storms to maintain access for plows.
- The County could consider a range of parking allowances, including a parking maximum to prevent overparking on limited land. The County should consult with local developers and financial institutions before determining appropriate parking maximums.
- Apply reductions for developments within ¼ mile of a transit stop with all-season pedestrian or trail connections.
- Explore shared or pooled parking options for mixed-use or clustered projects.
- Tie parking reductions to enforceable deed restrictions to ensure long-term workforce occupancy (*see 3G: Affordability Definitions, Qualifying Criteria, and Deed Restrictions*).
- Could explore parking maximums rather than parking minimums, such as are currently adopted in the CH zone (*see 1C: Adjust Minimum Parking Requirements*).

Incorporate Campers, RVs, and Vans as a Standalone or Accessory Housing Use

LUC Section 5-714, Non-Commercial Camping, currently allows landowners and their guests to occupy an RV or temporary shelter on individual parcels for recreational or vacation purposes. Only one RV or other temporary shelter is allowed at a time for periods longer than 14 days in a calendar quarter. This provision could potentially be expanded to allow temporary occupation of a camper van, RV, or tiny home on wheels, and/or to allow property owners to rent camping spaces to the local seasonal workforce for longer than 14 days—a concept often referred to as private land camping. The primary concern with longer term occupancy is disposal of wastewater, as well as water connections.

Case Studies

- Gem County, ID
 - Includes a use titled RV Living Quarters which allows one RV to be used as a primary living quarter per legal parcel with a minimum size of one acre for up to one year with additional one-year extensions. Permit requirements include an RV residency permit.
- Chaffee County, CO
 - Accessory uses to agriculture and ranching include “Commercial Private Lands Camping” with the following standards:
 - Requires a minimum lot size of 5 acres.

- Density from one to 20 campsites on a sliding scale of property size from 5-100+ acres.
- Includes specific standards for RV/van pad sites versus tent sites.
- Includes standards for water and wastewater disposal.

Considerations

- Should this be a temporary living situation on a site like Gem County? If so, should more than one home on wheels be allowed per parcel pending lot size? What limit would need to be placed on the timeframe to define ‘temporary’?
- If private land camping is added as a use, what should be the maximum number of camping spaces per lot size? Per the definition of “campground” in the current code, where two or more spaces are provided, CDPHE standards for water and wastewater are required.
- What water and wastewater connections would be required?

Provide Application Fee Reductions or Waivers

New developments may be subject to a variety of fees, including application fees, the Employee Housing Mitigation Impact Fee, building permit fees, plan review fees (65% of the building permit fee), impact fees in the Telluride Fire Protection District, use tax (1% of 40% of the project valuation), solid waste fees, and/or water and sewer connection fees. Building permit fees are based on project valuation – for example, a project with a value of \$550,000 would need to pay a building permit fee of \$4,012.30 (\$3,621.80 for the first \$500,000 plus \$7.84 for each additional \$1,000). Additionally, subdivision and PUDS are required to provide School Land dedication and Public Park dedication, or fees in lieu of dedications.

Building permit and plan review fees are currently reduced by 25% for residences with 1,800 sq. ft. or less of floor area per dwelling unit and can be reduced an additional 25% for residences that are deed-restricted to be occupied by those employed within San Miguel County (for a total of 50% fee reduction). The County also waives the Employee Housing Mitigation Impact Fee for deed-restricted affordable housing developments, and for dwellings less than 2,000 sq. ft.

Additional options to reduce other fees, or offer paths to waive fees entirely, could be explored to further incentivize affordable housing developments. Any further reduction in fees would need to be offset by another funding source to cover costs of review, administration, impacts to capital funds, and potential impact of the development proposed.

Case Studies

- Summit County, CO

- Waives entitlement and building permit fees for development applications that include one or more deed-restricted workforce housing units. Review costs are subsidized by the County's General Fund.

Considerations

- Which fees could be reduced or waived, and what funding sources could be used to subsidize review costs for eligible affordable housing developments?
- Which projects would be eligible for reductions? For waivers? (*see 3G. Affordability Definitions, Qualifying Criteria, and Deed Restrictions*).

Provide Incentives for Deed-Restricted ADUs

The County already allows ADUs as an accessory use through administrative review in most residential districts, and caretaker units or secondary dwelling units in the large-lot rural zones. However, the costs to build an ADU can be prohibitive and may be unlikely to serve as rental housing for the local workforce without financial incentives given in exchange for deed restrictions. In addition to making ADUs easier to build generally (*see 2B. ADUs by Right*), providing regulatory relief and incentives for ADUs offers a meaningful pathway to affordable housing development at smaller scale.

Case Studies

- Eagle County, CO
 - The County's Affordable Housing Guidelines include administrative procedures that support development of deed-restricted housing, including ADUs and smaller units, with streamlined eligibility and review.
- Summit County, CO
 - Offers ADU Fee Waiver Program for ADUs with a workforce deed restriction (includes building, planning, engineering, and some environmental health fees).
 - Manage an ADU Assistance Program that reimburses homeowners 25% of total construction costs of building a new ADU or bringing an existing one into compliance (in exchange for workforce deed restriction and rental cap at 110% AMI).

Considerations

- Establish clear eligibility and affordability definitions for ADUs (*see 3G. Affordability Definitions, Qualifying Criteria, and Deed Restrictions*).
- Assess monitoring and enforcement mechanisms to ensure deed-restriction compliance over time.
- Allow larger ADUs (1,000 s.f.) if deed-restricted and allow two Caretaker/Secondary dwellings if one/both(?) are deed-restricted.

Reduce Open Space Requirements

Reducing or modifying open space requirements for developments that provide a certain portion of deed-restricted workforce housing can be an effective incentive to improve project economics and increase housing supply. For example, lowering the minimum open

space ratio, allowing flexible open space design, or permitting less site area devoted to non-housing uses may help developers deliver affordable housing units more efficiently and at lower cost.

These potential reductions may be most appropriate in the Medium Density zone, especially if the allowed dwelling units per acre are updated to reflect the East End Master Plan. The current minimum open space ratio requirement is 60%, which is the same ratio as the Low Density zone.

Considerations

- Define the open space standard relief clearly (e.g., “For each deed-restricted unit, open space requirement may be reduced by X%”).
- Ensure that any reduction maintains public benefit in terms of usable space, recreation, and landscaping—so community character is respected.
- Ensure relief is tied to specific affordability thresholds (*see 3G. Affordability Definitions, Qualifying Criteria, and Deed Restrictions*).
- Consider whether the reduction would affect stormwater, landscaping, wildlife protection, or other environmental outcomes and whether compensatory measures are necessary instead of a reduction in open space requirements.

Adjust/Revise the Employee Housing Mitigation Impact Fee Structure

The employee housing impact mitigation fee (LUC Section 5-1303 G) assesses an amount to be paid concurrent with the construction of new single-family and two-family houses and additions to address the housing needs of employees within the Telluride R1 School District that are associated with the construction and maintenance of new homes and additions. The purpose of the Employee Housing Mitigation Fee is to provide a mechanism to address housing needs of employees within the R-1 School District. The fee is intended to mitigate the housing needs of the employees needed to construct and maintain new homes and additions. This fee progressively requires a higher rate of mitigation the greater the square footage of the new free market residence. The fee can be used for the development of affordable housing within the R-1 School District.

Currently, the County reduces or waives the Employee Housing Mitigation Impact Fee for developments that provide deed-restricted affordable housing on site for occupancy by qualified employees as discussed in 3G. The fee is also waived for single-family homes less than 2,000 sq. ft.

Commercial and Hotel developments are required to provide a certain amount of affordable housing, based on the square footage or number of units. Residential subdivisions are required to deed-restrict one of every three lots, and multi-family development is required to deed-restrict one of every three units. The mitigation requirements are found in LUC Section 5-1303 A-F. The mitigation level for commercial and hotel uses is 15%, which has not been changed since the Code was adopted in 1990.

Units must be constructed on-site unless approved by the BOCC. In recent years, the County has accepted land in lieu of lots for mitigation of subdivisions.

Case Studies

- Eagle County
 - Enforces Affordable Housing Mitigation fees, which can be paid through building deed-restricted affordable or workforce housing (either rent or ownership), land donations, off site development, payment in lieu, or other public benefits. They also include a size exemption for units equal to or smaller than the average size of a deed restricted housing unit in Eagle County.
- Town of Telluride
 - Telluride outlines requirements for affordable housing that apply to all single-family, duplex, multi-family, commercial, accommodations and other nonresidential new development within town limits (*Section 3-720 Affordable Housing Requirements*).
 - Similar to the County, the Town calculates the mitigation fee or number of units required by the number of employees generated and the type of development. This calculation is: “Employees Generated X 400 sq.ft. X Required Percentage Mitigation = Gross Floor Area of affordable housing mitigation requirement.”
 - To meet this requirement, the Town of Telluride allows 1) Construction of unit(s) on the site on which the development is proposed, 2) Construction of unit(s) within the Town of Telluride, 3) Construction of unit(s) outside the Town of Telluride but within the Telluride Region (as defined by the Telluride Master Plan), 4) Deed restricting existing free market unit(s) within the Town or the Telluride Region, 5) Fees in lieu... not to exceed ten percent (10%) of the total affordable housing requirement, or 6) Conveyance of land.

Considerations

- Investigate establishing an Employee Housing Mitigation Impact Fee for the R-2 School District, which could be used to fund projects in the Norwood area.
- Could allow off-site development of deed-restricted units through administrative approval rather than BOCC approval.
- Could allow land donations or other public benefits to meet these requirements.
- Consider increasing the 15% mitigation level for Commercial and Hotel uses to be more in line with the County’s housing needs.
- Consider allowing land dedication for subdivisions in lieu of deed-restricted units and/or fees. Consider standards that ensure the land dedication being offered by the applicant can support needed units, with the applicant responsible for installation of infrastructure.

Develop a TDR Program

Transfer of Development Rights (TDR) programs are market-based land conservation programs implemented by local governments with the goal of directing development away from areas communities want to preserve – known as sending areas – and into areas where development is more appropriate – known as receiving areas. The sending areas in a TDR

program are generally areas of “high-value”, whether that be historic value, cultural value, or ecological value, whereas receiving areas are areas which have been identified as more appropriate for development due to availability of services, transit, and proximity to existing development.

In the State of Colorado, both municipalities and counties have the statutory authority to adopt a TDR program, but for a county to adopt a county-wide TDR program, an intergovernmental agreement between the incorporated municipalities and the county is often adopted.

Many community members expressed interest in developing a county-wide TDR program to ensure that additional housing density occurs near existing infrastructure and open space is preserved in sensitive areas.

The following recommendations relate to the idea of creating a TDR program in San Miguel County. **Advancing this effort would require another lengthy process outside the scope of this project** to assess feasibility, identify potential sending and receiving areas, develop potential program components, and make sure that the program forwards community goals.

In developing a TDR program, many factors need to be considered to ensure that the program is successful in transferring density out of agricultural and environmentally sensitive areas and into areas that can be serviced by municipal or central services. The capacity for municipalities to service additional development, alternatives to TDR programs, and willingness of landowners to take advantage of development rights are all important to consider, but the following two factors are noted as defining features of successful TDR

1. **Programs for Bonus Development.** For a TDR program to function, there has to be a demand for bonus density, meaning the base zoning allowances in the receiving areas leaves room for additional density or development. In essence, TDR programs are unsuccessful when the base zoning provides ample development density by right, so there is no incentive for developers to pay for TDRs. The longevity of a TDR program is also dependent upon demand for bonus development. For example, Boulder County replaced their TDR program with a Transfer of Development Credit program once the majority of receiving areas had been developed because there was still demand for bonus density.
2. **Customized Receiving Areas.** Customized receiving areas are key to a functioning TDR program because they ensure that there is infrastructure capacity to serve the development, that increased density is compatible with existing development and the comprehensive plan, and that density is permitted in locations where developers perceive there is a market for higher density. The need for TDR programs to consist of receiving areas that contemplate local conditions is one of the reasons why Boulder County does not map receiving areas but instead has specific criteria for designation of receiving areas.

Integrating Affordable Housing and TDR Programs

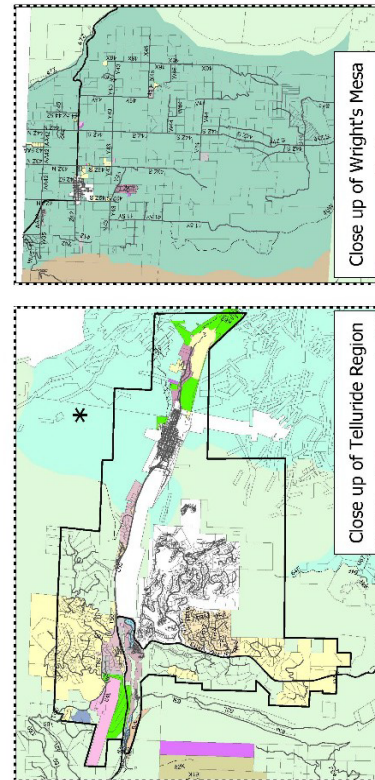
TDR programs were not initially designed to function as incentives for affordable housing, but TDRs were successful in increasing density and housing stock when the desire for townhomes and condominiums in the 1980s – 1990s was high. However, following the 2008 recession and housing market crash, many TDR programs had to pivot to find new values for TDRs beyond square footage or unit bonuses. There are some TDR programs – notably Collier County, FL and Montgomery County, MD – who are reviewing their TDR programs for ways to use TDRs to facilitate or incentivize affordable housing. The following are preliminary recommendations for facilitating affordable housing with TDRs:

- Provide increased density bonuses on a sliding scale for projects that include deed-restricted affordable housing.
- Establish the value of TDR credits annually and have a reduced cost for affordable deed-restricted units.
- Require a portion of TDRs used on receiving sites to be used for affordable housing.

San Miguel County, CO Zoning Map

[illegible]

Certain properties in the HCA subject to TPL Options and Standstill Agreements are zoned "F"



NOTE:
Zoning on all parcels **MUST**
be verified by the Planning
Department.

PUBLIC MEETING RECORD

County Planning Commission

Application: Land Use Code Amendment- Subdivisions (Major and Minor) and Condominium and Townhouse Plats

Date: October 8, 2026

1. San Miguel County Land Use Code (Adopted 11/30/90) with all amendments to date (By Reference Only).
2. San Miguel County Comprehensive Development Plan (Adopted 8/3/78) with all amendments to date (By Reference Only).
3. Memorandum to the San Miguel County Planning Commission from John Huebner, Senior Planner dated October 8, 2026.
4. Draft Land Use Code Amendment, Subdivisions (Major and Minor) and Condominium and Townhouse Plats.
5. Planning Commission meeting agenda published in the Telluride Times on October 1, 2026.

AGENCY COMMENTS

6. Email and Memo from John Huebner, Senior Planner, to Review Agencies dated June 26, 2026.
7. Letter received from Chris Hawkins, Alpine Planning LLC to John Huebner, Senior Planner, dated September 24, 2026.
8. Email received from Maura Fahey, SMC Attorney, to John Huebner, Senior Planner, dated July 20, 2026.

PUBLIC COMMENTS

None received at time of report

M E M O R A N D U M

TO: San Miguel County Planning Commission
FROM: John Huebner, AICP, Senior Planner
RE: Land Use Code Amendments - Subdivisions (Major and Minor) and Condominium Plats
DATE: October 8, 2026

Background

Subdivision and site design standards are used by local governments to regulate how parcels of land are divided into developable lots, and how those lots are subsequently designed and laid out through the development process.

Major subdivisions include the submission of a sketch plan (showing basic lot layout and provisions for public infrastructure), and subsequent drafting of a more detailed preliminary plat (indicating building footprints and specific measurements), and then culminating in a final plat that creates the new lots.

Abbreviated procedures are typically established for minor subdivisions that involve the creation of just a handful of lots.

Site design standards are related and define the basic parameters for development on individual lots, including maximum or minimum lot size, how buildings are situated on a lot, traffic and circulation patterns, pedestrian connectivity, preservation of open areas, and avoidance of hazardous areas.

Our current Land Use Code combines subdivisions and PUDs, and assumes all subdivisions are also PUDs. There is no provision for smaller subdivisions except for subdivision exemptions.

Proposed Amendment

Staff has identified the need for amendments to the Land Use Code to add or amend the sections concerning:

1. Subdivision Exemption for Condominium and Townhouse Plats.
2. Major Subdivisions.
3. Minor Subdivisions.

LUC Section 5-1802 states, "Land Use Code Amendments may be initiated by the County or by persons who are residents of, or own property in, San Miguel County..." subject to compliance with the applicable LUC standards.

Planning staff discussed the proposed amendments in the 9/10 Planning Commission worksession. The direction provided concerning number of subdivision lots, water and

sewer requirements for PUDs and subdivisions, cultural resources, amendments, traffic impacts, was incorporated into the draft text amendments.

Condominium and Townhouse Plats:

- Establish minimum standards for all division of land for Condominium Maps and Townhouse plats in new Section 5-1215
- Application material requirements and review procedures are similar to other Subdivision Exemption Plats
- Subdivision Exemptions are subject to a one-step BOCC review procedure
 - ▶ **One-step Review** (BOCC Hearing)
- Review Standards: Consistency with subdivision plat, PUD, LUC
- Related amendments to Articles 3, 4 and 7

Major Subdivision:

- Provide standards for Subdivisions that are not PUDs.
- Establish minimum standards for all land divisions resulting in a total of six (6) or more lots in Section new 5-1410
- Augment application materials requirements and explanation of review procedures for each review step
- Major subdivisions are subject to a five-step review procedure:
 - ▶ **Sketch Plan** (CPC Hearing, BOCC Meeting)
 - ▶ **Preliminary Plan** (CPC Meeting, BOCC Hearing)
 - ▶ **Final Plat** (BOCC Meeting)
- Review Standards: Consistency with Master Plan/LUC, Site Suitability, Design efficiency, Neighborhood compatibility, Adequate Facilities
- Related amendments to Articles 3, 4 and 7

Minor Subdivision:

- Establish minimum standards for all land divisions resulting in a total of five (5) or fewer lots in new Section 5-1420
- Establish application materials requirements and review procedures
- Minor subdivisions are subject to a Two-step Planning Commission and BOCC review procedure
 - ▶ **Two-step Review** (CPC Meeting, BOCC Hearing)
- Review Standards: Consistency with Master Plan/LUC, Site Suitability, Design efficiency, Neighborhood compatibility, Adequate Facilities
- Related amendments to Articles 3, 4 and 7

Comparison of proposed San Miguel County standards

Feature	Minor Subdivision	Major Subdivision
Lot Capping	Creates 5 or fewer total lots	Creates 6 or more total lots.
Review Process	Streamlined Two-step review of conceptual plans and final plats.	Multi-step process requiring Sketch Plan, Preliminary Plan, and Final Plat phases.
Public Improvements	Permitted only if they do not require county funds or significant new public infrastructure.	Mandatory for projects requiring new public roads, major utility extensions, or central systems.
Frequency Limits	A property may utilize the minor subdivision process only once .	Required for any subsequent divisions of a previously minor-subdivided property.
Review Authority	Planning meeting before the Planning Commission and public hearing before the Board of County Commissioners (BoCC) .	Full public hearings before both the Planning Commission and the Board of County Commissioners .

Public Noticing

The proposed Land Use Code text amendment was published on the county website. The October meeting agenda was published on the County website and in the Telluride Times on October 1, 2026.

Referral Agencies

The proposed Land Use Code text amendments were sent to the County Manager, County Attorney, County Deputy Manager, County Surveyor, County Building Official, County Road and Bridge Director, Town of Mountain Village, Town of Norwood, Town of Ophir, Town of Sawpit, Town of Telluride, and Rural Homes Colorado.

Maura Boylan, County Attorney, noted three inconsistencies in the draft amendment regarding major subdivisions (that have been revised).

Chris Hawkins, Alpine Planning LLC, Rural Homes Colorado representative, provided substantive comments in support of the proposed Land Use Code Amendment. Most of the provided comments have been incorporated into this draft for Planning Commission review and recommendation. Comments regarding subdivision exemptions were not included since the LUC is clear that they are subject to One-step Review by the BOCC.

Public Comments

As of the writing of this report, no public comment has been received.

Review Standards

Review Standards for Land Use Code Amendments are contained in LUC Section 5-1802 and state, "Land Use Code Amendments may be initiated by the County or by persons who are residents of, or own property in, San Miguel County subject to compliance with the following standard." This amendment was initiated by the County Planning Director.

The only review standard, LUC Section 5-1802 A., states "Land Use Code Amendments shall be drafted in a form consistent with the organizational format and style of the code." The proposed amendment has been drafted in the format and style of the code.

In addition, Section 1-4, Purposes of the Land Use Code, should be considered.

1-402 Implement Policies

To implement the policies of San Miguel County regarding land use and development, housing, growth and related issues, as adopted and amended from time to time.

1-403 Create Common System of Administration and Regulation

To combine the regulation of all aspects of land use and development and the use of land and natural resources into a common system of administration and regulation.

1-404 Simplify the Land Use Regulatory Process

To simplify the application and review process for such regulatory system.

1-405 Protect Health, Safety and Welfare

To protect the health, safety and public welfare of San Miguel County.

Sample Motion:

I move to recommend to the Board of County Commissioners to adopt amendments to San Miguel County Land Use Code adding new Section 5-1215 Subdivision Exemption for Condominium and Townhouse Plats, and amending Section 5-14 Planned Unit Development (PUD) and Subdivisions with related amendments to Article 3 Procedures, Article 4, Submission Requirements, and Article 7, Definitions as presented, based on the finding that the proposed amendments complies with the standards of Land Use Code Section 5-1802, Land Use Code Amendments, and is consistent with Land Use Code Section 1-4, Purposes of the Land Use Code.

Draft Land Use Code Amendment – Condominium and Town House Plats

Additions are shown as underlined. Deletions are in ~~striketrough~~. *** indicates text preceding and/or following the amended text that is not shown and is unchanged.)

Note: The following amendments are only for Condo/Town Home. Major and Minor Subdivisions will follow, although some of the same sections may be affected.

YELLOW HIGHLIGHTING in this draft is meant to call attention to new or relocated text.

FIGURE 3-1

LAND USE ACTIVITIES AND REVIEW PROCEDURES

One-step Board of County Commissioner Reviews

Subdivision Exemptions for the following activities:

n. Condominium and Townhouse Plats

FIGURE 3-4

ONE-STEP REVIEWS: SUBMISSION CONTENTS AND STANDARDS		
	Land Use Code Section	
Land Use Activity	Submission Contents	Standards*

Land Use Activities Subject to Board of County Commissioner Review		
Subdivision Exemptions for:		
Correction of Survey Errors	4-6	5-1202
Lot Line Adjustments	4-6	5-1203
Parcels for Community Facilities	4-6	5-1204

Reversion to Acreage Plats	4-6	5-1205
Agricultural Lot Split	4-6	5-1206
Open Land Protection, 5 lots or more	4-6	5-1207
Fully Developed Residential Property	4-6	5-1208
Single-lot Split in an Existing Subdivision	4-6	5-1209
Wright's Mesa Subdivision Exemption, 150 acres or larger	4-6	5-1210
West End	4-6	5-1211
Wright's Mesa Open Land Protection, 11 lots or more	4-6	5-1212
Wright's Mesa Essential Community Facilities & Parks	4-6	5-1213
Vacation of Lot Lines	4-6	5-1214
<u>Condominium and Townhouse Plats</u>	<u>4-6</u>	<u>5-1215</u>
Acceptance of Subdivision Roads	4-6	5-504
Reduction in Highway Setbacks	4-7	5-505

SECTION 3-5: - ONE-STEP REVIEWS

3-501B. The land use activities listed in this Section are subject to One-step Board of County Commissioners Review.

I. Subdivision Exemptions for the following activities:

a. Correction of Survey Errors (Refer to Section 4-6 for submission contents and Section 5-1202 for review standards);

m. Vacation of Lot Lines (Refer to Section 4-6 for submission contents and Section 5-1214 for review standards).

n. Condominium and Townhouse Plats

FIGURE 4-1

LAND USE APPLICATIONS: REVIEW PROCEDURES AND STANDARDS

	LAND USE CODE SECTION	
Land Use Activity	Procedure	Standards*

GROUP I (LUC Section 4-6)		
Major Development Applications		
Acceptance of Subdivision Roads	3-5	5-504
Amendments to a Final Plat	3-5 or 3-6	5-15
Planned Unit Development (PUD) Amendments	3-5 or 3-6	5-15
Subdivision Exemptions for:		
Correction of Survey Errors	3-5	5-1202
Lot Line Adjustment	3-5	5-1203
Parcels for Essential Community Facilities	3-5	5-1204
Reversion to Acreage Plats	3-5	5-1205
Agricultural Lands Lot Split	3-5	5-1206
Open Lands Protection	3-5	5-1207
Fully Developed Residential Property	3-5	5-1208
Single-Lot Split in an Existing Subdivision	3-5	5-1209
Wright's Mesa Subdivision Exemption	3-5	5-1210
West End	3-5	5-1211

Wright's Mesa Open Land Protection	3-5	5-1212
Wright's Mesa Essential Community Facilities & Parks	3-5	5-1213
Vacation of Lot Lines	3-5	5-1214
<u>Condominium and Town House Plats</u>	<u>3-5</u>	<u>5-1215</u>
Rezoning	3-6	5-1803
All Types of Development in Areas of State and local Interest/ C.R.S. 1041 Environmental Hazard Review	3-4	5-4

SECTION 5-12: SUBDIVISION EXEMPTIONS

5-1201 - General

This section establishes standards for the following subdivision exemptions:

- 5-1202 Correction of Survey Errors;
- 5-1203 Lot Line Adjustments;
- 5-1204 Parcels for Essential Community Facilities;
- 5-1205 Reversion to Acreage Plats;
- 5-1206 Agricultural Lands Lot Split;
- 5-1207 Open Land Protection;
- 5-1208 Fully Developed Residential Property;
- 5-1209 Single Lot Split in an Existing Subdivision;
- 5-1210 Wright's Mesa Subdivision Exemption;
- 5-1211 West End;
- 5-1212 Wright's Mesa Open Land Protection;
- 5-1213 Wright's Mesa Essential Community Facilities & Parks; ~~and~~
- 5-1214 Vacation of Lot Lines; and
- 5-1215 Condominium and Townhouse Plats

5-1215 - Condominium and Townhouse Plats

A subdivision exemption for division of land for condominium maps and townhouse plats may be permitted (refer to Section 3-5 and 4-6 for procedures and submission contents) provided that:

- 5-1215A. The proposed plat is consistent with the approved site plan or subdivision final plat approved by San Miguel County;
- 5-1215B. The total common area (including open space, access, utility, and drainage tracts serving the project, whether owned in common by the unit owners or by a public entity or other legal entity) and individual lot area of the whole project, divided by the total number of units, meets the minimum lot size requirement and maximum density of the overlying zone district;
- 5-1215C. A project located within a PUD complies with the PUD development agreement;
- 5-1215D. If applicable, any condominium or townhouse declaration, bylaws, covenants, party wall agreements, or other restrictions do not allow uses or activities that are inconsistent with the San Miguel County Land Use Code;
- 5-1215E. If applicable, the condominium or townhouse project provides a legal instrument or instruments to maintain any common areas, such as in a declaration, bylaws, covenants, party wall agreement, maintenance agreement, or ownership of common area by a public entity or other legal entity makes adequate provision for the maintenance of common area elements and limited common elements at no cost to the County; and
- 5-1215F. A Subdivision Improvements Agreement has been signed and submitted by the applicant, and an adequate financial guarantee for improvements has been posted or will be posted prior to approval of the condominium or townhouse plat, unless the required improvements have been completed or are secured under an existing Improvement Agreement approved by the County.
- 5-1215G. Approval of a condominium plat or townhouse plat does not constitute the creation of a condominium, which is subject to additional requirements, including but not necessarily limited to those set out in the Condominium Ownership Act, C.R.S. §38-33-101, et seq.

ARTICLE 7 – DEFINITIONS

Condominium

A system of property ownership in which an individual holds fee simple title to a specific unit (often a "cubicle of air space") within a multi-unit structure, while simultaneously holding an undivided interest in common areas and facilities.

Duplex Residence

Two-family dwelling with the units either side-by-side or in an over-under configuration. In the side-by-side configuration, the units share a common wall, while in the over-under configuration, they are stacked. A minimum of twenty percent (20%) of the length of the

two (2) walls in common shall be shared between the units, regardless of whether the wall is shared by all floors of the units. The shared walls in common shall not be the walls of a breezeway, or similar accessory structure, but may include the walls of a garage.

Townhouse

Single-household attached dwellings, each located on its own lot, structurally independent of adjoining dwellings and separated by a party wall, with no dwelling located above or below another dwelling with individual utility lines and associated meters serving each lot.

Draft Land Use Code Amendment – Major Subdivisions and Minor Subdivisions

Additions are shown as underlined. Deletions are in ~~strikethrough~~. *** indicates text preceding and/or following the amended text that is not shown and is unchanged.)

YELLOW HIGHLIGHTING in this draft is meant to call attention to new or relocated text.

~~BLUE HIGHLIGHTING with strikethrough~~ in this draft is meant to call attention to text that has been moved.

FIGURE 3-1

LAND USE ACTIVITIES AND REVIEW PROCEDURES

=====

Two-step reviews

Development in Wetland Areas other than a Residential Home and Access & Utilities associated with a Residential House

Special Use Permits

Minor Subdivisions

Substantial Plat Amendments

Five-step Reviews

Major Subdivisions

FIGURE 3-5

TWO-STEP REVIEWS: SUBMISSION CONTENTS AND STANDARDS		
	Land Use Code Section	
Land Use Activity	Submission Contents	Standards*
<u>Minor Subdivisions</u>	<u>5-1422C.</u>	<u>5-1422I.</u>

Substantial Plat Amendments	4-6	5-15
Substantial Planned Unit Development (PUD) Amendments	4-6	5-14 <u>00</u>
Land Uses Requiring Special Use Permits	4-6	5-10
Land Use Code Amendments	4-7	5-18
Rezoning	4-6	5-18
Approval of Specific Land Uses Identified within Article 6 as Uses Subject to Two-step Review	Article 6	Article 6
Conditional Uses on Federal Lands	4-7	5-11
All Development in Areas of Local and State Interest /C.R.S. 1041 Environmental Hazard Review with the exception of the construction of one Single-family Dwelling Unit	4-6	5-4
Public Utility Structures, Above Ground Electricity Transmission and Distribution Lines longer than 1,000 feet and; Underground Electricity Transmission and Distribution Lines carrying more than 115 kilovolts	4-701 J 4-701 J. 4-702	5-709
Development in Wetland Area other than Access, Utility, House on Previously Approved Parcel	4-2, 5-2203 E.	5-22
Modification of Ecological Sensitivity Boundaries	5-2502 B.	5-25
Major Facility Oil and Gas Development	5-2604 B.	5-2604

Wright's Mesa Subdivision Exemption 37 Acres or larger & Less than 150 Acres	4-6	5-1210
--	-----	--------

* other standards apply

SECTION 3-6: - TWO-STEP REVIEWS

3-601 - General (including Land Use Code Amendments)

The development applications identified in Figure 3-1 and listed in this Section are subject to two-step review procedures described in this part of the Code (Figure 3-5 serves as a guide to the procedures, submission contents and review standards for two-step reviews):

3-601A. Minor Subdivisions (Refer to Section 5-1422B. for submission contents and Section 5-1422H. for review standards).

3-601~~A~~B. Substantial Plat Amendments (Refer to Section 3-703 for continuance requirements, Section 4-6 for submission contents and Section 5-15 for review standards).

3-601~~B~~C. Substantial Planned Unit Development (PUD) Amendments (Refer to Section 3-703 for continuance requirements, Section 4-6 for submission contents and Section 5-15 for review standards).

3-601~~C~~D. Land Uses Requiring Special Use Permits (Refer to Section 4-7 for submission contents and Section 5-10 for review standards).

3-601~~D~~E. Land Use Code Amendments (Refer to Section 4-7 for submission contents and Section 5-18 for review standards).

3-601~~E~~F. Rezoning (Refer to Section 4-6 for submission contents and Section 5-18 for review standards).

3-601~~F~~G. Conditional Uses on Federal Lands (Refer to Section 4-7 for submission contents and Section 5-11 for standards).

3-601~~G~~H. All Development in Areas of Local and State Interest/1041 Environmental Hazard Review with the exception of the construction of one (1) single-family dwelling unit (refer to Section 4-6 for submission contents and Section 5-4 for review standards).

3-601~~H~~I. Public Utilities Structures, Above Ground Electricity Transmission and Distribution Lines Longer Than 1,000 Feet, and Underground Electricity Transmission and Distribution Lines Carrying More Than 115 Kilovolts (Refer to Sections 4-701 I and 4-703 for submission contents and Section 5-709 for standards).

3-601~~I~~J. Development in Wetland Areas or Wetland Buffer Zone Areas (See Sections 4-2 and 5-2203 E for submission requirements and Section 5-22 for standards.).

3-601~~JK~~. All reviews required pursuant to CRS 30-28-110(1) regarding construction, use or modification of public facilities, including rights-of-way.

3-601~~KL~~. Modification of Watershed Protection, Ecological Sensitivity Area Boundaries.

3-601~~LM~~. Major Oil and Gas Development (Refer to Section 5-26 for submission contents and review standards).

3-601~~MN~~. Wright's Mesa Subdivision Exemption for parcels thirty-seven (37) acres or larger but less than one hundred fifty (150) acres in size.

3-601~~NO~~. Approval of Specific Land Uses Identified within Article 6 as Uses Subject to Two-step Review (Refer to Article 6 for submission contents and review standards).

SECTION 3-7: - FIVE-STEP REVIEWS

3-701 – General

The development applications identified in Figure 3-1 and listed in this section are subject to five-step review procedures described in this section of the Code (Figure 3-6 serves as a guide to the procedures, submission contents and review standards for five-step reviews):

3-701A. Major Subdivisions (Refer to Section 4-3, 4-4 and 4-5 for submission contents and Figure 3-6 for review standards); and

FIGURE 3-6

FIVE-STEP REVIEWS: SUBMISSION CONTENTS AND STANDARDS		
	Land Use Code Section	
Land Use Activity	Submission Contents	Standards*
<u>Major</u> Subdivisions	4-3, 4-4, and 4-5, 5-14 <u>14B.</u>	2-1 to 2-33
		5-1 to 5-10, <u>5-14</u> <u>10</u>
Planned Unit Developments	4-3, 3-4, 4-5 and 4-9	2-1 to 2-33
		5-1 to 5-10, <u>5-14</u> <u>00</u>

* Other standards may apply.

3-702 – PROCEDURE

3-702A. Steps One and Two - Planning Commission and Board of County Commissioners Sketch Plan Major Subdivision and Planned Unit Development (PUD) Review.

3-702B. Steps Three and Four - Planning Commission and Board of County Commission Preliminary Major Subdivision and Planned Unit Development (PUD) Review.

- I. Within one (1) year of the approval of Sketch ~~Plan~~ Major Subdivision Plan and/or Sketch PUD Plan, the applicant shall submit a Preliminary Major Subdivision Plan and/or Preliminary PUD Plan application containing the submission contents identified in Section 4-4 and/or 5-1415A, to the Planning Director or the Sketch Plan approval shall expire.
- II. The Planning Director shall consider the referral agency comments, citizen comments and the standards of the code and conditions imposed by the Board of County Commissioners during the Sketch Plan ~~Subdivision~~ Review and the standards which are applicable to the development as noted in Figure 3-6.
- III. The Planning Director shall prepare a written report for consideration by the Planning Commission in accordance with 3-202F.
- IV. The Planning Commission shall review the Preliminary Major Subdivision Plan and/or PUD Plan Submission application at a public meeting and recommend approval, denial or approval with conditions.
- V. The Planning Commission may document its recommendation within a resolution recorded with the County Clerk and Recorder.
- VI. The Board of County Commissioners shall review the Preliminary Major Subdivision Plan and/or PUD Plan application at a public hearing noticed pursuant to Section 3-9 and grant or deny approval of the application or continue the hearing (in accordance with Sections 3-703 and 3-1006), based upon consideration of the staff report, Planning Commission recommendation, citizen comments and applicable standards of the Land Use Code.
- VII. The Board of County Commissioners action shall be documented within a resolution recorded with the County Clerk and Recorder.

3-702C. Step Five - Board of County Commissioners Final Plat Major Subdivision Plan and

Planned Unit Development (PUD) Review.

- I. An applicant seeking a five-step review shall submit a final plat major subdivision and/or PUD Plan application containing the submission contents identified in Section 4-5 to the Planning Director pursuant to the procedures in Section 3-202.
- II. The Board of County Commissioners shall consider the final plat major subdivision and/or PUD Plan application at a public meeting and grant or deny final approval of the application based upon consideration of the staff report, citizen comments and applicable standards of the Land Use Code.

3-703 - Review and Continuance Process

All Major Subdivision and PUD reviews and amendments shall not be continued for more than forty (40) days from the date of the public meeting/hearing without the written consent of the applicant. Any continuation of a public meeting/hearing shall be to a date certain.

An applicant may be requested, based on specific, objective criteria, by the reviewing body to redesign all or any portion of a plat or plan submitted for approval. If the applicant redesigns the plat or plan in accordance with the request, no further redesign shall be requested unless necessary to comply with a duly adopted county resolution, ordinance or regulation.

A meeting/hearing may be extended by the County to receive a recommendation from any agency to which a plat or plan was referred, but such extension shall not exceed thirty (30) days unless the agency has notified the County that it will require additional time to complete its recommendation.

A technical dispute between a licensed or registered professional of the applicant and the County may be referred, at the applicant's request, to a qualified employee in the appropriate state department for a recommendation to facilitate a resolution of the dispute.

FIGURE 3-7

LAND USE ACTIVITIES REQUIRING PUBLIC HEARING	
Land Use Activity	Body Responsible for Public Hearing
Subdivision Exemptions	Board of County Commissioners
Substantial Plat Amendments	Board of County Commissioners

Substantial Planned Unit Development (PUD) Amendments	Board of County Commissioners
Land Use Code Amendments	Board of County Commissioners
Rezoning	Board of County Commissioners
<u>Major Subdivisions</u>	Planning Commission for Sketch Plan Review and Board for Preliminary Review
Planned Unit Developments (PUD)	Planning Commission for Sketch Plan Review and Board for Preliminary Review
Floodplain Development Permit Uses by Special Review	Board of County Commissioners
<u>Minor Subdivisions</u>	<u>Board of County Commissioners</u>

SECTION 3-9: - PUBLIC NOTICE

3-901 – General

Pursuant to C.R.S. § 24-65.5-102(2)(a), a land use application that is subject to the requirements of public notice for neighboring property owners and the subsurface mineral estate underneath the subject property includes, but is not limited to, all public hearings and public meetings before either the County Planning Commission or the County Board of Commissioners, including preliminary or final plat for a major subdivision, minor subdivision, rezonings, any subdivision exemption creating more than one (1) new parcel, a planned unit development, and applications for special use permits where such applications are in anticipation of new surface development. In such case, the applicant shall provide notice, pursuant to C.R.S. §§ 30-28-133(10) and 24-65.5-103(1), to all owners and lessees of a mineral interest of record on the subject property of the pending application. For purposes of identifying the mineral estate owner on the subject property, the applicant or ~~his~~ their representative shall examine the records in the office of the

San Miguel County Clerk and Recorder. Notice to the mineral estate owner shall be provided by first class mail to the last-known address of record of the mineral estate owner not less than thirty (30) days before the date scheduled for the initial public meeting by San Miguel County.

3-1006 - Continuance

The decision-making body conducting the hearing may, on its own motion or at the request of any person, continue the hearing to a fixed date, time and place. No notice shall be required if a hearing is continued. Continuances shall be granted at the discretion of the decision-making body conducting the hearing only upon good cause shown. (Refer to Section 3-703 for continuation of Major Subdivision or PUD applications.) All adjourned public hearings shall commence only upon the giving of all notices that were required for the initial call of the public hearings.

3-1102 - Sketch Plan Subdivision and PUD Approvals

3-1102A. General

Sketch plan major subdivision and/or PUD approval by the Board of County Commissioners shall not constitute acceptance of any required subsequent submission(s).

3-1102B. Time Limits

Approval of a sketch plan shall be valid for one (1) year from the date of approval by the Board of County Commissioners. If, within that time period, the required subsequent submission has not been filed, the Board may grant a one-time extension of the approval, for a period not to exceed one (1) year, if the applicant demonstrates to the Board that substantial action has been taken in reliance on the sketch plan approval.

3-1103 - Preliminary Subdivision and PUD Approvals

3-1103A. General

Preliminary major subdivision and/or PUD approval by the Board of County Commissioners shall not constitute acceptance or approval of the final plat.

3-1103B. Time Limits

Approval of a preliminary plan shall be valid for one (1) year from the date of approval by the Board of County Commissioners. If, within that year and within each year thereafter, a final plat submission has not been filed for at least a portion the approved preliminary plan, the Board may grant extension(s) of the approval for good cause

shown.

3-1104 - Rezoning and Special Review Approvals

3-1104A. Rezoning and approvals of special uses which are made in conjunction with Planned Unit Developments (PUDs) or Major Subdivisions shall not be effective until the final plat is signed by the Board of County Commissioners.

3-1104B. Approval of rezoning and special review applications in conjunction with sketch plan ~~subdivision~~ and preliminary plan major subdivision and/or PUD approvals shall not require the Board to grant such approvals at the final stage of the major subdivision and/or PUD review.

3-1302 - Development Permit Amendments

3-1302A. Minor Amendments

Minor amendments to all development applications may be permitted during the land use review process pursuant to the procedures in this section. The Board of County Commissioners shall determine whether or not the proposed amendment constitutes either a minor amendment or a major amendment to a development application pursuant to the standards in Section 5-10 and 5-15. Major amendments shall require a new sketch plan major subdivision application and shall be reconsidered by the Planning Commission pursuant to Sections 3-5 or 3-6 whichever is applicable.

3-1302B. After the Issuance of a Development Permit

I. Insubstantial Amendments

Minor amendments to an approved development application that has been issued a development permit may be allowed by administrative review pursuant to Section 3-4.

II. Substantial Amendments

Major Amendments to a development proposal that has been issued a development permit may be permitted by Two-step Review pursuant to Section 3-5.

FIGURE 4-1

LAND USE APPLICATIONS: REVIEW PROCEDURES AND STANDARDS

	LAND USE CODE SECTION
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Land Use Activity	Procedure	Standards*
<u>Major</u> Subdivision	3-7	2-1 to 2-33 5-1 to 5-10, <u>5-1410</u>
Planned Unit Developments	3-7	2-1 to 2-33 5-1 to 5-10, <u>5-1400</u>
GROUP I (LUC Section 4-6)		
Major Development Applications		
Acceptance of Subdivision Roads	3-5	5-504
Amendments to a Final Plat	3-5 or 3-6	5-15
Planned Unit Development (PUD) Amendments	3-5 or 3-6	5-15
Subdivision Exemptions for:		
Correction of Survey Errors	3-5	5-1202
Lot Line Adjustment	3-5	5-1203
Parcels for Essential Community Facilities	3-5	5-1204
Reversion to Acreage Plats	3-5	5-1205
Agricultural Lands Lot Split	3-5	5-1206
Open Lands Protection	3-5	5-1207
Fully Developed Residential Property	3-5	5-1208
Single-Lot Split in an Existing Subdivision	3-5	5-1209
Wright's Mesa Subdivision Exemption	3-5	5-1210

West End	3-5	5-1211
Wright's Mesa Open Land Protection	3-5	5-1212
Wright's Mesa Essential Community Facilities & Parks	3-5	5-1213
Vacation of Lot Lines	3-5	5-1214
<u>Minor Subdivisions</u>	<u>3-6</u>	<u>5-1422I</u>
Rezoning	3-6	5-1803
All Types of Development in Areas of State and local Interest/ C.R.S. 1041 Environmental Hazard Review	3-4	5-4

*Other standards may apply

SECTION 4-3: - SKETCH PLAN MAJOR SUBDIVISION AND PLANNED UNIT DEVELOPMENT REVIEWS

4-301 - General

A land development application for sketch plan major subdivision and/or PUD review shall include:

4-301A. The minimum submission contents for all land development applications listed in Section 4-2;

4-301B. The maps identified in Section 4-302;

4-301C. The written responses to the standards identified in Section 4-303 of the Code.

Refer to Section 3-7 for the five-step review procedure for major subdivision and/or PUD applications.

4-302 - Maps

This section lists the maps to be prepared and submitted by an applicant with sketch plan major subdivision and/or PUD applications.

4-302A. Location, Ownership, Zone Districts

A map showing:

- I. Location of the proposed subdivision;
- II. All adjacent lands in common ownership or lands under option to the applicant;
- III. Commonly known landmarks; and
- IV. Zone district in which the proposed major subdivision and/or PUD and adjacent properties are located

4-302E. Land Use Map

A map showing applicable proposed land use divisions, including:

- I. Residential land uses;
- II. Agricultural and wildlife areas;
- III. Commercial and industrial land uses;
- IV. Community facilities;
- V. Open space, including public use or common areas;
- VI. Trails, parks or access points to public lands to be dedicated to the public;
- VII. Site data tabulation including listing of:
 - a. Total number and size of free market and restricted affordable housing units lots;
 - b. Total square feet of non-residential space;
 - c. Acreage of land in the proposed major subdivision and/or PUD;
 - d. Number of bedrooms per dwelling unit;
 - e. Ground coverage of the proposed structures and improvements including parking areas, streets, and sidewalks; and
 - f. Acreage of agricultural land and open space to be preserved.

4-304 - Environmental Report

An applicant shall submit a written report addressing potential impacts on the environmental features listed in this section.

4-304A. Streams, lakes, topography, wetlands, wildlife habitats (refer to Section 5-407 A) and vegetation;

4-304B. Geologic characteristics of the area, along with a determination of the impact of such characteristics on the proposed major subdivision and/or PUD;

4-304C. Potential radiation hazard; and

4-304D. Suitability of types of soil in the proposed major subdivision and/or PUD, in accordance with the national cooperative soil survey.

SECTION 4-4: - PRELIMINARY MAJOR SUBDIVISION AND PLANNED UNIT DEVELOPMENT REVIEWS

4-401 - General

A land development application for preliminary major subdivision and/or PUD review shall include the minimum submission contents for all land development applications listed in Section 4-2 in addition to the other submission contents specified in this part of the Code. Refer to Section 3-7 for the procedure for a preliminary major subdivision and PUD review.

4-402 - Maps

This section lists the maps to be prepared by a qualified cartographer and submitted with a preliminary major subdivision and/or PUD application.

4-402A. Approved Sketch Plan Major Subdivision and PUD Maps

Copies of the maps identified in Sections 4-302 A. B. E. and F as were approved by the Board of County Commissioners during sketch plan major subdivision and/or PUD review.

4-402D. Preliminary Landscaping Plan

The preliminary landscaping plan shall show the information in this section:

- I. All existing trees spaced more than thirty (30) feet apart by common name and spread. Trees to be removed shall be indicated.
- II. In densely wooded areas or in tree clusters, only outlines need be shown. However, individual, outstanding trees within the clusters must be shown if they are to be removed.
- III. A conceptual plan for proposed trees and other plant material.
- IV. Any other recognizable feature of importance to the major subdivision and/or PUD design such as rock outcroppings.

4-403 - Standards Report

An applicant shall submit a written report demonstrating compliance with any condition of the Board of County Commissioner's sketch plan major subdivision and/or PUD approval and resolution of any technical problems.

4-404 - Environmental Report

An applicant shall submit a written report addressing the potential impacts on the environmental features listed in this section.

4-404A. Streams, lakes, wetlands, wildlife habitat, topography, and vegetation;

4-404B. Geologic characteristics of the area, along with and a determination of the impact of such characteristics on the proposed subdivision;

4-404C. Potential radiation hazard;

4-404D. Suitability of types of soil in the proposed major subdivision and/or PUD, in accordance with the national cooperative soil survey.

4-405 - Preliminary Drainage Plan

The drainage plan shall show drainage and/or flood control measures. Applicant shall submit maps and plans for facilities to prevent storm waters caused by the proposed major subdivision and/or PUD and in excess of historic runoff from entering, damaging, or being carried by conduits, water supply ditches and appurtenant structures, and other storm drainage facilities.

4-406 - Water Supply Plan

An applicant shall submit detailed information on the proposed method of water supply indicating whether the provisions of Sections 5-605 and 5-606 can be complied with. Such information shall demonstrate a water supply that is sufficient in terms of quality,

quantity and dependability to ensure an adequate supply of water for the type of major subdivision and/or PUD proposed. The application shall include, but not be limited to evidence of: ownership of right to use, historic use, and estimated yield of claimed water rights, amenability of existing rights to a change in use if needed, water amount, and feasibility thereof, and evidence of potability of the proposed supply. The submitted information shall include the following:

4-406A. ~~Total number of proposed dwellings~~ Proposed method of water supply, including:

I. Proposed water augmentation plan (if applicable); or an 'ability to serve' letter from applicable water and/or wastewater provider. Evidence that public or private water providers or owners can and will supply water to the proposed major subdivision and/or PUD, stating the amount of water available for use within the major subdivision and/or PUD and feasibility of extending service to that area.

II. Information regarding existing water rights including, but not limited to: Evidence of ownership or right of acquisition of or use of existing and proposed water rights; historical use and estimate yield of claimed water rights; and capacity of existing rights to a change in use.

III. If the water supply is proposed to be an existing well, a copy of a current valid well permit and location map identifying the location of the existing well must be provided.

IV. If individual wells are proposed, an alternatives assessment performed by a qualified Registered Professional Engineer must be submitted and include the following minimum information:

- a. Anticipated dependability of source;
- b. Anticipated yield of source;
- c. Anticipated depth to groundwater;
- d. Anticipated water quality;
- e. Estimated cost of individual well construction;
- f. And anticipated rate of water delivery.

4-406AB. Total number of proposed dwellings;

4-406BC. Total number of square feet of proposed non-residential floor space;

4-406CD. Estimated total number of gallons per day of water system requirements where a distribution system is proposed; and

4-406D. Evidence that public or private water providers or owners can and will supply water to the proposed major subdivision and/or PUD, stating the amount of water available for use within the major subdivision and/or PUD and feasibility of extending service to that area; and

4-406E. Estimated construction cost and proposed method of financing public improvements.

4-407 - Sewage Disposal

An applicant shall submit detailed information on proposed sewage disposal facilities, demonstrating compliance with the standards of Section 5-607.

4-407A. The estimated total number of gallons per day of sewage to be treated shall be provided.

4-407B. Evidence that the property can and will be served by a public sewage treatment facility or by an Onsite Wastewater Treatment System (OWTS) shall be provided.

I. If sewage disposal is proposed to be via On-Site Wastewater Treatment System (OWTS), an alternatives assessment must be prepared by a qualified Professional Engineer evaluating the ability of the natural environment to support on-site systems with commensurate levels of sewage treatment, along with the physical ability of each property to support a site and an alternate site for wastewater disposal.

II The applicant must be prepared to estimate cost of installation and maintenance and state how the systems are proposed to be maintained.

4-407C. Engineered Sewage Disposal Systems

Whenever an engineered sewage disposal system is required by the County OWTS administrator, a State of Colorado Registered Engineer shall submit two (2) sets of stamped plans and calculations for County approval, one (1) set to be retained by the OWTS administrator. The OWTS administrator may also request that plans and calculations be submitted electronically.

4-409 - Mineral Resources

If the Board of County Commissioners or Planning Commission believes that the major subdivision and/or PUD may be located in a mineral resource area, the Board or Commission may request that the subdivider submit a report compiling all available existing data on mineral resources in the subject property. The applicant shall submit a record of ownership of mineral estates including mineral lessees, if any.

4-410 - Site Data Tabulation

The applicant shall submit a site data tabulation including the information in this section:

4-410A. The percentage of the site, to the nearest five percent (5%) of the total area proposed to be devoted to streets and each other type of use;

4-410B. Total number and size of free market dwelling units and deed-restricted affordable housing units/lots;

4-410C. Total square feet of non-residential floor space;

4-410D. Acreage of land in the proposed major subdivision and/or PUD;

4-410E. Number of bedrooms per dwelling unit;

4-410F. Ground coverage of the proposed structures and improvements including parking areas, streets, and sidewalk; and

4-410G. Total number of proposed off-street parking spaces.

4-414 - State Stormwater Discharge Permit

An applicant seeking preliminary approval for a major subdivision and/or PUD that would disturb more than five (5) acres must demonstrate that an application for a stormwater discharge permit from the Colorado Department of Health, Water Quality Control Division has been submitted for that proposed subdivision. Approval of such a permit, if required, shall be a prerequisite to any final plat approval.

4-415 - Law Enforcement Authority

An applicant seeking preliminary major subdivision and/or PUD approval for a development with a population density of one hundred (100) or more persons must submit a plan pursuant to CRS 30-11-401 et seq. for creating a Law Enforcement Authority, or for joining an existing Law Enforcement Authority, that would generate funds sufficient to cover all costs associated with provision of law enforcement in excess of those services that would be normally provided by the County Sheriff for the proposed development.

SECTION 4-5: - FINAL PLAT SUBDIVISION REVIEWS

4-501 - General

A land development application for final plat major subdivision or minor subdivision review shall include the minimum submission contents for all land development applications listed in Section 4-2 in addition to the other submission contents specified in this part of the Code. Refer to Section 3-7 for the procedures for a final plat major subdivision review and Section 3-6 for final plat minor subdivision review and Section 3-

12 for the procedures for Improvements Agreements.

4-503A. Owner's Certificate

I. A certificate signed and acknowledged by all parties having any record fee title ownership interest in the land described in the legal description per Section 4-502 L, consenting to the preparation and recordation of said plat. For most Subdivision final plats, the Owner's Certificate shall be worded substantially as follows:

Know all persons by these presents:

That (name of owner(s) of record), being the owner(s) of the land described at Reception No. _____ in the office of the Clerk and Recorder, further described as follows: (insert legal description per Section 4-502 L), under the name of (Title of final plat per Section 4-502 E., in capital letters), has laid out, platted and subdivided same as shown on this plat.

II. In the case of complex Major Subdivision applications, the applicant's attorney may want to prepare a unique Owner's Certificate subject to approval by the County Planning Director and County Attorney. The applicant shall request a Waiver of Requirements per Section 4-505.

4-509 - Certification of Water and Sewer Facilities and Fire Protection

4-509A. Sewer

An applicant shall submit a letter from the County Onsite Wastewater Treatment System (OWTS) administrator or appropriate sanitary district or sanitation district having jurisdiction certifying that satisfactory arrangements have been made with them for adequate provisions for sewage disposal for each lot within the major subdivision.

4-509B. Water

An applicant shall submit a letter from the engineer for the State Division of Water Resources or appropriate public water supply district certifying that satisfactory arrangements have been made with them for the installation of an adequate and safe water supply to each lot within the major subdivision.

4-509C. Fire Protection

An applicant shall submit a letter from the appropriate Fire Protection District certifying that satisfactory arrangements have been made for the provision of adequate fire

protection services, including access for emergency service vehicles within the major subdivision.

4-511 - Report Addressing Preliminary Plan Approval Conditions

An applicant shall submit a written report demonstrating compliance with all conditions imposed by the Board of County Commissioners during the preliminary plan major subdivision review.

4-513 - Law Enforcement Authority

An applicant seeking final plat major subdivision approval for a development with a population density of one hundred (100) or more persons must comply with the provisions of C.R.S. 30-11-401 et seq. regarding creation of a Law Enforcement Authority, or join an existing Law Enforcement Authority, that will generate funds sufficient to cover all costs associated with provision of law enforcement in excess of those services that would be normally provided by the County Sheriff for the proposed development prior to final plat major subdivision approval.

SECTION 4-6: - MAJOR DEVELOPMENT APPLICATIONS

4-605 - Special Submission Contents for Acceptance of Major Subdivision Roads

4-605A. Revenue projection consisting of:

- I. Current and past years assessed value of all property within the subject major subdivision and Road and Bridge mill levy;

SECTION 4-9: - PLANNED UNIT DEVELOPMENT AND MAJOR SUBDIVISION

4-901 - General

A land development application for a Planned Unit Development (PUD) (~~Planned Unit Development~~) and/or Major Subdivision shall include the minimum submission contents for all land development applications in Section 4-2 and a written report explaining how the application complies with the applicable review standards in Section 5-14. Refer to Section 3-7 for the review procedure. The additional information and/or materials specified in this part of the Code shall be submitted.

4-902 - Phasing Schedule

A sketch plan major subdivision and/or PUD review shall include a phasing schedule that describes:

- 4-902A. A phased submission of preliminary major subdivision and/or PUD applications;
- 4-902B. The parcels to be constructed upon in each phase and the submission date for each phase;
- 4-902C. The number of dwelling units, tourist accommodation units or commercial square footage to be constructed within each phase;
- 4-902D. A proposed schedule for the construction of other improvements or dedications to San Miguel County or public districts.

4-903 - Architectural and Landscaping Plans

A preliminary major subdivision and/or PUD review or, in the case of five (5) step reviews, the final plat major subdivision review shall include:

SECTION 5-14: - PLANNED UNIT DEVELOPMENT (PUD) AND SUBDIVISIONS

5-1400 - Planned Unit Development (PUD)

5-1401 - Planned Unit Development ~~Intent~~ Purpose

Planned Unit Development (PUD) is a ~~subdivision~~ procedure permitting variation of dimensional, permitted uses and parking standards to promote compliance with the County's Land Use Policies. A PUD may include a Subdivision. Specific purposes are:

- ~~5-1401A~~ A. Promoting flexibility in the type, design and siting of structures to preserve and take advantage of a site's unique natural resources and scenic features, and to avoid or mitigate any hazards, or request modification of requirements of the underlying zone district;
- ~~5-1401B~~ B. Encouraging efficient use of land and public streets, utilities and governmental services;
- ~~5-1401C~~ C. Preserving open space;
- ~~5-1401D~~ D. Achieving a compatible land use relationship with surrounding areas; and
- ~~5-1401E~~ E. Promoting multiple land uses and greater variety in the type, design and siting of buildings.

~~5-1401F~~ F. Preserve and protect wildlife and wildlife habitat areas.

5-1402 - Applicability

5-1402A. Mandatory Planned Unit Development (PUD)

Adherence to Planned Unit Development (PUD) standards is mandatory whenever a developer proposes to develop or subdivide land at a density higher than allowed by right in a particular zone district or to modify development standards of zoning.

5-1402B. Activities Exempt From Mandatory Planned Unit Development (PUD)

Compliance with Planned Unit Development (PUD) standards is not required for uses and densities allowed by right and for uses allowed by administrative review in a particular zone district.

5-1402C. Optional Planned Unit Development (PUD)

~~An applicant may request Planned Unit Development (PUD) review for land subdivisions within any zone district~~ An application for a Planned Unit Development (PUD may include a land division, which shall be reviewed pursuant to Section 5-1410 et seq.

5-1403 - General Standards

Each Planned Unit Development (PUD) shall comply with the following general standards:

5-1403A. Ownership

Land proposed for Planned Unit Development (PUD) must be in one ownership; however, the owners of contiguous parcels under separate ownership may jointly file an application.

5-1403B. Compatibility of Land Uses

Area and bulk requirements and permitted land uses may be varied pursuant to the standards within specific zone districts to ensure compatibility among multiple land uses in a Planned Unit Development.

5-1403C. Area and Bulk Requirements and Variation

Area and bulk requirements may be established or varied pursuant to the standards in Section 5-1404 A.

5-1403D. Phasing

A Planned Unit Development (PUD) shall insure:

- I. Each phase is self-sufficient and not dependent upon later phases;
- II. The failure to develop subsequent phases will not have any adverse impacts on the Planned Unit Development (PUD), its surroundings or the community in general; and
- III. Amenities such as open space and recreational areas are provided along with proposed residential or tourist accommodation construction at each development phase.

5-1403E. Common Open Space and Recreational Facilities

A Planned Unit Development (PUD) must:

- I. Include common open space and recreational facilities for the mutual benefit of residents of the entire tract, including residents of on-site affordable housing;
- II. Preserve and, if possible, enhance unique site features; and
- III. Include provisions for maintenance of common open space and recreational facilities to be described in the improvements agreement (Refer to Section 5-9).

5-1403F. Maximum Density

A Planned Unit Development (PUD) is not entitled automatically to the maximum density allowed in the zone district in which the land is located. Density shall be established based upon:

- I. Analysis of environmental factors affecting the land;
- II. Availability and adequacy of transportation system and facilities;
- III. Compatibility with surrounding land uses;
- IV. Consideration of adopted County plans affecting the site; and
- V. Consistency with Land Use Policies in Article 2.

5-1403G. Cultural Resources

A Planned Unit Development (PUD) shall take into consideration:

- I. The presence of cultural resources on the property, including historic, archaeological, and paleontological resources that are of local, state or national significance;

- II. The impact of the PUD on the cultural resources; and
- III. Measures that can be taken to preserve and protect cultural resources located within the PUD or mitigate impacts of the PUD on the cultural resources.

5-1403H. Procedures and Submission Contents

Refer to Section 3-7 for procedures and Sections 4-3 through 4-5 for submission contents.

5-1404 Variations in Standards

This Section establishes criteria for varying area and bulk, open space, off-street parking and use standards for a Planned Unit Development (PUD).

5-1404A. Area and Bulk Requirements

The following area and bulk requirements may be varied to cluster buildings and dwelling units, provided the overall density of the development does not exceed the maximum allowable density permitted and the development remains consistent with the intent of Planned Unit Development (PUD) (refer to Section 5-1401):

- I. Minimum lot area;
- II. Minimum front, side and rear yard setbacks;
- III. Minimum lot width;
- IV. Maximum height of buildings; and
- V. Maximum floor area ratio.

5-1404B. Common Open Space or Open Space

Common open space or open space standards may be reduced by up to five (5) percent if:

- I. Such reduction is consistent with the intent of the Planned Unit Development (PUD) procedure (refer to Section 5-1401);
- II. Such reduction is consistent with the San Miguel County Comprehensive Development Plan;
- III. Such reduction is consistent with the purpose and standards of the Scenic Foreground Overlay and Scenic View Plane Districts (refer to Section 5-316);
- IV. The common open space is useable and suitable for scenic, landscaping or recreation purposes; and

- V. A proportionate, undivided interest in all common open space is deeded in perpetuity to the homeowner's association within the Planned Unit Development (PUD); which deed shall contain restrictions against future residential, commercial and industrial development.

5-1404C. Off-street Parking

Off-street parking standards (see Section 5-702) may be increased or decreased based upon consideration of the following criteria:

- I. The estimated number of cars owned by future occupants of dwellings in a Planned Unit Development (PUD);
- II. The parking needs of any non-residential uses;
- III. The varying time periods of use, whenever joint use of common parking is proposed; and
- IV. Available or proposed transportation system.

5-1404D. Permitted land uses may only be varied pursuant to the listing of uses allowed by PUD procedure and to demonstration of compliance with the review standards for the various ~~land use~~ zone districts within a PUD.

5-1405 - Architectural Review

5-1405A. Applicability

The County may require an applicant for a Planned Unit Development (PUD) to submit at preliminary subdivision review architectural plans and/or design criteria sufficient to address the intent of Section 5-1405 B.

5-1405B. Intent

The intent of architectural review is to protect and promote visual character of the County by preventing the development of unsightly or obnoxious structures which:

- I. Are not properly related to their sites or adjacent land uses;
- II. Do not enhance solar resources; or
- III. Involve the indiscriminate clearing of property, excessive grading or the destruction of trees and shrubbery.

5-1405C. Standards

The Board of County Commissioners may require changes to architectural plans to:

- I. Reduce the adverse visual impacts of buildings, which, because of size, scale, color, location, lighting or materials either are out of harmony with the neighborhood in which they are to be constructed or diminish the natural beauty of mountain slopes or ridgelines;
- II. Minimize disturbances to the natural terrain; and/or
- III. Promote advantageous solar orientation and energy conserving design.

5-1406 - Landscaping Review

5-1406A. Applicability

The County may request an applicant for a Planned Unit Development (PUD) to submit landscaping plans at preliminary subdivision review.

5-1406B. Standards

Landscaping plans shall include:

- I. An ample quantity and variety of ornamental plant and ground cover species that are native or regarded as suitable for the local climate;
- II. Low-water-use plant and ground cover species wherever possible; and
- III. A commitment and appropriate steps to revegetate all cuts and fills.

5-1407 - Wildlife Protection and Mitigation

5-1407A. Applicability

The County may require a proposed PUD or Substantial PUD Amendment to comply with Land Use Code Section 5-407 XII. that may require a Wildlife Impact Assessment.

5-1408 - Reserved

5-1409 - Reserved

5-1410 - Major Subdivision

5-1411 - Major Subdivision Purpose

The purpose of this Section is to establish the minimum standards for the division of land and improvement of that land in unincorporated San Miguel County. Specific purposes are:

- A. Establish reasonable and equitable procedures and standards for the subdivision of land.
- B. Require the provision of safe and convenient vehicular and pedestrian traffic circulation.
- C. Ensure that necessary public infrastructure, services and facilities are available to support development.
- D. Ensure the subdivision design protects wildlife habitat, wetlands, native vegetation, and cultural resources.
- E. Minimize the impacts of air and water pollution and the degradation of land.
- F. Provide for open space and recreational land through efficient and appropriate subdivision design.
- G. Guide future growth that is consistent with the County Comprehensive Plan, Area Community Plans, the County Land Use Policies in Article 2, and the purpose of the Zone District in which it is proposed to be located.
- H. Maintain or improve safety from wildfire, flooding and other potential hazards, including all flood requirements per Section 5-28 Floodplain Regulations.

1412 - Major Subdivision Applicability

- 5-1412A. The Major Subdivision procedures shall be applicable to all land divisions resulting in a total of six (6) or more lots.
- 5-1412B. Prior to the division or transfer of land within unincorporated San Miguel County, an applicant shall obtain approval for a Sketch Plan, Preliminary Plan and Final Plat for Subdivision pursuant to the procedures and standards of this Land Use Code, unless exempted pursuant to Section 3-102, Subdivision Exemptions.
- 5-1412C. Major Subdivisions are subject to the five-step review procedures described in Section 3-7, Five-step Reviews.
 - I. Sketch Plan.

The purpose of the sketch plan review is for the applicant, the County and the public to evaluate and discuss the basic concepts for development of the proposed major subdivision, and to consider whether there are any alternative

concepts the applicant should explore. It is the time when determinations should be made as to whether the proposed major subdivision substantially complies with these Land Use Code regulations and is in substantial conformance with the San Miguel County Comprehensive Plan, and any applicable ancillary County adopted documents concerning affordable housing or infrastructure management, and is generally compatible with the existing and currently permissible future uses of adjacent land and other substantially impacted land, services, or infrastructure improvements. It is also the opportunity to reach general agreement on such issues as the appropriate range of units and commercial space for development; the general locations intended for development and the areas planned to remain undeveloped; the general alignments for access; and whether water supply and sewage disposal will be provided via on-site systems or through connection to public systems. The outcome of sketch plan review should be an identification of issues and concerns the applicant must address if the project is ultimately to receive final subdivision approval from the County.

II. Preliminary Plan.

The purpose of preliminary plan review is for the applicant to respond to the planning and development issues identified during sketch plan review and to formulate detailed, properly engineered solutions to those issues and concerns. The preliminary plan stage is when the applicant is to provide detailed information and mitigation proposals for evaluation by the County.

III. Final Plat.

The purpose of final plat review is for the applicant to submit a permanent, comprehensive and accurate public record of the major subdivision, including the precise size, shape and location of lots, blocks, streets, easements, open spaces and other parcels of land within the development, together with all infrastructure and improvement plans, applicable covenants, conditions, use restrictions and design and development standards. The final plat shall conform in all respects to the preliminary plan approved by the County and shall incorporate all modifications and conditions imposed by the Board of County Commissioners.

1414 - Sketch Plan for Major Subdivision

5-1414A. Initiation. Applications for a Sketch Plan for Major Subdivision may be submitted at any time to the Planning Director by the owner, or any other person having a recognizable interest in the land for which the Sketch Plan for Major Subdivision is proposed, or their authorized agent. Prior to submission of an application for a Sketch Plan for Major Subdivision, an applicant shall hold a pre-application conference with the Planning Director pursuant to Section 3-202A., Pre-application Conference.

5-1414B. Application Contents. The application shall contain the materials specified in Section 4-2, Minimum Submission Contents for all Land Use Applications, and in Section 4-3, Sketch Plan Subdivision and Planned Unit Development Reviews, and the following information:

I. Proposed method of water supply and sewage disposal, including:

- a. Proposed water augmentation plan (if applicable); or an 'ability to serve' letter from applicable water and/or wastewater provider.
- b. Information regarding existing water rights including, but not limited to: Evidence of ownership or right of acquisition of or use of existing and proposed water rights; historical use and estimate yield of claimed water rights; and capacity of existing rights to a change in use.
- c. If the water supply is proposed to be an existing well, a copy of a current valid well permit and location map identifying the location of the existing well must be provided.
- d. If individual wells are proposed, an alternatives assessment performed by a qualified Registered Professional Engineer must be submitted and include the following minimum information:
 - i. Anticipated dependability of source;
 - ii. anticipated yield of source;
 - iii. anticipated depth to groundwater;
 - iv. anticipated water quality;
 - v. estimated cost of individual well construction;
 - vi. and anticipated rate of water delivery.
- e. If sewage disposal is proposed to be via On-Site Wastewater Treatment System (OWTS), an alternatives assessment must be prepared by a qualified Professional Engineer evaluating the ability of the natural environment to support on-site systems with commensurate levels of sewage treatment, along with the physical ability of each property to support a site and an alternate site for wastewater disposal.
- f. The applicant must be prepared to estimate cost of installation and maintenance and state how the systems are proposed to be maintained.

I. Proposed method of fire protection including details regarding an adequate legal water supply for firefighting purposes.

II. Other materials. Such other materials as the Planning Director deems necessary to fully evaluate the compliance of the proposed Sketch Plan with

these Land Use Code regulations and as required pursuant to those Land Use Code Sections identified in Figure 3-6.

- 5-1414C. Review of Application. Major Subdivisions are subject to the five-step review procedures described in Section 3-7, Five-step Reviews. The submission of an application, determination of its sufficiency, staff review of, and notice and scheduling of a public hearing for an application for a Sketch Plan for Major Subdivision shall comply with the procedures established in Section 3-202, Ten Stages of the Land Use Review Process.
- 5-1414D. Review and Recommendation of Planning Commission. Major Subdivisions are subject to the five-step review procedures described in Section 3-702A. I., Five-step Reviews. The Planning Commission shall conduct a public hearing on an application for Sketch Plan. At the public hearing, the Planning Commission shall consider the application, the relevant support materials, the Staff Report, and the public testimony given at the public hearing. After the close of the public hearing, the Planning Commission shall recommend to the Board of County Commissioners either to approve, approve with conditions, or disapprove the application, considering whether conceptually it is consistent with the standards in Section 5-1414F., Standards and all other applicable standards.
- 5-1414E. Action by Board of County Commissioners. Major Subdivisions are subject to the five-step review procedures described in Section 3-702A. II. After receipt of the recommendation from the Planning Commission, the Board of County Commissioners shall conduct a public meeting on an application for Sketch Plan. At the meeting, the Board of County Commissioners shall consider the application, the relevant support materials, the Staff Report, the Planning Commission recommendation, and the public testimony given at the public hearing. After the close of the meeting, the Board of County Commissioners, by a majority vote, shall either approve, approve with conditions, or deny the application, considering whether conceptually it is consistent with the standards in Section 5-1414F., Standards.
- 5-1414F. Standards. The Major Subdivision shall comply with the following standards:
- I. Conformance with Master Plan. The proposed subdivision shall be in substantial conformance with the purposes, intents, goals, and policies of the San Miguel County Comprehensive Plan, Area Community Plans, and any applicable ancillary County adopted documents pertaining to natural resource protection, affordable housing, or infrastructure management.
 - II. Consistent with Land Use Code regulations. The proposed subdivision shall comply with all of the standards of this Section and all other provisions of these Land Use Code regulations, including, but not limited to, the County Land Use Policies in Article 2, and the applicable requirements of Article 5, Standards.

- III. Spatial Pattern Shall Be Efficient. The proposed subdivision shall be located and designed to avoid creating spatial patterns that cause inefficiencies in the delivery of public services or require duplication or premature extension of public facilities.
- a. Utility and Road Extensions. Proposed utility extensions shall be consistent with the utility's service plan. Proposed road extensions shall be consistent with San Miguel County road plans.
 - b. Serve Ultimate Population. Utility lines shall be sized to serve the planned ultimate population of the service area to avoid future land disruption to upgrade under-sized lines.
 - c. Coordinate Utility Extensions. Generally, utility extensions shall only be allowed when the entire range of necessary facilities can be provided, rather than incrementally extending a single service into an otherwise un-served area.
- IV. Suitability for Development. The property proposed to be subdivided shall be suitable for development, considering its topography, environmental resources and natural or man-made hazards that may affect the potential development of the property, and existing and probable future public improvements to the area. The development should avoid the hazard areas identified in Section 5-401D.
- a. Land subject to natural hazards such as flooding, wildfire, falling rock, landslides, and avalanches shall be considered unsuitable for any occupancy that may impair the health, safety or welfare of the inhabitants. Such land shall be identified and shall not be subdivided until the hazards have been mitigated or will be mitigated by the subdivision and improvement plans.
- V. Compatible with Surrounding Uses. The proposed subdivision shall be generally compatible with the existing and currently permissible future uses of adjacent land, and other substantially impacted land, services, or infrastructure improvements.
- VI. Adequate Facilities. The applicant shall demonstrate that the development proposed in the Sketch will be provided adequate facilities for potable water supply, sewage disposal, solid waste disposal, electrical supply, fire protection and roads and will be conveniently located in relation to schools, police and fire protection, and emergency medical services.
- VII. Cultural Resources. The applicant shall demonstrate that measures can be taken to preserve and protect cultural resources present within the property, including historic, archaeological, and paleontological resources that are of

local, state or national significance or mitigate impacts of the subdivision on the cultural resources.

1415 - Preliminary Plan for Major Subdivision

5-1415A. Application Contents. An application for a Preliminary Plan for Major Subdivision shall contain the materials specified in Section 4-2, Minimum Submission Contents for all Land Use Applications, in Section 4-4, Preliminary Plan Subdivision and Planned Unit Development Reviews, and the following information:

I. An application for Areas of local and State interest when required pursuant to the applicable standards in Section 5-4, Areas and Activities of Local and State Interest/"1041" Environmental Hazard Review:

II. Preliminary Plan Conformance with Sketch Plan. Where such Preliminary Plan departs from a condition of the Sketch Plan approval, the Applicant shall identify any and all such inconsistencies and shall set forth its justification for them.

III. Traffic Impact Study. As determined by the Planning Director.

5-1415B. Review of applications. Major Subdivisions are subject to the five-step review procedures described in Section 3-702B. The submission of an application for Preliminary Plan for Major Subdivision, determination of its sufficiency, staff review of, and notice and scheduling of a public meeting for the application shall comply with the procedures established in Section 3-202, Ten Stages of the Land Use Review Process.

5-1415C. Recommendation by Planning Commission. Major Subdivisions are subject to the five-step review procedures described in Section 3-702B. The Planning Commission shall conduct a public meeting on an application for a Preliminary Plan for Major Subdivision. At the meeting, the Planning Commission shall consider the application, the relevant support materials, the Staff Report, and the public information given at the public meeting. The Planning Commission may confer with the applicant on changes deemed advisable and the kind and extent of such changes, and request Planning Department input. After the close of the meeting, the Planning Commission shall recommend approval, approval with conditions, or disapproval of the Preliminary Plan for Major Subdivision based upon whether it conforms to the approval given to the Sketch Plan and whether it complies with the standards in Section 5-1414F., Standards, and recommend the application to the Board of County Commissioners.

5-1415D. Action by Board of County Commissioners. After receipt of the recommendation from the Planning Commission, the Board of County Commissioners shall conduct a public hearing on an application for a Preliminary Plan for Major Subdivision. At the hearing, the Board of County Commissioners shall consider the application, the

relevant support materials, the Staff Report, the Planning Commission recommendation, and the public information given at the public hearing. The Board of County Commissioners may confer with the applicant on changes deemed advisable and the kind and extent of such changes, and request Planning Department input. After the close of the hearing, the Board of County Commissioners by a majority vote of the quorum present, shall either approve, approve with conditions or deny the application for Preliminary Plan for Major Subdivision based upon whether it conforms to the approval given to the Sketch Plan for Major Subdivision and whether it complies with the standards in Section 5-1414F., Standards.

5-1416 – Final Plat for Major Subdivision

5-1416A. Application Contents. An application for a Final Plat for Major Subdivision shall contain the materials specified in Section 4-2, Minimum Submission Contents for all Land Use Applications, in Section 4-5, Final Plat Subdivision and Planned Unit Development Reviews, and the following information:

- I. Complete engineering plans and specifications, time schedules and cost estimated for all public improvements, including erosion control and revegetation measures, "no discharge" measures to eliminate stormwater discharges, streets, access roads, drainage facilities, utility systems, bridges, landscaping and other improvements proposed or required to be installed by the developer, and a statement of proof that the subdivider has the ability to pay for such improvements;
- II. Draft Subdivision Improvements Agreement. In the form contained in Appendix F or as approved by the Planning Director.
- III. Copies of all the protective covenants, declarations, easements, party wall agreements, or other restrictions placed on the subdivision.
- IV. Show compliance with Section 5-8, Dedications regarding School Land and Public Park Dedication or cash in lieu thereof.
- V. Treasurer's Certificate of Taxes Paid.

5-1416B. Procedures. After approval of the Preliminary Plan for Major Subdivision (unless an extension has been approved pursuant to Section 3-1103, Preliminary Plan Approvals, or the Preliminary Plan specifies otherwise, the applicant shall submit to the Planning Director an application for Final Plat for Subdivision.

- I. Review of Applications. The submission of an application for a Final Plat for Major Subdivision, determination of its sufficiency, and staff review of, and notice and scheduling of a public meeting for the application shall comply with the procedures established in Section 3-202, Ten Stages of the Land Use Review Process.

II. Subdivision Mylar. Prior to scheduling the application for hearing before the Board of County Commissioners, the applicant shall submit to the Planning Director all Improvement Agreements for Board signature, and a properly signed and notarized Mylar of the Major Subdivision showing all necessary revisions as required by the Planning Director.

III. Action by Board of County Commissioners. At the public meeting on the Final Plat for Major Subdivision, the Board of County Commissioners shall review the Final Plat, the submittal materials, provide both County staff and the applicant an opportunity to comment, and approve or deny the Final Plat for Major Subdivision based on whether it conforms to the approval given to the Preliminary Plan for Major Subdivision and the standards in Section 5-1414F. V., Standards, considering specifically the adequacy of required improvements and the acceptance of areas dedicated for public use and easements.

5-1416C. Recording. After the Final Plat for Major Subdivision is approved by the Board and all required conditions related to the Final Plat are satisfactorily addressed, the original Mylar drawing shall be recorded. Failure of the applicant to record the Final Plat and Subdivision Agreement within one hundred and eighty (180) days of its approval shall render the Final Plat for Subdivision and Subdivision Agreement invalid.

5-1416D. Subdivision Improvements Agreement.

I. General. Concurrent with the approval of Final Plat for Major Subdivision, the applicant and the Board of County Commissioners shall enter into a Subdivision Improvements Agreement binding the Major Subdivision to any conditions placed in the Resolution. This SIA Agreement shall be signed by the Board of County Commissioners in conjunction with signature of the Final Plat.

II. Public Improvement Guarantee. In order to ensure installation of necessary public improvements planned to accommodate the development, the Subdivision Agreement shall provide a guarantee for no less than one hundred twenty five (125) percent of the current estimated cost of such public facility improvements, as estimated by the County Engineer. The guarantee shall be in a form as described in Section 4-508, Improvement Agreements and Performance Guarantees.

5-1417 - Reserved

5-1418 - Reserved

5-1419 - Reserved

5-1420 - Minor Subdivision

5-1421 - Minor Subdivision Purpose

A Minor Subdivision shall be reviewed in accordance with the provisions of this Section, and Section 4-5 Final Plat Subdivision Reviews.

5-1421A. The Minor Subdivision process is an application to change real property boundaries to create a total of five (5) or fewer parcels (the parent parcel plus four additional parcels, within property that has not been previously platted or subdivided. Tracts to be dedicated or conveyed for open space, access, utilities, drainage, or other public or common purposes shall not be counted as parcels for purposes of this Section.

5-1422 - Procedures

5-1422A. Minor Subdivisions are subject to the two-step review procedures described in Section 3-602 – Procedures.

5-1422B. Initiation. Applications for a Minor Subdivision may be submitted at any time to the Planning Director by the owner, or any other person having a recognizable interest in the land for which the Minor Subdivision is proposed, or their authorized agent. Prior to submission of an application for a Minor Subdivision, an applicant shall hold a pre-application conference with the Planning Director pursuant to Section 3-302A., Pre-application Conference.

5-1422C. Application Contents. The application shall contain the materials specified in Section 4-2, Minimum Submission Contents for all Land Use Applications, and the following information, as applicable:

- I. Preliminary or Final Plat. A preliminary plat of the proposed subdivision may be submitted for the first step of the two-step review process. A final plat of the proposed subdivision in conformance with Final Plat requirements as delineated in Section 4-5, Final Plat Subdivision Reviews shall be submitted for the second step of the two-step process.
- II. Zoning. Demonstration that the land included within the proposed subdivision is properly zoned for the proposed use. Conformance with existing zoning on the property is required.
- III. Access. Demonstration that all lots in the proposed subdivision have legal and physical access to a public street or rights-of-way by conventional vehicle.
- IV. Water Supply. Satisfactory evidence demonstrating the existence of a legal, physical, adequate and dependable water supply for each lot.
- V. Wastewater Disposal. Provide satisfactory evidence, for each proposed lot, demonstrating the existence of a wastewater disposal system, or other lawful

means of disposing of human wastes, which complies with all applicable public health laws.

- VI. Fire Protection. Satisfactory evidence demonstrating adequate fire protection for each proposed lot.
 - VII. Hazards. Satisfactory evidence demonstrating that all site conditions associated with the subdivision will not create hazards and all lots will contain safe, adequate building sites.
 - VIII. Site Plan. A site plan depicting existing and proposed building locations, access drives, parking areas, landscaping, fences, signs, and any other pertinent site data.
 - IX. Agreements. A Subdivision Improvements Agreement (Section 3-12, Improvement Agreements and Performance Guarantees), off-site road improvements agreement or other agreement if required by the Board of County Commissioners.
 - X. Restrictions. Any protective covenants, declarations, easements, party wall agreements or other restrictions to be placed on the subdivision which shall be filed for recording in the Office of the Clerk and Recorder at the time of Final Plat recording.
 - XI. Schools and Parks. Demonstration that all applicable school land park land dedication or cash-in-lieu requirements have been satisfied (Section 5-8, Dedications).
 - XII. Certification from the County Treasurer's Office that all ad valorem taxes have been paid.
- 5-1422D. Public Notice. Minor Subdivisions shall comply with the applicable provisions of Section 3-9 Public Notice.
- 5-1422E. Review of Applications. The submission of an application for Minor Subdivision, and determination of its sufficiency, shall comply with the procedures established in Section 3-302, Ten Stages of the Land Review Process. In addition, the Staff Report shall outline any revisions that need to be made to the Minor Subdivision to ensure that it complies with the requirements of this Section.
- 5-1415F. Recommendation by Planning Commission. The Planning Commission shall conduct a public meeting on an application for a Minor Subdivision. At the meeting, the Planning Commission shall consider the application, the relevant support materials, the Staff Report, and the public information given at the public meeting. The Planning Commission may confer with the applicant on changes deemed advisable and the kind and extent of such changes, and request Planning Department input. After the

close of the meeting, the Planning Commission shall recommend approval, approval with conditions, or disapproval of the Minor Subdivision based upon whether it complies with the standards in Section 5-1422I., Standards, and recommend the application to the Board of County Commissioners.

5-1422G. Minor Subdivision Mylar. Prior to scheduling the application for hearing before the Board of County Commissioners, the applicant shall submit to the Planning Director all Improvement Agreements for Board signature, and plat Mylar of the subdivision showing all necessary revisions as required by the Planning Director. Upon review and approval by the County Surveyor, the plat shall be scheduled for the next available hearing date of the Board of County Commissioners.

5-1422H. Action by Board of County Commissioners. After receipt of the recommendation from the Planning Commission and the minor subdivision plat Mylar, Improvement Agreements, and certificates, the Board of County Commissioners shall conduct a public hearing on an application for a Minor Subdivision. At the hearing, the Board of County Commissioners shall consider the application, the relevant support materials, the Staff Report, the Planning Commission recommendation, and the public information given at the public hearing. The Board of County Commissioners may confer with the applicant on changes deemed advisable and the kind and extent of such changes, and request Planning Department input. After the close of the hearing, the Board of County Commissioners by a majority vote of the quorum present, shall either approve, approve with conditions or deny the application for Minor Subdivision based upon whether it complies with the standards in Section 5-1422I., Standards.

5-1422I. Standards. The Planning Commission, Board of County Commissioners and the Planning Director shall consider the following in the review of a Minor Subdivision.

I. Standards for Minor Subdivision.

- a. Consistent with Comprehensive Plan. The proposed Minor Subdivision shall be in substantial conformance with the purposes, intents, goals and policies of the San Miguel County Comprehensive Plan, Area Community Plans and any applicable ancillary County adopted documents pertaining to natural resource protection, affordable housing or infrastructure management.
- b. Consistent with Land Use Code regulations. The proposed subdivision shall comply with all of the standards of this Section and all other provisions of the Land Use Code, including, but not limited to, the applicable standards of Article 5, Standards.
- c. Spatial Pattern Shall Be Efficient. The proposed subdivision shall be located and designed to avoid creating spatial patterns that cause inefficiencies in the delivery of public services, or required duplication

or premature extension of public facilities, or result in a leapfrog pattern of development. A subdivision of a parcel with existing access to a county road or state highway and existing or committed utility service shall not be considered a leapfrog pattern of development.

- i. Utility and Road Extensions. Proposed utility extensions shall be consistent with the utility's service plan or shall require prior County approval of an amendment to the service plan. Proposed road extensions shall be consistent with the County road plans.
 - ii. Service Ultimate Population. Utility lines shall be sized to serve the planned ultimate population of the service area in order to both avoid future land disruption, and the necessity of upgrading undersized lines.
- d. Suitability for Development. The property proposed to be subdivided shall be suitable for development, considering its topography, environmental resources and natural or man-made hazards that may affect the potential development of the property, and existing and probable future improvements to the area.
- e. Access, Water and Sewage. The adequacy of access, potable water, and sewage disposal on the land to be subdivided.
- f. Compatible with Surrounding Uses. The proposed subdivision shall be generally compatible with the existing and currently permissible future uses of adjacent land and other substantially impacted land, services or infrastructure improvements.
- g. Improvements Agreements. The adequacy of the proposed Improvements Agreement, where applicable.
- h. Conformance with Final Plat Requirements. Conformance with the Final Plat requirements (Section 4-5, Final Plat Subdivision Reviews) and other applicable regulations, policies, standards, and guidelines.
- i. Cultural Resources. The applicant shall demonstrate that measures can be taken to preserve and protect cultural resources present within the property, including historic, archaeological, and paleontological resources that are of local, state or national significance or mitigate impacts of the subdivision on the cultural resources.
- j. Any future subdivision shall be a Major subdivision.

ARTICLE 7 – DEFINITIONS

Major Subdivision

The subdivision of land which results in the creation of **six (6)** or more total lots, and of which any is less than 35 acres in size.

Minor Subdivision

The subdivision of land which results in the creation of no more than **five (5)** total lots, and of which any is less than thirty-five (35) acres each in size.

Subdivision

The division of any parcel of land into two (2) or more parcels, and of which any is less than 35 acres in size, or into separate interests or interests in common, except when such division:

- (1) Creates parcels of land each thirty-five (35) or more acres, none of which is intended for use by multiple owners;
- (2) Creates parcels of land, such that the land area of each parcel, when divided by the number of interests therein, results in thirty-five (35) or more acres per interest;
- (3) Is caused by order of any court in this state or by operation of law;
- (4) Is caused by a lien, mortgage, deed of trust or any other security instrument;
- (5) Is caused by a security or unit of interest in any investment trust regulated under the laws of this state, or any other interest in an investment entity;
- (6) Creates cemetery lots;
- (7) Creates an interest or interests in oil, gas, minerals, or water that is now and hereafter severed from the surface ownership of real property; or
- (8) Is caused by the acquisition of an interest in land in the name of a husband and wife or other persons in joint tenancy, or as tenants in common; unless the Board finds that steps were taken to establish one (1) of the above conditions (1-8) solely to prevent the division from qualifying for this definition. The Board of County Commissioners may choose to exempt any specific division of land from this definition when it finds that the division is beyond the intent and purpose of subdivision regulations. See Section 5-12.

SECTION 5-15: FINAL PLAT, ~~AND~~ PLANNED UNIT DEVELOPMENT (PUD), AND SUBDIVISION AMENDMENTS

5-1502 Insubstantial Amendment

Insubstantial amendments to a final plat, for a PUD, or a Subdivision are permitted. Refer to Section 3-4 for procedures and 4-6 for submission contents. The final plat shall state the purpose of the Amendment and whether the Amendment amends or supersedes in whole or in part the previously approved plat. An insubstantial amendment shall be limited to technical or engineering considerations first discovered during actual development, which could not reasonably have been anticipated during the approval process. The Planning Director shall

compare the proposed amendment to the original approval, and, if any other amendments have been approved since the original approval, shall consider the cumulative impact of all approvals granted. The following shall not be considered an insubstantial amendment:

- 5-1502A. A change in the use or character of the development.
- 5-1502B. An increase by greater than three percent (3%) in the overall coverage of structures on the land.
- 5-1502C. Any amendment that substantially increases trip generation rates of the proposed development, or the demand for public facilities.
- 5-1502D. A reduction by greater than three percent (3%) of the approved open space.
- 5-1502E. A reduction by greater than one percent (1%) of the off-street parking and loading space.
- 5-1502F. A reduction in required pavement widths or rights-of-way for streets and easements.
- 5-1502G. An increase of greater than two percent (2%) in the approved gross leasable floor area of commercial buildings.
- 5-1502H. An increase of greater than one percent (1%) in the approved residential density of the proposed development.

5-1503 Substantial Amendment

Any amendment that is not insubstantial according to the criteria in Section 5-1502 shall be approved pursuant to the procedures in Section 3-601, and the submission contents and standards of Section 4-5 for final plat review and the standards in this section (refer to Section 3-702 C for procedures and Section 4-5 for submission contents). The final plat shall state the purpose of the Amendment and whether the Amendment amends or supersedes in whole or in part the previously approved final plat.

- 5-1503A. The proposed amendments must be consistent with the approved sketch plan subdivision approval, however in the absence of a valid sketch plan approval the amendment shall be compared to the preliminary plat;
- 5-1503B. The proposed amendment must be necessary to achieve the intent and purposes of the Planned Unit Development (PUD); and
- 5-1503C. The proposed amendment must be consistent with the standards of Section 5-1803.

TOWN OF MOUNTAIN VILLAGE
NOTICE

Notice is hereby given that the fol-
lowing Ordinance passed on the first
reading at the Town of Mountain Vil-
lage Town Council meeting held Sep-
tember 17, 2026. The second reading,
public hearing and final Council vote
will take place on Thursday, October
15, 2026, at 2:00 p.m., in the 2nd floor
conference room, Mountain Village
Town Hall, Mountain Village and via
Zoom. Ordinances are available for
review during regular business hours
in the office of the Town Clerk, 455
Mountain Village Blvd, Suite A, Moun-
tain Village or on the website at www.
townofmountainvillage.com .
Ordinance Amending Provisions
of Chapters 16.01 and 16.02 of the
Mountain Village Municipal Code
Concerning Fees and Costs
Ordinances will be codified and in-
corporated into the Town of Mountain
Village Municipal Code prior to effec-
tive date or as soon as practicable
after an emergency ordinance has
passed.
10/1 COL-000256

SAN MIGUEL COUNTY
COLORADO
PLANNING COMMISSION
REGULAR MEETING
THURSDAY, OCTOBER 8, 2026 -
9:00 AM
Location of Meeting: 333 West Col-
orado Ave., Second Floor Meeting
Room, Telluride, CO 81435
Zoom Protocol
Join Zoom Meeting
https://us06web.zoom.us/
j/86224076240?pwd=dg8lrMwLlf-
HLkcZlY3JKIGs8lpYz0Q.1
Meeting ID: 862 2407 6240
Passcode: 691404
If you wish to speak:
Via Computer:
Click Raise Hand in the webinar con-
trols. The host will be notified that
you’ve raised your hand.
• If the host allows you to talk, you
may be prompted to unmute yourself.
While unmuted, your profile picture
and name are displayed to the host
and panelists. Only your name is dis-
played to other attendees.
• Click Raise Hand in the webinar con-
trols to lower it, if needed. This will not
mute yourself if you are unmuted.
Windows: You can also use the Alt+Y
keyboard shortcut to raise or lower
your hand. Mac: You can also use the
Option+Y keyboard shortcut to raise
or lower your hand.
Telephone: If you join the webinar/
meeting by phone, dial *9 to raise
your hand.
1.9:00a.m. Call to Order
2.Approval of Minutes, Planning Com-
mission and Staff Comments
a.September Minutes --
3. Work Session with BOCC
a.Work Session: Affordable Housing
Code Update --
4.Lunch
5.Readjourn at 1 p.m.
6.Land Use Code Amendment Rec-
ommendation
a. Land Use Code Amendment: Sub-
divisions and Condominium Plats --
7. Adjournment
NOTE: All times are approximate;
items may begin earlier (except public
hearings) or later than scheduled. For
more information contact Planning
Department at (970) 369- 5423.
If special accommodations are neces-
sary per ADA, contact 970-728-3844,
via email boccc@sanmiguelcountycogov
prior to the meeting.
10/1 COL-000261

PUBLIC HEARING NOTICE

The San Miguel County Board of
County Commissioners will consider
a Land Use Code (LUC) amendment
to add a new section 6-6 Deep Geo-
thermal Operations with related
amendments. The proposed LUC
amendment requires CPC review and
recommendation and Board of Coun-
ty Commissioners review pursuant to
Land Use Code Section 3-601 D. Land
Use Code Amendments. This Public
Hearing is the second step of a Two-
step process.
A Public Hearing on the above ap-
plication will be held by the San Mi-
guel County Board of Commissioners
at 9:30 a.m. or later on Wednesday,
October 21, 2026. This meeting will
be held online and in person in Tel-
luride, 333 W Colorado Ave, 2nd FL.
To provide comment or ask questions
regarding the proposal, please join
the meeting. Meeting agenda: bit.ly/
SMCAgendas.
Written comments may not receive
complete consideration if not re-
ceived by October 13, 2026. Send
written comments to: San Miguel
County Planning Department, P.O.
Box 548, Telluride, CO 81435 or to
planning@sanmiguelcountycogov
Please call the Planning Department
at 970-369-5423 for more infor-
mation on the application. A copy of this
proposed amendment application
may be viewed at https://www.san-
miguelcountycogov/901/Develop-
ment-Projects.

The official designated posting place
for all meeting notices is online at
https://www.sanmiguelcountycogov/661/Agendas-and-Minutes.
10/1 COL-000263

2025 DELINQUENT TAX
PUBLICATION

REAL PROPERTY TAX LIEN SALE
SAN MIGUEL COUNTY, COLORADO
Tax Lien Sale: Monday, October 26,
2026
Publication dates: October 1, October
8, and October 15, 2026
Telluride Times
Attention San Miguel County Prop-
erty Owners:

Delinquent accounts will appear in
the 2025 Delinquent Tax Publication
for three consecutive weeks. No de-
letions or name changes will be made
in the Publication.

To avoid a tax lien being sold on the
property, tax payments must be re-
corded in the Treasurer’s office no
later than noon on Thursday, October
22, 2026. No payments will be ac-
cepted after the deadline and on the
day of the sale.

The interest rate for Tax Lien Certifi-
cates sold in 2026 is 13% per year.

The auction will be held online at
www.govease.com. Additional infor-
mation and bidding rules are avail-
able at www.sanmiguelcountycogov/
Treasurer.

PUBLIC NOTICE is hereby given that
I, Brandi R. Hatfield, will, pursuant to
the law, offer the delinquent general
and special real estate taxes at Public
Auction, by means of the internet at
www.govease.com, for San Miguel
County, State of Colorado, on Mon-
day, the twenty-sixth day of October
2026, at 10:00 a.m. The following
described real estate, mineral rights,
and improvements, situated in said
San Miguel County, State of Colo-
rado, on which taxes and/or special
assessments for the year 2025 and
earlier have not been paid, it shall be
necessary to pay the taxes together
with interest, penalties, and applica-
ble fees, as provided by law, to-wit:
Bidding rules for the Public Auction
will be posted on the internet at www.
sanmiguelcountycogov/Treasurer
beginning October 8, 2026.

Dated this 14th day of September,
2026
Witness my hand and official seal.
/s/ Brandi R. Hatfield, Treasurer in and
for the
County of San Miguel, State of Colo-
rado

2025 DELINQUENT TAX LISTING

NOTE: IN SOME CASES, ONLY A
PORTION OF EACH PROPERTY’S LE-
GAL DESCRIPTION IS SHOWN. CON-
TACT THE TREASURER’S OFFICE AT
TREASURER@SANMIGUELCOUNTY-
CO.GOV OR 970-728-4451 FOR AD-
DITIONAL INFORMATION.

Tax Sale # 1 R0011787 19 LONE HAND
LLC A CO LLC
TRACT A REDCLIFF ESTATES
22332 HIGHWAY 145 PLACERVILLE
81430
Total Due: \$10,720.31

Tax Sale # 2 R0002691 225TJCB LLC
A CO LLC
LOT 12 RASPBERRY PATCH
225 RASPBERRY PATCH RD TELLU-
RIDE 81435
Total Due: \$45,318.61

Tax Sale # 3 R0001971 228 W CO-
LUMBIA LLC A CO LLC
LOT 6B-R BLK 19 TELLURIDE
228 W COLUMBIA AVE TELLURIDE
81435
Total Due: \$6,147.20

Tax Sale # 4 R0006688 425 W GALE-
NA LLC A CO LLC
LOT 3AII BOULDER VILLAGE SUBDI-
VISION
TELLURIDE 81435
Total Due: \$23,809.41

Tax Sale # 5 R0010349 5683 LAST
DOLLAR ROAD TRUST
PARCEL B ACC TO COX PARCEL
SPLIT
5683 LAST DOLLAR RD TELLURIDE
81430
Total Due: \$17,618.24

Tax Sale # 6 R0010574 781 PROS-
PECT LLC A CO LLC
LOT 3 BACKMAN VILLAGE
781 W PROSPECT AVE TELLURIDE
81435
Total Due: \$4,871.46

Tax Sale # 7 R0010192 8750 CONDO
LLC
UNIT 6 DOUBLE DIAMOND CON-
DOS
350 MAHONEY DR #6 TELLURIDE
81435
Total Due: \$4,365.87

Tax Sale # 8 R0001020 ABRAHAM
JOSEPH
UNIT 305 TELLURIDE RESORT AND
SPA
136 COUNTRY CLUB DR #305
MOUNTAIN VILLAGE 81435
Total Due: \$1,507.54

Tax Sale # 9 R0009956 ADAMS
BRET E
AN UND 1 32 INT IN AN UND 1 40
INT IN THE FOL THE SILVER CHIEF
LODE MS 2111A THE SILVER CHIEF
MILLSITE MS 2111B THE EXCELSIOR
LODE MS 2109 THE WILD YANKEE
LODE MS 2110 ALL IN SEC 12 T42 R9
USMMD
BEAR CREEK TELLURIDE 81435
Total Due: \$50.63

Tax Sale # 10 R0013479 ADAMS
DONALD T
UND QTR INT IN OIL GAS AND OTH-
ER MINERALS NE4 SEC 8 T42 R19
EGNAR
Total Due: \$66.03

Tax Sale # 11 R0009957 ADAMS
MARK V
AN UND 1 32 INT IN AN UND 1 40
INT INT THE FOL THE SILVER CHIEF
LODE MS 2111A THE SILVER CHIEF
MILLISTE MS 2111B THE EXCELSIOR
LODE MS 2109 THE WILD YANKEE
LODE MS 2110 ALL IN SEC 12 T42 R9
USMMD
BEAR CREEK TELLURIDE 81435
Total Due: \$50.63

Tax Sale # 12 R0011136 ADAMS RE-
BECCA
NW4NW4 SW4NW4 SEC 14 T44 R13
CONT 80 ACRES NE4NE4 SE4NE4
SEC 15 T44 R13 CONT 80 ACRES
747 COUNTY ROAD V44 W NOR-
WOOD 81423
Total Due: \$5,061.67

Tax Sale # 13 R0001054 ALPINE DE-
POT LLC A CO LLC
UNIT 523 TELLURIDE RESORT AND
SPA
136 COUNTRY CLUB DR #523
MOUNTAIN VILLAGE 81435
Total Due: \$2,283.90

Tax Sale # 14 R0010223 BALLARD
105S LLC A CO LLC
CONDO UNIT 105S AND PARKING
UNIT P4 BALLARD HOUSE SOUTH
250 S PINE ST #105S TELLURIDE
81435
Total Due: \$4,751.84

Tax Sale # 15 R0000617 BASE CAMP
2022 LLC FL LLC
LOT 72 WILSON MESA RANCH FIL-
ING 6
1406 E ANDERSON RD PLACERVILLE
81430
Total Due: \$4,631.61

Tax Sale # 16 R0005303 BAYE
STEPHANIE
CONDO UNIT 13D OF LAST DOLLAR
CONDOS
129 NIMBUS DR #13D TELLURIDE
81435
Total Due: \$2,549.96

Tax Sale # 17 R0001697 BENNETT
GEORGE O
LOT 124 ALDASORO RANCH FILING
3
TELLURIDE 81435
Total Due: \$7,576.45

Tax Sale # 18 R0005511 BERTELSEN
MARK HOWARD NOT MARRIED
UNIT 130 THE LOT 327 PLANNED
COMMUNITY
130 ALEXANDER OVERLOOK TELLU-
RIDE 81435
Total Due: \$1,314.57

Tax Sale # 19 R0012507 BLEWETT
BARBARA MCSPADDEN PHILLIPS
TTEE
UND HALF INT IN UND FIFTH OF
UND QUARTER INT OIL GAS AND
MIN ON SE SEC 34 T44 R14 SWSE
E2SW SESE LOT 3 SEC 18 T43 R12
N2NE NENW SEC 19 T43 R12 TOTAL
AC 475.24 TOT ASSD AC 23.76 UND
FIFTH INT IN UND 15 32 INT IN OIL
GAS AND MIN ON NESE SEC 22 T43
R14 W2SE SESW N2SW SWSW SEC
23 T43 R14 NENW SW S2NW SEC
26 T43 R14 NWSW SEC 27 T43 R14
NENE SEC 34 T43 R14 NWNW SEC
35 T43 R14 SE SEC 16 T44 R15 S2NE
SEC 17 T44 R15 SE SEC 21 T44 R15
N2S2 SESE SEC 29 T44 R15
Total Due: \$48.56

Tax Sale # 20 R0004450 BMW TWIN
PEAKS
COAL RIGHTS ONLY ON S2SE4 SEC
20 T45 R13
NORWOOD 814230000
Total Due: \$24.30

Tax Sale # 21 R0007189 BOOTHE
ERIC
LOT 3 LAKE FORK JUNCTION SUB 1
270 LAKE FORK JUNCTION RD
OPHIR 81426
Total Due: \$2,913.99

Tax Sale # 22 R0004330 BOUCH-
ER FAM REV TRUST CATHERINE D

PINES
TRACT 20 WILSON MESA RANCH
FILING 2
PLACERVILLE 81430
Total Due: \$11,388.09

Tax Sale # 23 R0000740 BOWEN EN-
ERGY COMPANY LLP A CO LLP
100% INTEREST IN OGM SWSE SESW
SEC 5 T42 R10 80 ACRES NWNE
NENW SEC 22 T42 R10 80 ACRES
TOTAL ACRES 160 ASS'D ACRES 160
UND ½ INTEREST IN OGM SESE SEC
12 T42 R10 40 ACRES N2NE SENE
SEC 13 T42 R10 120 ACRES TOTAL
ACRES 160 ASS'D ACRES 80A UND
¼ INTEREST IN OGM SWSW S2SE
SEC 13 T42 R10 120 ACRES SESE SEC
14 T42 R10 40 ACRES E2NE S2SE
SEC 23 T42 R10 160 ACRES N2 E2SE
S2SW SEC 24 T42 R10 480 ACRES
TOTAL ACRES 800 ASS'D ACRES
200 UND ¼ INTEREST IN OGM
SWSW SEC 15 T45 R11 40 ACRES
E2SE SEC 17 R45 T11 80 ACRES LOT
3 NESW W2SE SESE SEC 18 T45 R11
200 ACRES LOT 1 E2NW NWNE SEC
19 T45 R11 160 ACRES E2NE SWNE
SWNW W2SW SEC 20 T45 R11 240
ACRES E2NE W2NW SEC 21 T45 R11
160 ACRES W2NW SEC 22 T45 R11
80 ACRES NENE S2N2 NWNW SEC
29 T45 R11 240 ACRES N2NE SEC
30 T45 R11 80 ACRES TOTAL ACRES
1280 ACRES ASS'D ACRES 320
ACRES UND 1/8 INTEREST IN OGM
E2NE N2SE SEC 19 T45
Total Due: \$184.83

Tax Sale # 24 R0002153 BOWEN EN-
ERGY COMPANY LLP A CO LLP
UNDIVIDED 1/4 INTEREST IN OIL GAS
AND OTHER MINERALS E2SE N2SW
SEC 13 160 ACRES SESW SWSE SEC
14 80 ACRES SW NWSE SEC 15 S2NE
NESW NWSE SEC 21 160 ACRES NE
E2NW NWNW NESW NESE SEC 23
360 ACRES SWNE NW S2SW SESE
SEC 24 320 ACRES NENE N2NW
SEC 25 120 ACRES ALL IN T45 R12
TOTAL 1400 ACRES AND UNDIVID-
ED 1/4 INTEREST IN OIL GAS AND
OTHER MINERALS SWSE SEC 5 40
ACRES E2SW SE SEC 6 240 ACRES
NWNE S2NE E2NW NESW NWSE
SEC 7 280 ACRES W2 SE SEC 8
480 ACRES N2NE NENW SEC 17 120
ACRES ALL IN T43 R12
Total Due: \$243.29

Tax Sale # 25 R0010367 BRADY
SPENCER M
UNIT C1 THE RESIDENCES BUSI-
NESSES AT TOP OF THE HILL AT
LAWSON HILL
307 SOCIETY DR #C1 TELLURIDE
81435
Total Due: \$379.29

Tax Sale # 26 R0009259 BRADY
SPENCER M
UNIT C2 THE RESIDENCES BUSI-
NESSES AT TOP OF THE HILL AT
LAWSON HILL
307 SOCIETY DR #C2 TELLURIDE
81435
Total Due: \$809.46

Tax Sale # 27 R0002239 BRAND
KEVIN
LOT 36 GURLEY LAKE RANCH FIL-
ING 2
NORWOOD 81423
Total Due: \$63.35

Tax Sale # 28 R0011487 BRECCIA
HOLDINGS V LLC
CONDO UNIT 206 NEW SAN JUAN
BLDG
220 E COLORADO AVE #206 TELLU-
RIDE 81435
Total Due: \$2,259.20

Tax Sale # 29 R0007574 BRECKEN-
RIDGE CATALOG LLC A CO LLC
UNIT 309ABC ACCORDING TO THE
AMENDED AND RESTATED ARA-
TION FOR BEAR CREEK LODGE AT
MOUNTAIN VILLAGE
135 SAN JOAQUIN RD #309 MOUN-
TAIN VILLAGE 81435
Total Due: \$4,795.59

Tax Sale # 30 R0001520 BROCK
BURNELL
UND HALF INT IN OIL GAS AND
OTHER MINERALS ON S2SW4 SEC
13 T43 R13
Total Due: \$48.32

Tax Sale # 31 R0010225 BROOKS
ALLAN S
CONDO UNIT 205S AND PARKING
UNIT P13 BALLARD HOUSE SOUTH
250 S PINE ST #205S TELLURIDE
81435
Total Due: \$8,308.18

Tax Sale # 32 R0001929 BROOKS
ALLAN S
PARKING UNIT P10 BALLARD HOUSE
SOUTH
250 S PINE ST #P10 TELLURIDE
81435
Total Due: \$451.20

Tax Sale # 33 R0012369 BURT CRAIG
THOMAS
LOT 9 NORTH GURLEY RESERVE
FILING
Total Due: \$63.48

Tax Sale # 34 R0003794 BYRNE TOM
LOT 14 BLK 4 W TELLURIDE ADD
453 W COLORADO AVE TELLURIDE
81435
Total Due: \$45.24

Tax Sale # 35 R0002452 CAMPBELL
MARK RICHARD
LOT 4A BLK 11 TOWN OF OPHIR
PORPHYRY ST OPHIR 81426
Total Due: \$4,169.04

Tax Sale # 36 R0001325 CHALETs
AT CORTINA 2 LLC A CO LLC
UNIT 2 CORTINA LAND CONDO-
MINIUMS
MOUNTAIN VILLAGE 81435
Total Due: \$12,655.20

Tax Sale # 37 R0012221 CHALETs AT
CORTINA LLC A CO LLC
UNIT 3 CORTINA LAND CONDO-
MINIUMS
MOUNTAIN VILLAGE 81435
Total Due: \$12,655.20

Tax Sale # 38 R0012222 CHALETs
AT CORTINA LLC A CO LLC
UNIT 4 CORTINA LAND CONDO-
MINIUMS
140 CORTINA DR MOUNTAIN VIL-
LAGE 81435
Total Due: \$8,204.59

Tax Sale # 39 R0008399 CHAMBERS
MADELINE B
LOT 1 LA MESA VISTA
NORWOOD 81423
Total Due: \$1,161.64

Tax Sale # 40 R0008138 COLORADO
A CO LLC
PARKING SPACE UNIT 3 GONDOLA
PLAZA
MOUNTAIN VILLAGE 814359522
Total Due: \$420.97

Tax Sale # 41 R0000250 COLT
JAMES TTEE
CONDO UNIT 101S AND PARKING
UNIT P8 BALLARD HOUSE SOUTH
250 S PINE ST #101S TELLURIDE
81435
Total Due: \$4,470.60

Tax Sale # 42 R0010026 COOK AMY
B AND CHARLES P CO-TTEES
CONDOMINIUM UNIT 320 BUILDING
B VIKING LODGE CONDOMINIUM
651 W PACIFIC AVE #B320 TELLU-
RIDE 81435
Total Due: \$4,968.99

Tax Sale # 43 R0013164 COONSKIN
RIDGE CABIN LOT LLC A MI LLC
UNIT 4 THE RIDGE AT TELLURIDE
Total Due: \$22,489.07

Tax Sale # 44 R0008229 COONSKIN
RIDGE CABIN LOT LLC A MI LLC
UNIT 10 THE RIDGE AT TELLURIDE
#10 MOUNTAIN VILLAGE 814359522
Total Due: \$22,489.07

Tax Sale # 45 R0008182 COONSKIN
RIDGE CABIN LOT LLC A MI LLC
UNIT 25 THE RIDGE AT TELLURIDE
#25 MOUNTAIN VILLAGE 81435
Total Due: \$37,474.06

Tax Sale # 46 R0013168 COONSKIN
RIDGE CABIN LOT LLC A MI LLC
UNIT 13 THE RIDGE AT TELLURIDE
Total Due: \$37,474.06

Tax Sale # 47 R0013169 COONSKIN
RIDGE CABIN LOT LLC A MI LLC
UNIT 14 THE RIDGE AT TELLURIDE
Total Due: \$37,474.06

Tax Sale # 48 R0009674 CORNELL
KATRINA
LOTS 7 AND 8 BLK B OPHIR
CARBONATE AVE OPHIR 81426
Total Due: \$3,091.19

Tax Sale # 49 R0003916 CORNING
NATHAN H
CONDOMINIUM UNIT 107 BUILDING
A VIKING LODGE CONDOMINIUM
651 W PACIFIC AVE #A107 TELLU-
RIDE 81435
Total Due: \$2,873.60

Tax Sale # 50 R0007598 CORTINA
CHALET LLC A CO LLC
AN UNDIVIDED 12.5 PER INT IN UNIT
4 IN ASPEN RIDGE
115 ASPEN RIDGE DR #4 MOUNTAIN
VILLAGE 814359522
Total Due: \$1,008.81

Tax Sale # 51 R0012146 CORTINA
CHALET LLC A CO LLC
AN UNDIVIDED 12.5 PER INT IN UNIT
4 IN ASPEN RIDGE
115 ASPEN RIDGE DR #4 MOUNTAIN
VILLAGE 814359522
Total Due: \$1,008.81

Tax Sale # 52 R0010876 CORTINA
CHALET LLC A CO LLC
UNIT 4AA ASPEN RIDGE CONDOS
115 ASPEN RIDGE DR #4 MOUNTAIN
VILLAGE 81435
Total Due: \$1,008.61

Tax Sale # 53 R0008186 CORTINA
CHALET LLC A CO LLC
UNIT 4BB ASPEN RIDGE CONDOS
115 ASPEN RIDGE DR #04 MOUN-
TAIN VILLAGE 814359522

Total Due: \$1,008.81

Tax Sale # 54 R0010770 CREATIVE
REALITY-COLORADO LLC A CO LLC
UNIT 422 TELLURIDE RESORT AND
SPA
136 COUNTRY CLUB DR #422
MOUNTAIN VILLAGE 81435
Total Due: \$2,257.80

Tax Sale # 55 R0007034 CUADRA
JOSE DE LA
LOT 6 GURLEY CANYON RANCH
NORWOOD 81423
Total Due: \$3,408.71

Tax Sale # 56 R0002182 CUELLAR
NELSON
E2 SEC 3 T42 R19 LESS AND EXCEPT
LOT 1 AND LOT 2 AKA N2NE4 CONT
240AC MOL NO OIL GAS OR MINER-
ALS
815 COUNTY ROAD J6 EGNAR 81325
Total Due: \$1,728.04

Tax Sale # 57 R0001502 DANIELS
RODNEY
UND 20 PERCENT INT IN THE FOLL
UND ONE QUARTER INT IN OIL GAS
AND OTHER MIN ON SE4SW4 AND
SW4SE4 19 45 13 80 ACRES NW4
NE4 AND NE4 NW4 30 45 13 80
ACRES UND ONE SIXTH INT IN MIN-
ERALS ON E2 NW4 AND NE4 SW4
25 44 14 120.00 AC SE4 SW4 24 44 14
Total Due: \$52.05

Tax Sale # 58 R0002146 DAWSON M
CORINNE
UND TENTH INT IN OIL GAS AND
OTHER MIN ON UND HALF INT IN
S2SW4 SE4 SEC 25 T43 R20 240A
S2SE4 SEC 26 T43 R20 80A E2 SEC
36 T43 R20 320A
EGNAR 81325
Total Due: \$23.91

Tax Sale # 59 R0007111 DAY DURFEE
LOT 9 BLK 3 TELLURIDE SKIRANCH-
ES FILING 1
200 VANCE CREEK RD TELLURIDE
81435
Total Due: \$10,965.94

Tax Sale # 60 R0006342 DIHEDRAL
FATE LLC A WY LLC
LOT 4 AVALON MESA
Total Due: \$63.56

Tax Sale # 61 R0011673 DOGUET
DARIC
OUTLOT A FILING 1 TELLURIDE
PINES
GREEN MEADOWS LN PLACERVILLE
81430
Total Due: \$4,804.94

Tax Sale # 62 R0008480 DOUBLE
H LLC
ALL OIL GAS AND OTHER MINERALS
ON SE4NW4 SEC 33 T45 R13 40AC
NORWOOD 81423
Total Due: \$23.32

Tax Sale # 63 R0011271 DOUBLE H
LLC
UND HALF INT IN ALL OIL GAS AND
MINERALS ON NE4NW4 SEC 33 T45
R13
NORWOOD 81423
Total Due: \$19.59

Tax Sale # 64 R0005160 EAT 0733
LLC A CO LLC
UNIT 1 FAGO TOWERS A CONDO-
MINIUM
152 W SAN JUAN AVE #1 TELLURIDE
81435
Total Due: \$6,277.90

Tax Sale # 65 R0007803 ED JOE INC
HALF INT IN OIL GAS AND OTHER
MINERALS SW4SW4 SEC 11 T44 R13
NORWOOD 81423
Total Due: \$19.59

Tax Sale # 66 R0006311 EGNEW ANA
DRONKERT
SW4SW4 SEC11 T44 R13 LESS HALF
ALL OIL GAS AND MINERALS
749 COUNTY ROAD V44 W NOR-
WOOD 81423
Total Due: \$1,345.04

Tax Sale # 67 R0007101 ESCH SAN-
DRA GRANGER
A TRACT OF LAND 240 FT N AND
S AND 460 FT E AND W LOC IN NW
COR OF NW4NW4 SEC 26 T45 R13
40697 HIGHWAY 145 NORWOOD
81423
Total Due: \$2,143.05

Tax Sale # 68 R0009346 FLYNN KA-
TRINA
LOT 7 GURLEY CANYON RANCH
1255 COUNTY ROAD V44 E NOR-
WOOD 81423
Total Due: \$906.18

Tax Sale # 69 R0009205 FREEMAN
DAVE
4.25 PERCENT INT IN GOVERNOR
WAITE MS 16088 CORA MAY MS
10919 MARY BELLE MS 10919A
Total Due: \$42.30

Tax Sale # 70 R0002559 FREEMAN
DOTTIE
4.25 PERCENT INT IN GOVERNOR



John Huebner <johnh@sanmiguelcountyco.gov>

San Miguel County Major and Minor Subdivisions Land Use Code Amendments

1 message

John Huebner <johnh@sanmiguelcountyco.gov>

Fri, Jun 26, 2026 at 4:31 PM

To: Mike Bordogna <mikeb@sanmiguelcountyco.gov>, Jarrod Biggs <jarrodb@sanmiguelcountyco.gov>, Maura Fahey <mauraf@sanmiguelcountyco.gov>, David Foley <surveyfoley@gmail.com>, Matt Gonzales <mattg@sanmiguelcountyco.gov>, Ryan Righetti <ryanr@sanmiguelcountyco.gov>, Kevin Chaney <kevinc@sanmiguelcountyco.gov>, Zoe Dohnal <zdothnal@telluride-co.gov>, kclothier@telluride.gov, John Wontrobski <manager@ophir.us>, Sara Owens <sowens@norwoodtown.com>, Michelle Bulson <mbulson@mtnvillage.org>, Amy Ward <award@mtnvillage.org>, "michaelnjoyce@msn.com" <michaelnjoyce@msn.com>

The Planning Commission will hold a work session on Thursday, July 9, 2026 to discuss amendments to the Land Use Code for Major and Minor Subdivisions. The meeting will begin at 9:30 AM and will be held in Telluride in the BOCC meeting room at 333 W. Colorado, and via Zoom. (Check the agenda for the estimated time and meeting link at <https://www.sanmiguelcountyco.gov/661/Agendas-and-Minutes>.)

The draft Land Use Code Amendments for Major and Minor Subdivisions and related amendments are attached and are available online at <https://www.sanmiguelcountyco.gov/901/Development-Projects>.

Hearings for adoption of these amendments are expected in late summer.

Your comments are very important to us and will help the Planning Commission and Board of County Commissioners make informed decisions. Comments can be sent to planning@sanmiguelcountyco.gov. Comments received by noon one week prior to the Planning Commission or BOCC meeting will be included in the meeting packet. Comments received 48 hours before the meeting start time will be forwarded to the commission or board. Any comments received after that time will be held until the next meeting. (Please do not email Commissioners or Board members directly. Email sent to Commissioners/Board members may not become part of the meeting record.)

If you know of anyone who may be interested in this Code Amendment, please forward this email to them. If you do not wish to receive further emails from San Miguel County about our Subdivision Code Amendments, please let us know and we will remove you from our email list.

We appreciate your participation in this important project. Contact the Planning Department if you have any questions. Thank you.

John Huebner, AICP
Senior Planner
San Miguel County Planning Department
Main Office: (970)369-5423
Direct Line: (970)369-5437
www.sanmiguelcountyco.gov



Click [HERE](#) to go to the **SmartGov** public portal to apply for permits, check permit status, or view permit history.

San Miguel County is committed to providing equitable access to our services and communications. To request an accommodation or modification, please call 970-728-4382, or email accessibility@sanmiguelcountyco.gov



Draft Land Use Code Amendment PUD Subdivisions 6.23.26.pdf
421K



John Huebner <johnh@sanmiguelcountyco.gov>

Draft Land Use Code Amendments - Rural Homes Team Comments

1 message

Christopher Hawkins <chris@alpineplanningllc.com>

Thu, Sep 24, 2026 at 9:00 PM

To: John Huebner <johnh@sanmiguelcountyco.gov>

Cc: Dylan Conway <dylan@ruralhomes.co>, Amy Ward <award@mtnvillage.org>, Michelle Bulson <mbulson@mtnvillage.org>

John,

Thank you for sending over the draft regulations. Please see our comments in the attached documents.

We hope that you find these helpful and will consider them in the final draft.

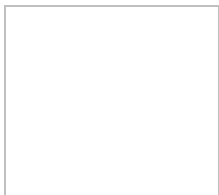
Sincerely,

Chris Hawkins, AICP

Alpine Planning, LLC

(970) 964-7927

Alpineplanningllc.com



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2 attachments

RH_Comments_SMC_LUC_Amendment_Draft_092426.pdf
101K

Rural Homes Team Comments

Draft Land Use Code Amendment — Subdivisions, Minor Subdivisions, Condominium and Townhouse Plats (San Miguel County draft dated 10/08/26)

Note: Prepared with AI assistance and reviewed by Rural Homes. Section references and proposed text should be verified against the County's draft before transmittal.

1. Summary

The Rural Homes Team supports the amendment. The new Condominium and Townhouse Plat exemption (5-1215) as a one-step Board review, together with the two-step Minor Subdivision, is the right tool for small attached-housing projects and reflects what was discussed with the Town and County on September 14.

Our comments are aimed at one thing: making sure the sequence the County described — minor subdivision to create the development lots, a development permit, then a townhouse plat — actually works as written. Three provisions could unintentionally push that sequence into a five-step Major Subdivision or a PUD, and two provisions assume a common-interest community that the County has said is not required. Proposed text for each is in Appendix A; cross-reference cleanups are in Appendix B.

2. Priority comments

1. **"Any future subdivision shall be a Major subdivision" (5-1422I.I.j).** As drafted, a townhouse plat filed after a minor subdivision could be read as a "future subdivision" and forced into five-step review. Ask: express carve-out for subdivision exemptions under 5-12, including 5-1215. Same clarification in 5-1412A so the six-lot Major Subdivision trigger doesn't capture exemption plats.
2. **Declaration and bylaws presumed (5-1215D, 5-1215E).** 5-1215D presumes a declaration and bylaws exist, which brings a CCIOA community back in by implication. Ask: "if applicable" language in D (matching E) and broaden both to cover covenants, party wall agreements, maintenance agreements, and ownership of common area by a public entity or other legal entity.
3. **Density test (5-1215B).** The per-unit calculation should count all common area of the whole project — including open-space, access and utility tracts — whether owned by the unit owners, a public entity, or another legal entity. Otherwise a project that dedicates its open space to the Town is penalized relative to one that keeps it in an HOA.
4. **Five-parcel cap on Minor Subdivisions (5-1421A).** Tracts dedicated or conveyed for open space, access, utilities or drainage should not count against the five parcels.
5. **Improvements guarantee (5-1215F).** Where the minor subdivision has already secured the improvements, 5-1215F should accept improvements completed or secured under an existing agreement, so the guarantee is not posted twice at the townhouse plat.
6. **Townhouse definition (Article 7).** "Multifamily" could conflict with permitted-use tables in districts that allow single-family attached but not multifamily. Ask: define townhouse as single-family attached dwellings on individual lots, structurally independent and separated by a party wall.

7. **Amendment thresholds (5-1502H, 5-1503B–C).** A greater-than-1% density change is "substantial" — on a plat under 100 units that is a single unit. Ask for a de minimis allowance. 5-1503B and C apply PUD-intent and rezoning standards to every plat amendment; they should apply only where a PUD or rezoning is involved.

Also noted

- Public notice (3-901) requires 30-day mineral-estate notice for minor subdivisions and for exemptions creating more than one parcel. Subdivision exemptions for townhouse plats and condominium maps should not be required to provide this notice since they are located on previously subdivided properties that provided the notice during the subdivision.
- Minor Subdivision standard 5-1422I.l.c adds a "leapfrog" test not found in the Major Subdivision standard. Ask that the two be consistent, or that infill on a parcel already served by county road and utilities be expressly outside the test.

Appendix A — Proposed text

Convention: Rural Homes Team insertions shown in bold blue double-underline; Rural Homes Team deletions in red strikethrough. County's own draft markup is not reproduced; text is shown as it would read if the County draft were adopted.

A-1. Section 5-1422I.I.j — Future subdivision

j. Any future subdivision shall be a Major subdivision; except that subdivision exemptions under Section 5-12, including but not limited to condominium and townhouse plats under Section 5-1215, lot line adjustments, and vacations of lot lines, shall not be considered a subdivision for purposes of this subsection.

Rationale: preserves the County's intent (no serial minor subdivisions) while confirming that a townhouse plat on a minor-subdivision lot stays in one-step review.

A-2. Section 5-1412A and B — Major Subdivision applicability

5-1412A. The Major Subdivision procedures shall be applicable to all land divisions resulting in a total of six (6) or more lots, other than land divisions accomplished by a subdivision exemption under Section 5-12.

5-1412B. Prior to the division or transfer of land within unincorporated San Miguel County, an applicant shall obtain approval for a Sketch Plan, Preliminary Plan and Final Plat for Subdivision pursuant to the procedures and standards of this Land Use Code, unless exempted pursuant to Section ~~3-1025-12~~, Subdivision Exemptions, or reviewed as a Minor Subdivision under Section 5-1420.

A-3. Section 5-1215D — Declaration and bylaws

5-1215D. If applicable, any ~~The~~ condominium or townhouse declaration ~~and~~, bylaws, covenants, party wall agreements, or other restrictions do not allow uses or activities that are inconsistent with the San Miguel County Land Use Code;

A-4. Section 5-1215E — Maintenance of common area

5-1215E. If applicable, any condominium or townhouse project provides a legal instrument or instruments to maintain any common areas, such as in a declaration ~~and bylaws make~~, bylaws, covenants, party wall agreement, maintenance agreement, or the ownership of common area by a public entity or other legal entity makes adequate provision for the maintenance of common area ~~elements and limited common elements,~~ private roads and drives, utilities, drainage facilities, and other shared improvements at no cost to the County; and

Rationale: the County confirmed on 9/14 that it does not require an owners' association and will not maintain internal roads. This makes the standard about the outcome (maintenance at no County cost) rather than the vehicle.

A-5. Section 5-1215B — Density calculation

5-1215B. The total common area (including open space, access, utility and drainage tracts serving the project, whether owned in common by the unit owners or by a public entity or other legal entity) and individual lot area of the whole project, divided by the total number of units, meets the minimum lot size requirement and maximum density of the overlying zone district;

A-6. Section 5-1215F — Improvements guarantee

5-1215F. A Subdivision Improvements Agreement has been signed and submitted by the applicant, and an adequate financial guarantee for improvements has been posted or will be posted prior to approval of the condominium or townhouse plat, unless the required improvements have been completed or are secured under an existing Improvements Agreement approved by the County.

A-7. Section 5-1421A — Minor Subdivision parcel count

5-1421A. The Minor Subdivision process is an application to change real property boundaries to create a total of five (5) or fewer parcels (the parent parcel plus four additional parcels), within property that has not been previously platted or subdivided. Tracts to be dedicated or conveyed for open space, access, utilities, drainage, or other public or common purposes shall not be counted as parcels for purposes of this Section.

A-8. Article 7 — Townhouse definition

Townhouse. ~~Attached, structurally independent multifamily dwellings.~~ Single-family attached dwellings, each located on its own lot, structurally independent of adjoining dwellings and separated by a party wall, with no dwelling located above or below another dwelling with individual utility lines and associated meters serving each lot.

A-9. Sections 5-1502H and 5-1503B–C — Plat amendments

5-1502H. An increase of greater than ~~one percent (1%)~~ five percent (5%), or two (2) dwelling units, whichever is greater, in the approved residential density of the proposed development.

5-1503B. Where the amendment is to a Planned Unit Development (PUD). ~~The~~the proposed amendment must be necessary to achieve the intent and purposes of the Planned Unit Development (PUD); and

5-1503C. Where the amendment involves a rezoning. ~~The~~the proposed amendment must be consistent with the standards of Section 5-1803.

A-10. Section 5-1422I.l.c — Leapfrog test (optional)

c. Spatial Pattern Shall Be Efficient. The proposed subdivision shall be located and designed to avoid creating spatial patterns that cause inefficiencies in the delivery of public services, or required duplication or premature extension of public facilities, or result in a leapfrog pattern of development. A subdivision of a parcel with existing access to a county road or state highway and existing or committed utility service shall not be considered a leapfrog pattern of development.

Appendix B — Cross-reference and drafting cleanup

None of these change substance; they will save the County a second round.

- Figure 3-5 lists the Minor Subdivision standard as "5-142H"; should be 5-1422I.
- Figure 4 lists the Minor Subdivision standard as "5-1420"; should be 5-5-1422I.
- Section 5-1415F, Recommendation by Planning Commission references the standards in Section 5-1422H and should instead refer to the standards in Section 5-1422I. Same comment in regards to Section 5-1422H that should refer to Section 5-1422I.
- 5-1412B cites "Section 3-102, Subdivision Exemptions"; exemptions are in Section 5-12
- 5-1416A has two items numbered "II." (Draft Subdivision Improvements Agreement; Copies of protective covenants). Renumber II–V.
- 3-702B.I cites "Section 4-4 and/or 1415A"; should read 5-1415A.
- 5-1215G addresses condominium plats only; consider adding that approval of a townhouse plat does not by itself create a common interest community under C.R.S. § 38-33.3-101 et seq.